American Postal Workers Union, AFL-CIO

CBR

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COLLECTIVE BARGAINING REPORT

Issue No. 97-04

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Memorandums of Understanding

A Collection of Memorandums Between the APWU and the Postal Service



SPECIAL ISSUE

INTRODUCTION

This is a special issue of the CBR that is dedicated to identifying Memorandums of Understanding and Letters of Intent between the American Postal Workers Union and the United States Postal Service. In order to effectively represent APWU bargaining unit members and enforce our collective bargaining agreement, stewards and officers may rely on Memorandums of Understanding that have been negotiated between the APWU and the Postal Service. Similar to contractual provisions, the Memorandums of Understanding between the parties on a national level represent important authority regarding labor-management issues and may be cited during local negotiations or in the grievance/arbitratia procedure.

This Collective Bargaining Report contains over 150 Memorandums of Understanding and Letters of Intent that are currently in effect. Historical notes in this issue show how the language of a number of memos has changed throughout successive National Agreements. A number of the Memorandums of Understanding have been incorporated into the 1994-1998 National Agreement and earlier contracts, but there are many that have not been printed in the National Agreement. Memorandums that are printed without signatures have been incorporated into the National Agreement and will show the date of the Agreement. Additional MOUs that have not been incorporated into the National Agreement have been reproduced along with accompanying signatures and dates.

Though we have attempted to print all Memorandums of Understanding and Letters of Intent that are currently in effect, there may be omissions. Any memos that you believe have been omitted should be brought to the attention of the Industrial Relations Department in order that we may print them in a future supplement to this CBR.

Greg Bell
Industrial Relations Director

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Historical Notes on Selected Memorandums

Deaf and Hard of Hearing -- The Deaf and Hard of Hearing Memorandum has changed since the 1984 version by the addition of language in 1987 that gives installation heads the authority to pay for certified interpretersand requires them to make every effort to provide certified interpreters when deemed necessary by an application of the principles in the memorandum. Moreover, language was added in 1987 to provide that films or videotapes for training and instruction of employees would be opened or closed captioned and to provide for installation of telecommunications devices for deaf or hard of hearing employees in postal installations employing these employees to be available to them for official business and in the case of personal emergencies. In 1990, language was inserted to require that management provide training to staff on the use of special telecommunications devices and to require installation of visual alarms on moving powered industrial equipment and visual fire alarms in all new postal installations. In 1994, the provision concerning telecommunications devices was strengthened to require the installation of special telecommunications devices or telephone volume control devices whenever a hard of hearing employee needs a reasonable accommodation in order to communicate by phone.

Maximization/Full-Time Flexible -- In 1978, the APWU, NALC, Mail Handlers, and USPS entered into a memorandum of understanding that committed the parties to the maximization of full-time employees in all installations. Disputes in implementing this commitment led to a national level arbitration. In 198 1, a memorandum of understanding was agreed to requiring the conversion of a senior part-time flexible to full-time status in the event a part-time flexible has performed duties within his craft and occuational group within an installation at least 40 hours a week (8 within 9, or 8 within 10, as applicable, 5 days a week over a period of six months). This criteria applied to postal installations with 150 or more man years of employment. In addition, a letter of intent was issued in 198 1 to implement the maximizationprovision. In 1984, language in the provision was changed to require that the criteria be applied to postal installations with 125 or more man years of employment.

Annuity Protection -- The 1981, *1984*, 1987 and 1990 National Agreements each contain memoranda of understanding that prescribe that no employee, whose basic pay is not increased by the annualized cost-of-living adjustments accumulated during the life of the preceding agreement before the first full pay period that the COLA roll-in goes into effect due to the provisions set forth in Article 9, Section 4 will suffer any diminution of annuity (e.g. optional, disability, or survivors benefits).

Leave Sharing -- In 1990, the APWU and NALC signed a memorandum of understanding with the Postal Service establishing a leave sharing program. The provision indicated that to be eligible to receive donated leave, a career employee (a) must be incapacitated for available postal duties due to serious personal health conditions and (b) must be known or expected to miss at least 80 more hours from work than his or her annual leave and/or sick leave balance(s), as applicable will cover, and (c) must have his or her absence approved pursuant to standard attendance policies. It also indicated that annual leave could be donated by career employees within the same MSC to another career employee in the same MSC. In 1994, the language was changed to provide that career employees eligible for donated leave would include employees incapacitated for available postal duties due to serious personal health conditions *including pregnancy* and also employees known or expected to miss at least *40* more hours from work than his or her annual leave and/or sick leave balance(s), as applicable will cover. In addition, the 1994 language provided that donated leave may be used to cover the 40 hours of LWOP required to

be eligible for leave sharing and indicated that postal employees within the same geographic area serviced by a postal district could donate annual leave to another career employee in that geographic area.

Transfers -- In 1984, Postmaster General William F. Bolger's April 6, 1979 memorandum on Requests for Voluntary Transfer/Reassignment was incorporated into the National Agreement. Substantial changes occurred to the memo in the 1987 National Agreement and some changes occurred in the 1994 National Agreement. Some of the significant changes in 1987 included requiring *"except in the most unusual"* of circumstances, if there are sufficient applicants for reassignment at least one out of every *four* vacancies will be filled by granting requests for reassignment in all offices of 100 or more man-years if sufficient requests from qualified applicants have been received. (It also provided that in offices of less than 100 man-years a cumulative ratio of 1 out of 6 for the duration of the National Agreement will apply.) The 1984 memo merely provided that normally at least one out of every five entry level craft vacancies should be filled by granting a transfer request. In addition, the 1987 memo provided that MSCs will maintain a record of the requests for reassignment received in the offices within their area of responsibility and this record may be reviewed by the union on an annual basis upon request It also provided that on a semiannual basis, unions may request information necessary to determine if a 1 out of 4 ratio is being met. The 1984 memo had not included this language. The 1987 memo also set out criteria that needed to be considered by management in making reassignments and indicated that employees must have at least one-year of service in their present installation and meet craft lock-in periods prior to requesting reassignment to another installation as well as requiring that they remain in the new installation for a year unless released by the installation heads earlier. In 1994, the memo was changed to provide that for reassignments within the geographical area covered by a District or to the geographical area covered by adjacent District, an employee must have at least *eighteen months* of service in their present installation prior to requesting reassignment to another installation. However, exceptions were listed to this requirement for employees requesting to return to their prior installation and where an employee can substantially increase the number of hours (8 or more hours per week) by transferring to another installation and the employee meets other criteria, in which case the lock-in period will be 12 months.

Expedited Arbitration -- In 1981, the memorandum of understanding agreed that the following issues will be referred to Expedited Arbitration: 1) Restricted Sick Leave; 2) Step Withholding; and 3) Employee Requests for Leave. In 1994, the memorandum provided that expedited arbitration would be appropriate for 11 items, including such other matters as are mutually agreeable at the area/regional level.

Processing of Post-SeparationGrievances -- This memo was initially incorporated into the 1981 National Agreement. However, an arbitration award by Arbitrator Mittenthal (#H7N-5P-C 1132; 3/26/90) held that post-removal grievances were not protected by this memorandum. As a result, the APWU entered into a memorandum of understanding on the processing of post-removal grievances in 1990.

Stamp Stock Tolerances -- In 1978, fixed credit tolerances ranged from $2.00 to $40.00. In the 1984 National Agreement, stamp stock tolerances were revised with a range from $2.00 to $60.00. In the 1994, stamp stock tolerances were increased with a range from $50.00 to $150.00.

Reinstatement of OF-346 -- This memo was first agreed to in 1984. The original language was changed in 1987 to provide that a suspension be for a specified period of time not to exceed sixty days

and to add a section providing for management review of requests for reinstatement of a revoked or suspended OF-346.

Local Implementation -- This memo has been published in all National Agreements since 1978. Until 1990, the only changes were in the dates for the period of local implementation. In 1990, there was a change in Article 30's language to allow management to appeal to impasse arbitration those cases involving existing provisions that it contended were an unreasonable burden. As a result, the memo was changed to provide that appeals may be made by the Assistant Postmaster General, Labor Relations as well as the National Union President. In 1994, the language was changed to extend the local implementationperiod over a period from February 15, 1996 until April 14, 1996 rather than limit it to one 30 day period. There also was provision that if no party provided written notification of its intent to invoke the local implementation process before February 29, 1996, presently effective Memoranda of Understanding not inconsistent or in conflict with the 1994 Agreement would remain in effect. In addition, the memo provided that initial proposals must be exchanged within the first 21 days of the 30 day consecutive day local implementation period.

Subcontracting Cleaning Services -- This memorandum, initially adopted in 1984, has undergone many revisions with each contract since that time.

Administration of Article 32.3 Highway Contracts -- This memorandum was initially incorporated into the 1984 Agreement. There have been minor revisions to its original language in subsequent agreements.

Training Committee -- This memorandum was initially incorporated into the 1984 National Agreement. In 1987, language was added to establish a Joint Committee on Training to discuss matters of mutual interest and benefit relating to training programs and opportunities, and subjects for resolution at meetings of the Joint Committee. In addition, the memo required that the Postal Service give consideration to requests for leave without pay by employees for training and educational opportunities. In 1994, subjects for resolution at labor-management committee meetings were expanded to exploring the potential for developing job related training and noncompensable non job related programs through the use of advanced computer technology. The memo also required the Postal Service to "make every effort" to grant requests for leave without pay by employees for training and educational opportunities. It specified that the Customer Service District offices will maintain a record of employee requests for LWOP under these provisions and the resulting action taken along with the rationale for such denials, and that this documentationwill be forwarded to the National Training Committee for biannual review. The 1994 memo prescribed that the National Joint Training Committee would review all training programs in order to compile a listing of training opportunities for postal employees.

Brush-up Training -- This memo was first incorporated into the National Agreement in 1987. It rescinded three memos in the 1984 National Agreement: a memo regarding implementation and application of Article 37, Section 2.D.5; a memo on second bidders following a senior bidder's placement in a deferment period under the provisions of Article 37, Section 3.F.3; and a memo on senior bidder scheme qualifying criteria (pp. 198-200, 200, and 201 of the 1984-l 987 National Agreement).

Productive Distribution -- This memo was first incorporated into the National Agreement in 1987. A previous memo on scheme qualifying criteria (p. 201 of the 1984-1987 National Agreement) was rescinded by the Brush-up Training memo.

Interlevel Bidding -- Entrance Examination Requirements -- This memo was preceded by a Memorandum of Understanding re: Interlevel Bidding -- Minimum Qualifications in the 1990 National Agreement. The number of positions for which entrance examination requirements are waived is expanded in the 1994 memo.

Dependent Care Task Force -- A memorandum re: Child Care Task Force was first incorporated into the 1987 National Agreement. The purpose of the task force was to evaluate and study the feasibility of providing child care assistance for USPS employees. The 1987 memo specified that should the task force decide to hire or contract for professional expertise to assist them or should the task force decide to conduct surveys any such fees or expenses incurred would be paid as follows: one-fourth by NALC, one-fourth by the APWU, and one-half by the USPS. The 1990 memo re: Child Care Task Force continued the task force and established a Dependent Care Fund to which the Postal Service agreed to contribute $1.3 million. The memo indicated that the fund could be used to retain the services of a professional consultant(s) and to develop pilot child care programs through loans or grants. The 1994 memo changed the name of the task force to Dependent Care Task Force and the Postal Service agreed to contribute $1.3 million to the Dependent Care Fund. The memo specified that the fund could be used for funding dependent care programs. Dependent care programs were expanded to include elder care seminars and elder care education and training programs as well as referral services, parenting seminars, consortiums, information, and child care education and training services. A provision of both the 1987 and 1990 National Agreements, that the parties explore the feasibility of applying Section 129 of the Economic Recovery Tax Act of 1981 regarding dependent care assistance programs to the USPS, was achieved through the Interest Arbitration on Health Care Benefits issued 6/4/93. That decision adopted a tax savings provision that permits employees to place an individually determined amount of pre-tax dollars in a Flexible Spending Accounting (FSA) to be used for out-of-pocket medical expenses as well as work-related dependent care costs.

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: MEMORANDA OF UNDERSTANDING AND LETTERS OF INTENT

The parties agree that except for those National level Memoranda of Understanding and Memoranda of Intent (MOUs) as well as National level Letters of Intent (LOIs) that have a specific expiration date, or are otherwise by their terms limited to actions occurring during a National Agreement, all other National MOUs/LOIs shall continue unless modified or eliminated either by agreement or as a result of interest arbitration. The parties further agree that this understanding includes all National Level MOUs and LOIs set forth in each of the parties' printing of the 1990-l 994 National Agreement as well as all other National level MOUs and LOIs.

Date: November 11, 1994

MEMORANDUM OF UNDERSTANDING

ARTICLE I, SECTION 6A

It is agreed between the U. S. Postal Service and the American Postal Workers Union that where additional work hours would have been assigned to employees but for a violation of Article I, Section 6A of the 1975-1978 and the 1978-1981 National Agreements and where such work hours are not de minimus, the employee(s) whom management would have assigned the work shall be paid for the time involved at the applicable rate.

This settlement is applicable to all grievances timely filed under either the 1975-1978 or 1978-1981 National Agreements,

Mr. Emmet Xndrews
General President
American Postal Workers Union

for
James C. Gildea
Assistant Postmaster General
Labor Relations Department

Dated March 13, 1979

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Deaf and Hard of Hearing

REASONABLE ACCOMMODATION FOR THE DEAF AND HARD OF HEARING

MANAGEMENT'S RESPONSIBILITY

Management has an obligation to reasonably accommodate Deaf and Hard of Hearing employees and applicants who request assistance in communicating with or understanding others in work related situations, such as:

a. During investigatory interviews which may lead to discipline, discussions with a supervisor on job performance or conduct, or presentation of a grievance.

b. During some aspects of training including formal classroom instruction.

c. During portions of EAP programs and EEO counselings.

d. In critical elements of the selection process such as during testing and interviews.

e. During employee orientations and safety talks, CFC and saving bond drive kickoff meetings.

f. During the filing or meetings concerning an employee's OWCP claim.

A reasonable accommodation must be approached on a highly individual, case by case basis. The individual's input must be considered prior to making a decision regarding accommodation.

IMPLEMENTATION

This obligation is met by selecting an appropriate resource from the variety of resources available. In selecting a resource, the following, among others, should be considered, as appropriate:

— The ability of the deaf or hard of hearing employee to understand various methods of communication and the ability of others to understand the deaf or hard of hearing employee.

— The importance of the situation as it relates to work requirements, job rights, and benefits.

— The availability and cost of the alternative resources under consideration.

— Whether the situation requires confidentiality.

Available resources which should be considered include:

a. Installation heads are authorized to pay for certified interpreters. Every effort will be made to provide certified interpreters when deemed necessary by an application of the principles set forth herein.

b. In some states, the Division of Vocational Rehabilitation (DVR) provides interpreters at no charge. When a decision is made that an interpreter is the appropriate accommodation and a DVR interpreter is not available other methods of securing an interpreter should be used.

c. Volunteer interpreters or individuals skilled in signing may be obtained from the work force or from the community. The skill level of such persons should be considered.

d. In some situations, written communications may be appropriate. The deaf or hard of hearing employee's ability to understand written communications should be considered.

e. Supervisors, training specialists, EAP, and EEO counselors may be trained in sign language.

f. Deaf or hard of hearing applicants should normally be scheduled for a specific examination time when an interpreter will be available.

g. State or Federal relay services may provide a way for a deaf or hard of hearing employee to conduct postal business by telephone with other employees and customers.

Management will provide the following assistance for deaf and/or hard of hearing employees:

a. All films or videotapes designed for the training or instruction of regular work force employees developed on or after October 1, 1987, shall be opened or closed captioned. To the extent practicable, existing films or videotapes developed nationally that will continue to be used by deaf or hard of hearing employees with some frequency, will be opened or closed captioned.

b. Special telecommunications devices for the deaf will be installed in all postal installations employing deaf employees in the regular work force. Special telecommunications devices or telephone volume control devices will be installed for hard of hearing employees whenever a hard of hearing employee needs a reasonable accommodation in order to communicate by phone. These devices will be available to deaf and/or hard of hearing employees for official business and in the case of personal emergencies. As appropriate, Management will provide training to staff on the use of these special telecommunications devices.

c. A visual alarm will be installed on all moving powered industrial equipment in all postal installationsemploying deaf employees in the regular work force or in any installationwhere such a reasonable accommodation is necessary for a hard of hearing employee.

d. Visual fire alarms will be installed in all new postal installations(installationsfor which the U.S. Postal Service, as of June 12, 199 1, had not awarded a contract for the design of the building) where the Postal Service installs audible fire alarms. The parties will discuss and seek to agree at the local level about the installation in such other facilities as may be appropriate.

JOINT LABOR-MANAGEMENT MEETINGS

Discussion of problem areas with regard to the use of certified sign interpreters, enhancement of job opportunities for the deaf and hard of hearing, type of special telecommunications devices or volume control devices to be installed, installation of visual alarms or other systems such as tactile devices at other than new postal installations, and the availability of new technologies which may help deaf and hard of hearing employees perform a variety of tasks are appropriate matters for consideration at Joint Labor-Management meetings. Discussion of such matters at Labor-Management meetings is not a prerequisite to the filing or processing of a grievance.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE

AND THE

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Article 12

The following provisions are mutually agreed to by the parties so that the primary principle of reassignment, "the dislocation and inconvenience to employees in the regular workforce shall be kept to a minimum, consistent with the needs of the service."

The union, at the regional level, will be given notice when technological and mechanization changes impact the bargaining unit, no less than 90 days, but as much as 6 months whenever possible. This notice shall be in the form of the Manpower Impact Report (copy attached).

Any involuntary reassignments outside the installation will require a local labor management meeting. It is in the interest of both parties to meet as soon as practicable and to develop an ongoing flow of communications to insure that the principle(s) of Article 12 (reassignment) are met:

The first local labor management meeting must be held no later than 90 days prior to the involuntary reassignment of employees.

Anthony J. Vegliante
U.S. Postal Service

William Burrus
American Postal Workers Union, AFL-CIO

9-20-89
(Date)

9-20-89
(Date)

Attachment

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO and National Association of Letter Carriers, AFL-CIO)

Re: Article 7.3

Part-time flexible employees with three (3) or more years of service in the same craft and same installation on the effective date of this award, who are employed in an office with 200 or more man years of employment will not have their average weekly workhours reduced as a result of the revision to Article 7.3 of the 1990 National Agreement.

Nothing shall preclude management from reducing such hours for other legitimate reasons.

The average weekly workhours for the part-time flexible employees with three (3) or more years of service will be the weekly workhour average for the 12 months prior to the effective date of this Agreement. The weekly workhour average cannot exceed forty (40) hours or be combined with any paid leave to exceed forty (40) hours.

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 199 1 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO and
National Association of Letter Carriers, AFL-CIO)

Re: Article 7, 12 and 13 - Cross Craft and Office Size

A. It is understood by the parties that in applying the provisions of Articles 7, 12 and 13 of the 1994 National Agreement, cross craft assignments of employees, on both a temporary and permanent basis, shall continue as they were made among the six crafts under the 1978 National Agreement.

B. It is also agreed that where the 1994 Agreement makes reference to offices/facilities/installations with a certain number of employees or man years, that number shall include all categories of bargaining unit employees in the office/facility/installation who were covered by the 1978 National Agreement.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Maximization/Full-time Flexible - APWU

Where a part-time flexible has performed duties within his craft and occupational group within an installation at least 40 hours a week (8 within 9, or 8 within 10, as applicable), 5 days a week, over a period of 6 months, the senior part-time flexible shall be converted to full-time status.

This criteria shall be applied to postal installations with 125 or more man years of employment.

It is further understood that part-time flexibles converted to full-time under this criteria will have flexible reporting times, flexible nonscheduled days, and flexible reporting locations within the installation depending upon operational requirements as established on the preceding Wednesday.

The parties will implement this in accordance with their past practice.

Date: July 21, 1987

LETTER OF INTENT

This letter memorandum sets forth our mutual intent regarding the attached Memorandum of Understanding relating to maximization.

1. The initial 6 month measuring period will begin on January 1, 1982, and end on June 30, 1982. Conversions based upon this initial period shall be completed within sixty (60) days. This conversion process shall not interfere with or delay conversions which would otherwise be implemented pursuant to the existing National Agreement. Henceforth, the 6 month measuring periods will be monitored on a continuing basis, and conversions required shall be implemented promptly.

2. Conversions,required pursuant to this Memorandum of Understanding shall be in addition to (but not duplicative of) conversions that may be required pursuant to existing provisions of the National Agreement. The criteria established by this Memorandum of Understanding are supplementary to, not in limitation or diminishment of, existing criteria in the National Agreement.

3. Subject to operational requirements, the intent of the parties is to avoid unnecessary disruptions in existing patterns of reporting times, non-scheduleddays and reporting locations for those PTF's converted pursuant to these criteria, to the extent the duties of the position converted are consistent with those performed by the PTF during the measurement period.

4. Employees converted to full-time positions pursuant to this Memorandum of Understanding may bid on assignments posted for bids by employees in their craft, and shall be full-time regular employees under the National Agreement.

5. In those installations where conversions have been made under this Memorandum of Understanding, and there are subsequent reversions or excessing, any reductions in full-time employees' positions shall be from among those position(s) converted pursuant to this Memorandum of Understanding until they are exhausted.

6. The parties will establish a national level committee to review and resolve any problems relating to the initial period of implementation, in accordance with their mutually expressed intentions. Accordingly, grievances filed at the local level relating to the initial period of implementation shall be stayed without prejudice to either party, and the time limits deemed extended by mutual consent, in order to permit review by the national committee. Upon such review, questions of fact may be referred to the normal grievance machinery.

Date: Printed in 198 1 National Agreement

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Conversions under the Maximization Memorandum

As discussed, when a full-time assignment(s) is being withheld in accordance with Article 12, the subsequent backfilling of the assignment(s) will not count towards the time considered for maximizing full-time duty assignments, in accordance with the Memorandum of Understanding.

The parties also recognize that employees are to be converted to full-time consistent with the memorandum, provided the work being performed to meet maximization qualification in not being performed on assignment(s) described above.

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 199 1 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO
National Association of Letter Carriers, AFL-CIO)

The parties agree that no later than ninety (90) days from the effective date of the 1987 National Agreement, Management will issue the following clarifying instructions regarding Operation 1 10- 129 and 180-189 of Regional Instruction 399. The Postal Service will not make any changes in R.I. 399 during the life of this Agreement without the agreement of the Unions.

The following provides additional guidelines to determine the appropriate craft designation and assignment for distribution and separation activities for Operations Numbers 1 10- 129 and 180- 189 unit activities.

The current language in Regional Instruction 399 for Operations 11 O-129 and 180-l 89 contains instructions to assign clerks to "Distribution of outgoing IPP's, newspapers, rolls, letter or flat bundles, slugs, Special Delivery or Special Handling parcel post."

Additional instructions are contained in the document to assign mail handlers to "Cull/separate mail by type/characteristicsand make basic local/out-of-townsplits to trays, hampers, gurneys, conveyers, nutting trucks, or other containers" in Operations 11 O-l 29 and 180-l 89.

There has been some confusion as to the distinction between "basic local/out-of-town splits," which is assigned to mail handlers, and distribution, which is assigned to clerks.

The term distribution, as defined in Section 52 1.2 of the M-32 Handbook, includes a sortation of mail to ADC's, states, sectional centers, cities, foreign countries, official mail, associate offices, stations, branches, carrier routes, holdouts (e.g., firms, addresses, institutions, boxes), box sections, ZIP Codes, uncoded mail, nixie, APO, FPO, or similar separations.

All distribution of mail in Operations 11 O-129 and 180-l 89 is the work of the Clerk Craft.

The Unions signatory to this Memorandum of Understanding are not bound by any other agreement or Letter of Intent between the Employer and any other Union.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE, THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND THE
NATIONAL POSTAL MAIL HANDLERS UNION,
A DIVISION OF LABORERS'
INTERNATIONAL UNION OF NORTH AMERICA,
AFL-CIO

REGIONAL INSTRUCTION 399 - TRANSITIONAL PROCEDURES

General Principles

This memorandum is intended to facilitate the transition to the new RI-399 Dispute Resolution Procedures (DRP). All grievances pending on the date of signing of the DRP Memorandum shall be processed in accordance with the Transitional Procedures contained in this memorandum.

Once the pending grievances have been processed in accordance with the transitional procedures contained in this memorandum, this memorandum shall no longer be effective.

As specified in this memorandum, the parties at all three levels, shall concurrently identify and inventory all pending jurisdictional grievances. The processing of the cases shall be from the top down, i.e., beginning at the national level, the regional level, and then the local level. This method will allow remanded cases to be considered along with other pending grievances at the appropriate level.

Local Level

All jurisdictional grievances pending at Step 1 or 2, in addition to jurisdictional cases remanded to the local level, will be referred to the Local Dispute Resolution Committee (LDRC). The LDRC will have thirty (30) calendar days from the implementationdate of the new procedures to jointly identify pending jurisdictional cases and to assure that each of the parties has complete copies of all case files.

The three parties will execute and include in each case tile a jointly developed diagram of the operation in question, with a narrative describing the duties performed in the disputed function. If the parties cannot agree regarding the diagram or narrative, the parties separately may present their views for inclusion in the file.

At the end of the thirty (30) day period from the implementation date of the new procedure, the LDRC shall have identified and categorized all pending cases at Step 1 or 2 involving jurisdictional disputes. At that point, the LDRC will have thirty (30) days to attempt to resolve all disputes identified as pending at that level.

In addition to identifying, processing and attempting to resolve jurisdictional assignments which are in dispute, the Local Committee will engage in a joint effort to inventory all jurisdictional assignments which are not in dispute utilizing Attachment 1. Such effort will begin no later than the implementation date of the new procedure and be completed no later than one hundred twenty (120) calendar days after

that date. Local inventories will include the following information:

1. operation number/description;

2. function number/description;

3. craft assignment;

4. a diagram; and

5. a signature of the appropriate representative of each party.

If any party disputes part or all of the inventory that dispute may also be submitted to the Regional Committee in keeping with the time frame for appeal of a jurisdictional dispute.

The sole issue in inventory disputes to be determined by the Regional Committee is whether a grievance existed over the disputed operation/function on the date of the signing of the DRP Memorandum.

Regional Level

The Regional Dispute Resolution Committee (RDRC) will identify all jurisdictional cases pending at Step 3 or regional arbitration, and jurisdictional cases remanded to the regional level. The parties will categorize cases dealing with the same function in a given operation in each facility and the moving Union will select one of the cases to serve as the representative case, with all others challenging the same function within an operation placed on hold pending resolution of the representative case. Any case or group of cases may be remanded to the local level by mutual agreement of the parties. This review shall be completed within sixty (60) days of the implementation date of the new procedure.

The RDRC shall decide local appeals consisting of: 1. cases determined to properly be at that level in the review process mentioned above; and 2. questions appealed to it involving a determination as to whether or not a dispute existed on the date of signing the DRP Memorandum. The appeals will be processed in accordance with the time frames and procedures contained in the DRP Memorandum.

If a question is appealed to the Regional Committee involving a determination as to whether a dispute existed on the date of signing the DRP Memorandum and a determination is reached at the regional level that a dispute did exist over the operation/function, the local parties will be advised in writing to process the dispute in accordance with the new procedures. The time limits for such a dispute will commence on the date of receipt by the moving union of the regional determination.

In the event the Regional Committee is unable to agree as to whether a dispute existed on the date of signing the DRP Memorandum, the moving union may appeal that question to regional-level arbitration within twenty-one (2 1) calendar days of the date of receipt of the Regional Committee's written decision The issue to be decided by the arbitrator will be the same as the one presented to the Regional Committee.

National Level

The National Dispute Resolution Committee (NDRC) shall identify all cases pending at Step 4 or national arbitration. This review shall be completed within sixty (60) days of the implementation date of the DRP Memorandum. Any case or group of cases may be remanded to a lower level by mutual agreement of the parties. National level cases will be processed in accordance with the time frame and procedures contained in the DRP Memorandum.

Date: April 16, 1992

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE, THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND THE
NATIONAL POSTAL MAIL HANDLERS UNION,
A DIVISION OF LABORERS'
INTERNATIONAL UNION OF NORTH AMERICA,
AFL-CIO

REGIONAL INSTRUCTION 399--DISPUTE RESOLUTION PROCEDURES

General Principles

The parties to this Agreement agree to a new procedure for resolving jurisdictional disputes under Regional Instruction 399 (hereafter "RI-399). The new procedures will be implemented sixty (60) calendar days after the effective date of this Agreement.

Effective with the signing of this Agreement, no new disputes will be initiated at the local level by either union challenging jurisdictional work assignments in any operations as they currently exist. Except as otherwise specifically provided in the New or Consolidated Facilities, New Work, or Operational Change sections contained in this memorandum all local craft jurisdictional assignments which are not already the subject of a pending locally initiated grievance will be deemed as a proper assignment for that facility.

In order to provide for expeditious and efficient resolution of jurisdictional disputes only one representativecase shall be processed for each operation/function in dispute. Multiple disputes arising out of the same or substantially similar issues or facts shall not be allowed.

Dispute Resolution Committees shall be established at the local, regional and national levels. The Committee shall be composed on one (1) representative from each of the three parties. The representative on the Committee may be assisted by a technician at any or all meetings if advance notice is given to the other two parties. At larger installations the local parties may mutually agree to establish more than one (1) Committee; however, there shall not be more than one (1) Committee per facility. Committee decisions shall be by mutual agreement of all 3 parties.

Meetings of the Committee must be scheduled with sufficient frequency so that a decision can be

rendered within the time limits contained in this Agreement. The time limits contained in this Agreement may be extended by mutual agreement of the parties. If a committee fails to render a decision within the time frames in this Agreement the moving union may appeal the dispute to the next step in the procedure.

Each party at the local level will be responsible for maintaining an inventory ofjurisdictionalassignments not in dispute. As jurisdictional disputes are resolved under this procedure, the results shall be added to the inventory.

The national parties shall mutually determine and implement a new numbering system to be utilized in this procedure.

All parties to this Agreement may participate in the arbitration proceedings at either level and all parties shall be bound by the arbitrator's award whether or not they participate in the arbitration proceedings. The arbitrator's award shall be final and binding.

Any settlement entered into at any level must be a tripartite settlement.

Local Level

The Local Dispute Resolution Committee (LDRC) will have thirty (30) calendar days after receipt of a properly filed dispute to attempt to resolve the dispute.

1. A dispute may be initiated by either Union. It must be submitted in writing to the other two parties. It must, at minimum, contain:

   A. the operation number/description;

   B. the function number/description;

   C. what craft is presently assigned the work;

   D. a diagram of the operation with a written narrative describing the disputed function;

   E. the contentions of the party filing the dispute;

   F. the condition which permits the filing of the dispute; i.e., new or consolidated facility, new work, or operational changes.

2. If a dispute is resolved, a tripartite settlement agreement will be signed by the parties and the jurisdictional work assignment shall be added to the local inventory of agreed upon craft assignments. The settlement agreement will include the grievance number, the identification of the operation and functions involved and the determination of the appropriate craft. A diagram jointly prepared with a narrative describing the disputed operation/function will be attached to the settlement, if possible.

3. If the dispute is unresolved at the end of the thirty (30) day period, a tripartite decision will be written by the Committee setting forth the position of each party. The moving Union may

appeal the dispute to the Regional Committee within twenty-one (2 1) calendar days of the date the decision is reduced to writing and signed by the three parties. A copy of the appeal and the complete case file must be sent to each of the Regional parties by the appealing Union.

Regional Level

The Regional Dispute Resolution Committee (RDRC) shall have sixty (60) calendar days after receipt of a properly appealed dispute to attempt to resolve the dispute.

1. If a dispute is resolved a tripartite settlement agreement will be signed by the parties. The Agreement shall contain the same information specified in the section of this Agreement for local settlement of disputes. The Agreement will be sent to the local committee for implementation and the work assignment shall be added to the local inventory of agreed upon craft assignments.

2. If the dispute is unresolved at the end of the sixty (60) calendar day period, a tripartite decision will be written by the Committee setting forth the position of each party. The moving Union may appeal the dispute to regional arbitration within twenty-one (2 1) calendar days of the date of receipt of the written decision of the Committee. Copies of the appeal will be provided to the other parties.

3. If any member of the Regional Committee identifies an appealed dispute as involving an interpretive issue which is of general application, that member shall inform the other members of the specific issue(s), in writing, prior to the issuance of a decision by the Committee on that dispute. The written decision by the Committee shall have this written notification attached to the decision. If such an issue is so identified and remains unresolved on the date of the Regional Committee decision, the moving union may only appeal such dispute to the National Committee. Failure of a party to identify such an issue prior to the date of the decision by the Regional Committee precludes appeal to the National Committee of that specific dispute.

4. The RDRC may, but mutual agreement, remand a case back to the LDRC with specific instructions.

National Level

The National Dispute Resolution Committee (NDRC) shall have sixty (60) calendar days after receipt of a properly filed or appealed dispute to attempt to resolve the dispute.

1. Either union party may initiate a dispute at the National level when such dispute involves an interpretive issue which under the National Agreement is of general application. Such disputes shall be provided to the National Committee, in writing, and must specify in detail the facts giving rise to the dispute, the precise interpretive issues to be decided and the contentions of the Union.

2. If a dispute is resolved, a tripartite settlement agreement will be signed by the parties.

3. If the dispute is unresolved at the end of the sixty (60) calendar day period, a tripartite decision

will be written by the Committee setting forth the position of each party. The moving Union may appeal the dispute to National Arbitrationwithin twenty-one (2 1) calendar days of the date of receipt of the written decision of the Committee. Copies of the appeal will be provided to the other parties.

4. In the event the National Committee, after review, decides that a dispute appealed from the regional level does not involve an interpretive issue which is of general application, the dispute shall be remanded to the regional level and placed on the list of pending arbitration cases.

Regional Arbitration

A panel of two (2) arbitrators will be jointly selected by the parties for each of the five (5) regions. Additional arbitratorsmay be added to a regional panel up to a maximum of five (5) by mutual agreement of the parties. Selection of the arbitrators will be by a method and for a time period to be agreed upon by the parties. Such panel of arbitrators shall hear only jurisdictionalcases. Their fees and expenses will be allocated on a basis of one-half (1/2) to management and one-half (1/2) shared equally by the participating unions. If any party decides not to participate in the arbitration proceedings, the remaining parties will equally divide the arbitrator's fees and expenses. The current practices of the parties related to allocation of cost for canceled dates will be continued.

Scheduling of regional arbitration cases will be jointly preformed by the parties from a list of dates submitted by the arbitrators. All scheduling correspondence with the arbitrators will be jointly signed by the parties. The method of scheduling will be jointly agreed to by the parties. The factors to be considered in establishing such a method shall be:

1. a first-in/first-out basis;

2. cost effectiveness of the system;

3. volume of cases in a particular geographic area;

4. availability of advocates for each party; and

5. a proportionate allocation of dates for each geographic area.

Cases will be scheduled and heard within ninety (90) calendar days after receipt of the appeal. Jurisdictionarbitrators will provide their decisions to the parties within thirty (30) calendar days of the close of the record.

National Arbitration

One arbitrator will be jointly selected by the parties at the national level on the basis of mutual agreement. Once selected, the arbitrator will hear only jurisdictional disputes. The arbitrator's fees and expenses will be allocated on the basis of one-half (1/2) to management and one-half (1/2) shared equally by the participating unions. However, if a party decides not to participate in the arbitration proceedings, the remaining parties will equally divide the arbitrator's fees and expenses. Scheduling of cases will be jointly performed by the parties from a list of dates submitted by the national arbitrator. Time frames

will be the same as those designated for regional arbitration. The method of scheduling will normally be on a first-in/first-out basis.

Pursuant to Article 15 of the National Agreement, only disputes involving interpretive issues under the National Agreement which are of general application will be arbitrated at the national level.

Additionally, the national-levelarbitratormay be invited to participate in an advisory capacity at National Committee meetings on items related to problems of consistency of regional-level awards or other problems mutually determined by the committee. The arbitrator may be empowered by mutual agreement of the parties to issue instructions to the regional-level arbitrators which were consistent with any mutual understanding on these issues reached as a result of committee discussions. Payment for such services will be made as for an actual arbitration hearing.

New Or Consolidated Facilities

The following procedures shall apply to the opening of new or consolidated facilities.

Forty-five **(45)** calendar days prior to the opening of a new or consolidated facility, the members of the RDRC will be notified of the date on which activation will take place. Within ninety (90) calendar days of that activation, the LDRC designated for the facility will conduct an inventory of jurisdictional assignmentsat the facility and will attempt to resolve any disputes which arise from these discussions. If necessary, representatives of the RDRC will assist the local parties with on-site reviews.

Jurisdictional assignments shall not be changed solely on the basis of moving operation(s) into a new facility. If jurisdictional assignments existed in a previous facility, they shall be carried forward into the new facility except where operational changes as described below result in the reassignment from one craft to another.

In a new or consolidated facility, the jurisdictional assignment in the previous facilities must be considered by the LDRC in the determinationmentionedabove, in the event the consolidatedoperation had a mixed practice in the previous installations.

The decision of the LDRC will be processed in accordance with the decision and appeals procedures previously outlined, including appeals to the higher levels of the process.

New Work

This section refers to implementationof RI-399 involving work which had not previously existed in the installation.

The procedures for activation of a new or consolidated facility shall apply to the assignment of new work to an installation. The standards contained in Section II.E of RI-399 shall apply in making the craft determinations.

Operational Change

Management will not engage in operational changes for the purpose of affecting the jurisdictional

assignments in a facility. It is the intent of the parties to continue craft jurisdictional assignments which are not already the subject of a grievance as indicated on page 1, paragraph 2, of this Agreement.

To the extent that operational changes are made that may result in the reassignment of functions from one craft to another management must present and discuss such changes with the LDRC thirty (30) days prior to the effective date of the operational change. Within 14 days from the effective date, the adversely impacted union may appeal the operational change to arbitration. A tripartite arbitration shall be heard within sixty (60) days of the effective date of the operational change in order to resolve any jurisdictional disputes. The issue to be decided in cases involving operational changes will be whether the proposed change is consistent with RI-399 and/or the intent of this Agreement.

Date: April 16, 1992

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE AMERICAN POSTAL WORKERS UNION, AFL-CIO, AND THE NATIONAL
POSTAL MAIL HANDLERS UNION, AFL-CIO

Re: SELECTION PROCEDURES FOR APPOINTMENT OF A NATIONAL ARBITRATOR FOR RI-399 JURISDICTIONAL DISPUTES

The parties hereby agree to the following procedures to be used on a one-time basis to select a National level arbitrator for the RI-399 jurisdictional dispute national arbitration panel:

1. A pool of 11 arbitrators shall be created. The parties shall jointly submit to the Federal Mediation and Conciliation Service (FMCS) a request for names of 11 arbitrators, with each arbitrator to meet the criteria set forth in the attached letter. Any cost for this service shall be split three (3) ways between the parties.

2. There shall be three (3) rounds of alternate strikes of arbitrators by the parties. Each party shall have one strike per round with the exception of the last round during which the Postal Service shall have two (2) strikes.

3. The order of strikes within each round shall be determined by the luck of the draw.

4. The last remaining arbitrator shall be appointed to the national RI-399 jurisdictional arbitration panel for a term of two (2) years.

5. This process will be completed within six (6) weeks of the receipt of the names of the arbitrators from FMCS.

John W. Dockins
Labor Relations Specialist
RI-399 Coordinator
U.S. Postal Service

Robert L. Tunstall
Director, Clerk Craft
American Postal Workers
Union, AFL-CIO

William J. Flynn, Jr.
Manager, Contract Administration
National Postal Mail Handlers Union
AFL-CIO

6-3-96
Date

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO,
CLERK CRAFT

Relief and pool assignments, sometimes **called** "flexible relief work cycle" assignments are utilized to cover absences of employees holding regular bid assignments and other situations where the assignment is uncovered. Such relief and pool assignments also enable management to accommodate employee requests for unscheduled leave. It is recognized that the concept of a relief or pool assignment necessarily entails a degree of uncertainty in scheduling employees filling such assignments.

In order **to** minimize this uncertainty. the parties have agreed to the following principles to be applied to the establishment and operation of relief and pool assignments.

1. The Postal Service may establish new or additional relief and pool assignments in any installations. The Postal Service shall consult with the Union before management makes a final decision with respect to the establishment of such assignments in any installations where they do not presently exist.
2. Relief and pool assignment postings will specify the nature of the assignment by enumerating the type and location of assignments to be relieved; e.g.

   "the pool employee will cover absences of window empioyees assigned to classified stations and branches, as well as main office windows.'*

The degree of specificity included may vary with the size of the installation in that in some offices with a large relief pool a particular relief assignment could be limited to a relatively small area **of** coverage, whereas in other offices the nature of the assignment may have to be broader.

3. Relief and pool assignments will have fixed days off, which may be on a rotating basis.

4. Relief and pool assignments will have fixed hours. However, hours of duty may vary from day to day; for example:

Monday	**6:00**	a.m.	—	**2:30 p.m.**
Tuesday	9:00	a.m.	—	6:00 p.m.
Wednesday	12:00	noon	—	**8:30** p.m.
Thursday	**8:30**	a.m.	—	**5:30 p.m.**
Saturday	6:00	a.m.	—	3:00 p.m.

5. An employee holding a relief or pool assignment, as described above, will be paid at the overtime rate for those hours worked which are outside his normal, regularly scheduled work week, except under the following circumstances:

   (a) When management informs the employee that he is to cover an assignment having a schedule different from the relief or pool employee's regular schedule for a period of one week (five working days) **or** longer, the relief or pool employee **will** assume the new schedule and will not receive overtime pay for those hours worked in such new schedule which are out side of his normal regular schedule. However, the relief or pool employee will be entitled to overtime pay for those hours worked outside of his normal, regularly scheduled work week (i) unless and until management informs him **in writing that he is** to work a new schedule for a week or longer, or (ii) if the relief or pool employee in fact works the **new** schedule for less than a week after he is so informed by management; or

   (b) When management tells him to perform functions which predictably occur at the end of an accounting period; e.g., those of Timekeeper or Civil Service Examiner.

Dated at Washington, D.C.

this 3rd day of March 1975.

Date: Printed in 1981 Agreement

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Article 8

Recognizing that excessive use of overtime is inconsistent with the best interests of postal employees and the Postal Service, it is the intent of the parties in adopting changes to Article 8 to limit overtime, to avoid excessive mandatory overtime, and to protect the interests of employees who do not wish to work overtime, while recognizing that bona fide operational requirements do exist that necessitate the use of overtime from time to time. The parties have agreed to certain additional restrictions on overtime work, while agreeing to continue the use of overtime desired lists to protect the interests of those employees who do not want to work overtime, and the interests of those who seek to work limited overtime. The parties agree this memorandum does not give rise to any contractual commitment beyond the provisions of Article 8, but is intended to set forth the underlying principles which brought the parties to agreement

The new provisions of Article 8 contain different restrictions than the old language. However, the new language is not intended to change existing practices relating to use of employees not on the overtime desired list when there are insufficient employees on the list available to meet the overtime needs. For example, if there are five available employees on the overtime desired list and five not on it, and if 10 workhours are needed to get the mail out within the next hour, all ten employees may be required to work overtime. But if there are 2 hours within which to get the mail out, then only the five on the overtime desired list may be required to work.

The parties agree that Article 8, Section 5.G.l., does not permit the Employer to require employees on the overtime desired list to work overtime on more than 4 of the employee's 5 scheduled days in a service week, over 8 hours on a nonscheduled day, or over 6 days in a service week.

Normally, employees on the overtime desired list who don't want to work more than 10 hours a day or 56 hours a week shall not be required to do so as long as employees who do want to work more than 10 hours a day or 56 hours a week are available to do the needed work without exceeding the 12-hour and 60-hour limitations.

In the Letter Carrier Craft, where management determines that overtime or auxiliary assistance is needed on an employee's route on one of the employee's regularly scheduled days and the employee is not on the overtime desired list, the employer will seek to utilize auxiliary assistance, when available, rather than requiring the employee to work mandatory overtime.

In the event these principles are contravened, the appropriate correction shall not obligate the Employer to any monetary obligation, but instead will be reflected in a correction to the opportunities available within the list. In order to achieve the objectives of this memorandum, the method of implementation of these principles shall be to provide, during the 2-week period prior to the start of each calendar quarter, an opportunity for employees placing their name on the list to indicate their availability for the duration

of the quarter to work in excess of 10 hours in a day. During the quarter the Employer may require employees on the overtime desired list to work these extra hours if there is an insufficient number of employees available who have indicated such availability at the beginning of the quarter.

The penalty overtime provisions of Article 8.4 are not intended to encourage or result in the use of any overtime in excess of the restrictions contained in Article 8.5.F.

Date: Incorporated into December 24, 1984 Award

Attachment # 1

EMPLOYEE AND LABOR RELATIONS GROUP
Washington, DC 20260

January 13, 1975

Mr. Francis S. Filbey
General President
American Postal Workers Union,
AFL-CIO
817 - 14th Street, N. W.
Washington, DC 20005

Re: Arbitration Case No.
AB-N-2476

Dear Mr. Filbey:

This letter sets forth our understanding of the agreement reached on January 8, 1975, settling Arbitration Case No. AB-N-2476. The underlying grievance involves the proper interpretation of Article VIII, Section 5, of the 1973 National Agreement when employees represented by the American Postal Workers Union, AFL-CIO, having their names on the "Overtime Desired" list, are improperly passed over by management in the selection for overtime work assignments. Agreement was reached to settle that grievance on the following basis:

1. When, for any reason, an employee on the "Overtime Desired" list, who has the necessary skills and who is available, is improperly passed over and another employee on the list is selected for overtime work out of rotation, the following shall apply:

   (a) An employee who was passed over shall, within ninety (90) days of the date the error is discovered, be given a similar make-up overtime opportunity for which he has the necessary skills;;

(b) Should no similar make-up overtime opportunity present itself within ninety (90) days subsequent to the discovery of the missed opportunity, the employee who was passed over shall be compensated at the overtime rate for a period equal to the opportunity missed.

2. When, for any reason, an employee on the 'Overtime Desired" list, who has the necessary skills and who is available, is improperly passed over and another employee not on the list is selected for overtime work, the employee who was passed over shall be paid for an equal number of hours at the overtime rate for the opportunity missed.

3. When a question arises as to the proper administration of the "Overtime Desired" list at the local level, an APWU steward may have access to appropriate overtime records.

4. The foregoing principles are without prejudice to either party's position as to the proper interpretation of Article VIII, Section 5. They shall be applied to all timely filed and currently active grievances and to future grievances filed pursuant to the 1973 National Agreement unless they are superseded by a future agreement between the Postal Service and the APWU, or by an arbitrator's award that the parties agree is dispositive of the issue.

If this document and its provisions set forth our agreement, please keep one copy for your files, sign the duplicate original and return it to me to acknowledge the settlement.

Sincerely,

James C. Gildea
Assistant Postmaster General
Labor Relations Department

Francis S. E'ilbey
General President
American Postal Workers
Union, AFL-CIO

MEMORANDUM OF UNDERSTANDING
BETWEEN
TEE UNITED STATES POSTAL SERVICE
AND
THE AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND
TEE NATIONAL ASSOCIATION OF LETTER CARRIERS, AFL-CIO

The United States Postal Service, the American Postal Worker6 Union, AFL-CXO, and the National Association of Letter Carriers, AFL-CIO, hereby agree to resolve the following issues which remain in dispute and arise from the application of the overtime and holiday provisions of Article6 8 and 11 of the 1984 and 1987 National Agreements. The parties agree further to remand those grievances which were timely filed and which involve the issues set forth herein for resolution in accordance with the terms of this Memorandum of Understanding.

12 Hours In A Work Day and 60 Hours In A Service Week Restrictions

The parties agree that with the exception of December, full-time employees are prohibited from working more than 12 hour6 in a single work day or 60 hour6 within a service week. In those limited instances where this provision is or has been violated and a timely grievance filed, full-time employees will be compensated at an additional premium of 50 percent of the base hourly straight time rate for those hour6 worked beyond the 12 or 60 hour limitation. The employment of this remedy shall not be construed as an agreement by the parties that the Employer may exceed the 12 and 60 hour limitation with impunity.

As a means of facilitating the foregoing, the parties agree that excluding December, once a full-time employee reaches 20 hours of overtime within a service week, the employee is no longer available for any additional overtime work. Furthermore, the employee's tour of duty shall be terminated once he or she reaches the 60th hour of work, in accordance with Arbitrator Mittenthal's National Level Arbitration Award on this issue, dated September 11, 1987, in case numbers H4N-NA-C 21 (3rd issue) and H4C-NA-C 27.

Holiday work

The parties agree that the Employer may not refuse to comply with the holiday scheduling "pecking order" provisions of Article 11, Section 6 or the provisions of a Local Memorandum of Understanding in order to avoid payment of penalty overtime.

The parties further agree to remedy past and future violation6 of the above understanding a6 follows:

1. Full-time employees and part-time regular employees who file a timely grievance because they were improperly assigned to work their holiday or designated holiday will be compensated at an additional premium of 50 percent of the base hourly straight time rate.

2. For each full-time employee or part-time regular employee improperly assigned to work a holiday or designated holiday, the Employer will compensate the employee who should have worked but was not permitted to do so, pursuant to the provisions of Article 11, Section 6, or pursuant to a Local Memorandum of Understanding, at the rate of pay the employee would have earned had he or she worked on that holiday.

The above settles the holiday remedy question which was remanded to the parties by Arbitrator Mittenthal in his January 19, 1987 decision in H4N-NA-C 21 and HIN-NA-C 24.

William J. Downes
Director, Office of
Contract Administration
Labor Relations Department

DATE 10/19/88

Thomas A. Neil
Industrial Relation6 Director
American Postal Worker6
Union, AFL-CIO

DATE 10/19/88

Lawrence G. Hutchins
Vice President
National Association of
Letter Carriers, AFL-CIO

DATE 10/19/88

UNITED STATES POSTAL SERVICE
475 L'Enfant Plaza, SW
Washington, DC 20260

April 16, 1985

Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO
817 14th Street, N.W.
Washington, D.C. 20005-3399

Mr. Vincent W. Sombrotto
President
National Association of
Letter Carriers, AFL-CIO
100 Indiana Avenue, N.W.
Washington, D.C. 20001-2197

Gentlemen:

As confirmation of your concurrence that the following represents agreed upon positions on certain of the overtime issues the parties have discussed, please sign and return a copy of this letter.

A. The 12 hours per day and 60 hours in a service week are to be considered upper limits beyond which full-time employees are not to be worked.

B. The parties agree that local offices may discuss multiple overtime desired lists during the current local implementation process with a view toward local resolution of the issue.

C. The parties agree that employees on "sectional' overtime desired lists as identified through Article 30 may not be used in other 'sections" to avoid the payment of penalty pay.

D. For the purpose of the application of the overtime provisions, scheme study hours used by an employee pursuant to a voluntary bid are to be counted towards the daily and weekly work hour limitations. For example,

if an overtime desired list employee who would otherwise be available for 12 **hours work on** a particular day is brought **in** *for* 1 hour scheme study before tour, that employee would be considered to be available for 11 additional **work hours that particular day. If the** employee ultimately qualifies and is placed in the assignment, compensation **for** that hour **would be as if the employee** had worked that hour. If this "work hour" is in excess of the restrictions in Article **8,** Section **SF,** the compensation would be at the penalty rate.

If the employee fails to qualify, he or she is not entitled to any additional compensation or overtime opportunity for any overtime missed due to the employee being engaged in scheme study.

E. Grievances which involve interpretation of the new provisions of Article **8** will be held at the step where they presently reside in the grievance procedure. Newly filed grievances will be processed through Step 2 and held there.

Positions agreed to by the parties should be followed in disposing of **existing** grievances. Those interpretive issues remaining in dispute will be expeditiously placed before an arbitrator. Grievances involving those issues will ultimately be disposed of consistent with the arbitration award.

Sincerely,

Thomas J. Fritsch
Assistant Postmaster General
Labor Relations Department

Moe Biller
American Postal Workers Union, **AFL-CIO**

Vincent W. Sombrotto
National Association **of** Letter Carriers, AFL-CIO

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal workers Union, AFL-CIO and
National Association of Letter Carriers, AFL-CIO)

Re: Granting Step Increases

The parties agree that periodic step increases will not be withheld for reason of unsatisfactory performance and that all other aspects of the current step increase procedures remain unchanged, unless otherwise provided for by the 1990 National Agreement.

The Employee and Labor Relations Manual (ELM) shall be amended to conform with the above stated agreement.

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 1991 Award

Mr. Moe Biller
President
American Postal Workers Union, AFL-CIO
1300 L Street, N.W.
Washington, DC 200054128

Mr. Vincent R. Sombrotto
President
National Association of Letter Carriers, AFL-CIO
100 Indiana Avenue, N.W.
Washington, DC 20001-2197

Gentlemen:

During 1990 negotiations, the Unions made the Postal Service aware of possible problems concerning the adequacy of notification being provided to APP eligible individuals. In an effort to resolve any possible problems, the Postal Service will revise the notification information which is currently sent to Annuity Protection Plan (APP) recipients with the first APP payment. The purpose of the revision is to ensure that survivors or beneficiaries know to contact the Postal Service to receive all available APP benefits. The notification information will be revised to include the following statement:

IMPORTANT

This document should be kept with other important personal papers. In the event of your death, your survivors or beneficiaries should contact the Retirement Branch, Minneapolis Postal Data Center, Twin Cities AMP, Minnesota 55111-9620 (Phone: 612-725-1467) to ensure they receive any benefits to which they may be entitled.

Sincerely,

Joseph J. Mahon, Jr.

Date: Printed in 1990 Agreement

March 1, 1996

Mr. William Burrus
Executive vice President
American Postal Workers
Union, AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4107

Dear Bill:

This will serve to respond to your letter to me dated January 30, 1996, and the December 18, 1996, Step 4 grievance over the Annuity Protection Program prompted by my earlier December 11, 1995, letter to you. Prior to Christmas, we discussed this issue over the telephone and discovered that we had a common understanding of this program and that no Step 4 American Postal Workers Union, AFL-CIO (APWU) grievance needed to be pursued. I will try to set forth below our mutual understanding.

The 1994 APWU-USPS National Agreement does not contain a memorandum on Annuity Protection which was executed for each labor contract since 1981. This is the case because we are sunsetting the Annuity Protection Program due to the fact that the COLA paid under the 1991 Agreement was rolled in at the beginning of the 1994 Agreement consistent with our pre-1981 practice and thus, there is no delay in rolling in the COLA as was the case since the 1981 Agreement.

The 1987 Agreement COLA ($2517) was rolled in to basic pay in February 1995 pursuant to Article 9.6.C for those not eligible for earlier roll in. The question remains are these career employees covered by the February 1995 roll in ($2517) protected by Annuity Protection if they experience optional or disability retirement or death prior to February 19987 The answer is in the affirmative. The Annuity Protection Program Memorandum on page 270 of the 1990 Agreement (Handbook EL-901) remains in effect and governs the calculation of either retirement or death benefits through February 1998 for this class of employee. In light of the foregoing, the APWU Step 4 grievance filed by you dated December 18, 1995, on this subject is rendered resolved and considered to be withdrawn by the Postal Service.

AS to the second point in your January 30, 1996, letter, the Postal Service contracted with an outside tax attorney/CPA to advice us on whether to issue W-2s or 1099s. We were advised to use W-2s based on a review of Internal Revenue Service (IRS) Tax Code, Sections 3401-3405.

Sincerely,

D. Richard Froelke, Manager
Negotiations Planning and Support

I concur:

William Burrus
Executive Vice President
American Postal workers
Union, AFL-CIO

3-5-96
Date

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE

AND THE

AMERICAN POSTAL WORKERS' UNION, AFL-CIO

Re: Lump Sum Eligibility

For payment **of the lump sums specified in the Opinion and Award of the Clarke Interest Arbitration Board issued October 1, 1995, the patties agree to apply the criteria for eligibility used in payment of the 1990 one-time cash payments. These criteria are set forth in the Memorandum of Understanding of June 18, 1991 and letters dated July 19, 1991 and September 9, 1991 (as attached).**

We further agreed that this is without prejudice to the position of either party on any other issue currently pending.

Dated:

Anthony J. Vegliante
Manager
Contract Administration
(APWUINPMHU)

William Burrus
Executive Vice President
American Postal Workers'
Union, AFL-CIO

December 1995

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE

AND THE

JOINT BARGAINING COMMITTEE

(AMERICAN POSTAL WORKERS UNION, AFL-CIO, AND

NATIONAL ASSOCIATION OF LETTER CARRIERS, AFL-CIO)

RE: ELIGIBILITY FOR ONE-TIME CASH PAYMENT AND ONE-TIME COLA CASH PAYMENT

The parties agree that they will establish at the national level a committee to review individual cases, brought directly to the committee by the union, where the union believes that application of the eligibility criteria set forth at Article 9.4.C.1 and 2 would produce inequitable results. The intent of the parties is not to deprive an employee of the one-time cash payment or one-time COLA cash payment solely because such employee is not in a pay status during the pay period immediately prior to the effective date of the one-time cash payment or one-time COLA cash payment. Some examples of where an employee would not be considered ineligible for the one-time cash payment or one-time COLA cash payment include:

A 14-day suspension which happens to fall exactly within the pay period immediately prior to the effective date of the one-time cash payment or one-time

COLA cash payment; Union-Officer leave Pursuant to Article 24, Section 2, or other short-term union detail: or short-tenn approved leave.

For the United States Postal Service

Joseph J. MaHon, Jr.
Senior Assistant Postmaster General
U.S. Postal Service

For the Unions

Moe Biller
President
American Postal Workers Union, AFL-CIO

Vincent R. Sombrotto
President
National Association of Letter Carriers, AFL-CIO

Date: June 18, 1991



UNITED STATES POSTAL SERVICE
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260

July 19, 1991

Mr. Moe Biller
President
American Postal Workers Union,
AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4128

Mr. Vincent R. Sombrotto
President
National Association of Letter
Carriers, AFL-CIO
100 Indiana Avenue, N.W.
Washington, DC 20001-2196

Subject: Eligibility for One-Time Cash Payment

Gentlemen:

This letter is in further regard to matters concerning the determination of eligibility for the one-time cash payment and the one-time COLA cash payment provided for ix the 1990 National Agreement. As you are aware, there were certain questions raised after the parties' executed the Memorandum of Understanding on this topic. Specifically, discussions involved establishing certain criteria which, if applied, would determine who was not eligible to receive the referenced payment.

It is our understanding that the following accurately reflects the parties complete understanding as to which employees would not be eligible for such payment:

o Employees who were AWOL for Pay Period 13 (June l-14, 1991).

o Employees who were in a LWOP or other nonpay approved leave status for the entire period from November 17, 1990, through June 14, 1991. Notwithstanding the above, employees who are members of the National Guard or reserve components of the Armed Forces who served on active duty during the Desert Shield/Storm operations are eligible for the one-time cash payments.

- Employees who, because of disciplinary action, are in a nonpay status from November 17, 1990, through June 14, 1991. If, pursuant to some modification, such disciplined employee is returned to pay status for any of the referenced period of time, such employee would then be eligible for the one-time cash payments as provided for in the 1990 National Agreement.

- All employees not declared ineligible by the above will be considered eligible for the cash payment.

If you agree that this accurately reflects our understanding, please sign below. I am providing three signed copies to the APW and ask that they sign and forward all three copies to the NALC who, after signing, should forward one of the fully executed documents to the APWU and one to the Postal Service.

Please contact Vince Drumb at 268-3812, should you have any questions concerning the foregoing.

Sincerely,

Sherry A. Cagnoli
Assistant Postmaster General
Labor Relations Department

Moe Biller
President
American Postal Workers Union, AFL-CIO

Vincent R. Sombrotto
President
National Association of Letter Carriers, AFL-CIO

Enclosures

UNITED STATES POSTAL SERVICE
ROOM 9014
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100
TEL (202) 268-3816
FAX (202) 268-3074

SHERRY A CAGNOLI
ASSISTANT POSTMASTER GENERAL
LABOR RELATIONS DEPARTMENT

September 9,1991

Mr. Moe Biller
President
American Postal Workers Union,
AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4128

Mr. Vincent R. Sombrotto
President
National Association of Letter
Carriers, AFL-CIO
100 Indiana Avenue, N.W.
Washington, DC 20001-2196

Gentlemen:

This letter is in further regard to matters concerning the determination of eligibility for the one-time cash payment and the one-time COLA cash payment provided for in the 1990 National Agreement. As you are aware, the parties discussed the need to further clarify employees' eligibility to receive the one-time cash payments, and it is our understanding that the following points of clarification on eligibility for payment were agreed to by the parties:

- To be eligible for payment, an employee must be on the rolls of the Postal Service as of the date of the Opinion and Award of the Board of Arbitrators, i.e., June 12, 1991.

- An employee who was in a probationary employment status on the effective date of the Award, i.e., June 12, 1991, will not be eligible to receive the one-time cash payment a.

- Nonprobationary full-time or hourly rate employees who are members of the National Guard or reserve components of the National Guard or reserve components of the Armed Forces who served on active duty during the Desert Shield/Storm operations are eligible for the full amount of the one-time cash payments.

If you agree that this accurately reflects our understanding, please sign below. I am providing three signed copies to the APWU and ask that they sign and forward all three copies to the NALC who, after signing, should forward one of the fully executed documents to the APWU and to the Postal Service.

Sincerely,

Sherry A. Cagnoli

Moe Biller
President
American Postal Workers Union, AFL-CIO

Vincent R. Sombrotto
Pteridents
National Association of Letter Carriers, AFL-CIO

Enclosure3

6/13/90

IN THE MATTER OF THE ARBITRATION)
)
Between)
)
AMERICAN POSTAL WORKERS UNION, AFL-CIO,)
)
and) Case No. H7C-NA-C 39
)
NATIONAL ASSOCIATION OF LETTER CARRIERS, AFL-CIO,)
)
and)
)
UNITED STATES POSTAL SERVICE.)

MEMORANDUM OF SETTLEMENT

1. The United States Postal Service (USPS'. , American *Postal Workers Union,* AFL-CIO (APWU) and the National Association of Letter Carrier+, AFL-CIO (NALC) hereby agree to a full, final and binding resolution of the above-referenced national level grievance. All those *grievance* matters currently pending which specifically challenge the step placement of an affected employee who has been promoted to a higher grade and subsequently rearsigned to the employee's former grade will be revieved and resolved *in* accordance with *this* Memorandum of Settlement, except that rrparate issues in those cases not within the scope of this Settlement Agreement are to be handled by the parties in accordance with the usual *grievance* arbitration procedure.

2. As a consequence of the current promotion practice, some employees promoted from step6 A, B and C (referred to *herein as* affected employees) , in some pay periods receive less compensation *than* if they had not been promoted and had remained

in the former grade. To address this promotion pay anomaly, USPS, APWU and NALC agree to the followlng principle:

> No employee will, as a consequence of a promotion, at any time be compensated less than that employee would have earned if the employee had not been promoted but had, instead, merely advanced in step increments in that employee's grade as a result of fulfilling the waiting time requirements necessary for step increaser. This includes affected employees vho are or vere promoted to a higher grade and subsequently reassigned to their former grade.

3. *Affected* employees will be paid in accordance with the following principle:

> For each pay period followlng the promotion the employee's basic salary will be compared to the basic salary the employee vould have received for that pay period if the employee had not been promoted. For those periods when the latter amount is higher the difference will be paid to the employee in a one-time lump rum payment.

Employees affected during the 1984-87 or 1987-90 National Agreements shall be paid a lump sum *from* a $80 Million fund ● stabli8hed for this special purpose. APWU and NALC will vork directly vith USPS to develop a method to determine on a mutual basis vhich affected promoted employees will share in the fund, the amount of the lump sum payment for each employee and the timing of its issuance. It is intended that these one-time lump sum payments will satisfy all employee entitlements vhich arise

out of the *employment* relationship, including the 1984 and 1987 National Agreements due to the effect6 of the anomaly and this Memorandum of Settlement, a6 well as any possible FLSA payments; however, this document should not be construed a6 constituting any waiver Of possible individual right6 under that statute.

4. The USPS, APWU and NALC agree that promoted employees will continue to be placed in the grade level and step assigned in accordance with USPS's current practice with vaiting time rule6 applied in accordance with current practice.

5. *Effective* November 21, 1990, employees who have been promoted from Steps A, B or C and vho have been reassigned to their former *grade* will be placed in the step they would have been in, with credit toward their next step increase, a6 if all service had been in the original grade. Hovever, such employees who *are* subsequently repromoted will be placed in the steps they would have attained, vith credit toward their next step increase, as if they had remained continuously in the higher grade since *the* original promotion,

6. Promoted employees, whether promoted before or after the expiration of the 1987 National Agreement, vho experience pay anomalies after the term of the 1987 National Agreement will be entitled to a remedy (or remedies) in accordance with the principle6 stated above. However, the parties agree that this

paragraph does not create any liabilities after the term of the 1987-90 National Agreement if promoted employees do not experience pay anomalies.

Dated at Washington, D.C. this 13th day of June 1990.

Moe Biller	Vincent R. Sombrotto	Joseph J. Mahon, Jr.
President, APWU	President, NALC	Assistant Postmaster General

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Promotion Pay

The United States Postal Service (Postal Service) and the American Postal Workers Union, AFL-CIO (APW) hereby agree to a full, final and binding resolution of all issues which remain in dispute and which arise from the interpretation and application of the June 13, 1990 Memorandum of Settlement reached in Case No. H7C-NA-C 39.

1. On June 13 1990 the American Postal Workers Union, AFL-CIO, (APWU) the National Association of Letter Carriers, AFL-CIO, (NALC) and the Postal Service entered into a Memorandum of Settlement to resolve what became known as the Promotion Pay dispute.

2. The Memorandum of Settlement provided for the creation of a monetary fund (JBC Fund), to be used for the resolution of JBC promotion pay claims. Effective upon the signing of this Memorandum of Understanding (MOU), the APWU's pro rata share of the JBC Fund will be removed for the purpose of creating an independent "APWU Fund". The APWU's pro rata share of the JBC Fund has been determined to be seventy-eight and six tenths (78.6) per cent.

3. The Postal Service agrees that any money currently held in the JBC Fund which has been transferred to the "APWU Fund" to pay for the employer's portion of FICA tax payments is hereby released and considered available for distribution to APWU employees affected by the promotion pay anomaly. The parties further agree that the provisions of this paragraph resolve any and all claims by the APW relative to the employer's portion of FICA tax payments in the JBC Fund.

4. The Postal Service agrees to add Two Million, Three Hundred Thousand Dollars ($2,300,000) to the "APWU Fund".

5. Effective twelve (12) full pay periods after the signing of this MOU, salary history corrections for affected employees will be processed for a basic pay adjustment. Each pay period within the reconstructed salary history will be compared with the corresponding pay period in the actual salary history. All periods in which the employee is overpaid will be offset by those periods, if any, that the employee was underpaid. The employee will receive any positive balance in the form of a lump sum payment in a subsequent pay period. Negative balances will be automatically waived.

6. If the application of the "new" change to lower level and repromotion rules (established June 13, 1992) results in the employee experiencing an immediate reduction in pay, the employee will be frozen in their current step until such time as the employee is scheduled to advance to the next higher step in accordance with the reconstructed step progression.

7. The parties will jointly develop a method to liquidate the newly created "APWU Fund" in an expeditious manner. The development of such liquidation procedures shall be governed by the principle of rapid payment at the lowest possible administrative cost.

8. The APWU hereby agrees to withdraw from the following cases which are pending national level arbitration: Grievance Nos. HOC-NA-C 2, HOC-NA-C 20, HOC-NA-C 34, and HOC-NA-C 40. This settlement is made without prejudice or precedent with regard to either party's position on the subject matters addressed herein.

Moe Biller
Moe&Biller
President
American Postal Workers
Union, AFL-CIO

Dated: July 21, 1994

Anthony J. Vegliante
Anthony J. Vegliante
Manager, Grievance & Arbitration
Labor Relations

Dated: 7/21/94

ADDENDUM TO
MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION. AFL-CIO
DATED JULY 21, 1994

RE: Promotion Pay

The United States Postal Service (Postal Service) and the American Postal Workers Union, AFL-CIO (APWU) hereby agree to amend the July 21, 1994 Memorandum of Understanding RE: Promotion Pay in the following fashion:

1. Item #4 will be changed **from:**

The Postal Service agrees to add Two Million, Three Hundred Thousand Dollars ($2,300,000) to the "APWU Fund".

to:

The Postal Service agrees to add Two Million, Four Hundred Thousand Dollars ($2,400,000) to the "APWU Fund".

The parties hereby agree this Addendum shall be a full, **final** and binding resolution of all disputes related to the pro rata distribution of the JBC Fund and all disputes related to the timely implementation of the July 21, 1994 Memorandum of Understanding. The parties further agree that all other aspects of the July 21, 1994 Memorandum of Understanding remain in full force and effect.

William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO

Dated: 2/15/95

Anthony J. Vegliante
Manager, Grievance & Arbitration
Labor Relations

Dated: 2/8/95

UNITED STATES
POSTAL SERVICE

July 17, 1996

William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO
1300 L Street, N.W.
Washington, D.C. 20005-4107

Subject: Settlement of Pay Anomaly Overpayments

Dear Bill:

me parties recognize that approximately 468 employees were erroneously overpaid regarding payments for pay anomaly issues. In full and complete settlement of any and all issues in any forum arising out of such overpayments and subsequent collection efforts by the Postal Service the parties agree as follows:

1. Any monies collected by the Postal Service as of two weeks after the date of this settlement shall not be contested in any forum.

2. Any monies not already collected by the Postal Service as of two weeks after the date of this settlement will not be collected.

3. Any and all grievances arising out of pay anomaly over payment and application of ELM Section 460 are hereby withdrawn.

Please indicate your concurrence with the above terms by signing your name below.

Sincerely,

John W. Dockins
Labor Relations Specialist

William Burrus — 7-18-96
William Burrus — Date
Executive Vice President
American Postal Workers
Union, AFL-CIO

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO and
National Association of Letter Carriers, AFL-CIO)

Re: Annual Leave Carryover

The parties agree that, as soon as practicable after the signing of the 1990 National Agreement, the applicable handbooks and manuals will be modified to provide revised regulations for annual leave carryover as follows:

(a) Regular work force employees covered by this agreement may carry over 440 hours of accumulatedannual leave beginning with leave carried over from leave year 1990 to leave year 1991.

(b) Employees who fall under the provisions of Public Law 83-102 and who have maintained a carryover of more than 440 hours cannot increase their present ceiling.

(c) The parties agree that ELM 5 12.73d shall be changed to reflect that any employee covered by the APWU/NALC National Agreement is not paid for annual leave in excess of 55 days. In all other respects, the ELM provisions for payment of accumulated leave are not changed because of this Memorandum.

Date: Incorporated into 1990 Agreement by Arbitrator Mitthenthal's June 12, 199 1 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(The American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: PTF Court Leave

1. Effective September 26, 1987, part-time flexible employees who have completed their probationary period shall be eligible for court leave as defined in Employee and Labor Relations Manual Part 516.1 and Part 516.31.

2. Appropriate provisions of the applicable handbooks and manuals shall be amended to carry out these changes consistent with the principles expressed in paragraphs 3, 4, and 5 below. The handbooks and manuals, including Part 5 16 of the Employee and Labor Relations Manual, shall be amended pursuant to Article 19, except that the sixty (60) day notice of such changes shall be waived.

3. A part-time flexible employee will be eligible for court leave if the employee would otherwise have been in a work status or annual leave status. If there is a question concerning the status, the part-time flexible employee will be eligible if the employee was in work status or annual leave status on any day during the pay period immediately preceding the period of court leave.

4. If eligibility is established under paragraph 3, the specific amount of court leave for an eligible part-time flexible employee shall be determined on a daily basis as set forth below:

   a. If previously scheduled, the number of straight-time hours the Employer scheduled the part-time flexible employee to work;

   b. If not previously scheduled, the number of hours the part-time flexible employee worked on the sameservice day during the service week immediately preceding the period of court leave;

   c. If not previously scheduled and if no work was performed on the same day in the service week immediately preceding the period of court leave, the guarantee as provided in Article 8, Section 8, of the National Agreement, provided the part-time flexible would otherwise have been requested or scheduled to work on the day for which court leave is requested.

5. The amount of court leave for part-time flexible employees shall not exceed 8 hours in a service day or 40 hours in a service week.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Leave Policy

The parties agree that local attendance or leave instructions, guidelines, or procedures that directly relate to wages, hours, or working conditions of employees covered by this Agreement, may not be inconsistent or in conflict with Article 10 or the Employee and Labor Relations Manual, Subchapter 5 10.

Date: Incorporated into 1990 Agreement by Arbitrator Mitthenthal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Leave Sharing

The Postal Service will continue a Leave Sharing Program during the term of the 1994 Agreement under which career postal employees are able to donate annual leave from their earned annual leave account to another career postal employee, within the same geographic area serviced by a postal district. Single donations must be of 8 or more whole hours and may not exceed half of the amount of annual leave earned each year based on the leave earnings category of the donor at the time of donation. Sick leave, unearned annual leave, and annual leave hours subject to forfeiture (leave in excess of the maximum carryover which the employee would not be permitted to use before the end of the leave year), may not be donated, and employees may not donate leave to their immediate supervisors.

To be eligible to receive donated leave, a career employee (a) must be incapacitated for available postal duties due to serious personal health conditions including pregnancy and (b) must be known or expected to miss at least 40 more hours from work than his or her own annual leave and/or sick leave balance(s), as applicable, will cover, and (c) must have his or her absence approved pursuant to standard attendance policies. Donated leave may be used to cover the 40 hours of LWOP required to be eligible for leave sharing.

For purposes other than pay and legally required payroll deductions, employees using donated leave will be subject to regulations applicable to employees in LWOP status and will not earn any type of leave while using donated leave.

Donated leave may be carried over from one leave year to the next without limitation. Donated leave not actually used remains in the recipient's account (i.e., is not restored to donors). Such residual donated leave at any time may be applied against negative leave balances caused by a medical exigency. At separation, any remaining donated leave balance will be paid in a lump sum.

(The preceding Memorandum of Understanding, Leave Sharing, applies to Transitional Employees.)

NOTE: GRIEVANCE NUMBER Q90C-4QC 940138 18 IS WITHDRAWN.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Paid Leave and LWOP

The parties agree that an employee need not exhaust annual leave and/or sick leave before requesting leave without pay. As soon as practicable after the signing of the 1990 National Agreement, Employee and Labor Relations Manual (ELM) Exhibit 514.4(d) will be amended to conform to this Agreement.

The parties further agree that this Memorandum does not affect the administrative discretion set forth in ELM Part 5 14.22, nor is it intended to encourage any additional leave usage.

Grievance Number H7C-NA-C 6 1 is withdrawn.

(The preceding Memorandum of Understanding, Paid Leave and LWOP, applies to APWU Transitional Employees.)

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Sick Leave for Dependent Care

The parties agree that, during the term of the 1994 National Agreement, sick leave may be used by an employee to give care or otherwise attend to a family member having an illness, injury or other condition which, if an employee had such condition, would justify the use of sick leave by that employee. Family members shall include son or daughter, parent, and spouse as defined in ELM Section 515.2. Up to 80 hours of sick leave may be used for dependent care in any leave year. Approval of sick leave for dependent care will be subject to normal procedures for leave approval.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The undersigned parties negotiated a Memorandum of Understanding (MOU) entitled "LWOP in Lieu of **SL/AL"** that allows an employee to request Leave Without Pay (LWOP) prior to exhausting annual or sick leave. The following serves as a guide for administering these newly negotiated MOU provisions.

The basic intent of this MOU is to establish that an employee need not exhaust annual or sick leave prior to requesting LWOP. One example of the term "need not exhaust" is when an employee requests maternity or paternity leave and was previously required by local management to exhaust their sick or annual leave prior to receiving LWOP. An employee now has the option of requesting LWOP in lieu of sick or annual leave when they reach the point where they may exhaust their leave benefits.

It was not the intent of this MOU to increase leave usage (i.e. approved time off). Moreover, it was not the intent that every or all instances of approved leave be changed to LWOP thus allowing the employee to accumulate a leave balance which would create a "use or lose" situation. Furthermore, the employer is not obligated to approve such leave for the last hour of the employee's scheduled workday prior to and/or the first hour of the employee's scheduled workday after a holiday.

This **MOU** does not change Local Memoranda of Understanding regarding procedures for **prescheduling** annual leave for choice or nonchoice vacation periods. It also was not intended to provide employees the opportunity to preschedule LWOP in lieu of annual leave for choice or nonchoice periods. An employee may at a later date request to change the prescheduled annual leave to LWOP, subject to supervisor approval in accordance with normal leave approval procedures. However, this option is available to an employee only if they are at the point of exhausting their annual leave balance.

This MOU does not establish a priority between incidental requests for annual leave or LWOP when several employees are simultaneously requesting such leave. The normal established local practice prevails, i.e., whether leave requests are approved in order of seniority or on a first come first serve

basis or other local procedure. This memorandum of understanding has no effect on any existing leave approval policies or other leave provisions contained in the Employee and Labor Relations Manual or other applicable manuals and handbooks.

William J. Downes
Director
Office of Contract
Administration
Labor Relations Department
U.S. Postal Service

William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO

11-14-51
Date

MEMORANDUM OF UNDERSTANDING BETWEENTHE UNITED STATES POSTAL SERVICE AND THE JOINT BARGAINING COMMITTEE (American Postal workers union, AFL-CIO, National Association of Letter Carriers, AFL-CIO)

The parties agree that, as soon as practicable after signing of the 1984 National Agreement, the applicable handbooks and manuals will be modified to provide revised regulations for part-time flexible employees (PTFs) in regard to administrative leave in Act of God situations. Upon the effective date of this agreement, the new criteria for determining the amount of administrative leave (Act of God) for PTFs will be:

1. Administrative leave will only be granted up to 8 hours per day. Combinations of straight time work and adminiitive leave will not exceed 8 hours in a service day;
2. Administrative ieave, when granted, will be for the number of hours the PTF was scheduled to work.
3. If there is a question as to the scheduled work hours, the PTF is entitled to the number of hours (whichever is greater):
   a. the PTF worked on the same service day in the previous service week;
   b. the Employer scheduled the PTF to work;
   c. the guarantee, as provided in Article 8, Section 8, of the National Agreement.

Date: Incorporated into December 24, 1984 Award.

* * *

MEMROANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Implementation of Article 12.3.A Limitations (5 Bids)

The parties agree that all employees represented by the American Postal Workers Union may be designated a successful bidder no more than five (5) times as provided under Article 12.3.A.

The above is effective November 2 1, 1994, for the life of the next contract.

Date: December 1,1994

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Article 12.5.C.5.b(6)

. . . In the Clerk Craft, an employee(s) involuntarily reassigned shall be entitled at the time of such reassignment to file a written request to return to the first vacancy [in the same or lower salary level] in the craft and installation from which reassigned. Such request for retreat rights must indicate whether the employee(s) desires to retreat to the same, lower, and/or higher salary level assignment and, if so, what salary level(s). The employee(s) shall have the right to bid for vacancies within the former installation and the written request for retreat rights shall serve as a bid for vacancies in the level from which the employee was reassigned and for all residual vacancies in other levels for which the employee has expressed a desire to retreat. The employee(s) may retreat to only those [lower level] assignments for which the employee(s) would have been eligible to bid. If vacancies are available in the specified lower, higher or same salary level [and in the salary level], the employee will be given the option.

Repostings occurring pursuant to Article 37, Sections 3.A.4.a, 3.A.4.b, and 3.A.4.c, are specifically excluded from the application of this subsection.

Withdrawal of a bid or failure to qualify for a vacancy or residual vacancy terminates retreat rights to the level of the vacancy. Furthermore, employees(s) electing to retreat to a lower level are not entitled to salary protection.

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Cross Craft Reassignments

In instances where employees represented by the APWU will be involuntarily reassigned outside the installation, employees may be reassigned to other APWU crafts outside the installation. Such employees who meet the minimum qualifications will be afforded their option of available vacancies by seniority.

This memorandum does not affect any other rights that Motor Vehicle Craft employees may possess under the provisions of Article 12.

Date: August 19, 1992

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Transfers

The parties agree that the following procedures will be followed when career Postal employees request reassignment from one Postal installation to another.

Reassignments (Transfers)

A. Installation heads may continue to fill authorized vacancies first through promotion, internal reassignment and change to lower level, transfer from other agencies, reinstatements,etc., consistent with existing regulations and applicable provisions of the National Agreement.

B. Installationheads will afford full considerationto all reassignmentrequests from employees in other geographical areas within the Postal Service. The requests will be considered in the order received consistent with the vacancies being filled and type of positions requested. Such requests from qualified employees, consistent with the provisions of this memorandum, will not be unreasonably denied. Local economic and unemployment conditions, as well as EEO factors, are valid concerns. When hiring from entrance registers is justified based on these local conditions, an attempt should be made to fill vacancies from both sources. Except in the most unusual of circumstances, if there are sufficient qualified applicants for reassignment at least one out of every four vacancies will be filled by granting requests for reassignment in all offices of 100 or more man-years if sufficient requests from qualified applicants have been received In offices of less than 100 man-years a cumulative ratio of 1 out of 6 for the duration of the National Agreement will apply.

C. Districts will maintain a record of the requests for reassignment received in the offices within their area of responsibility. This record may be reviewed by the Union on an annual basis upon request. Additionally, on a semiannual basis local Unions may request information necessary to determine if a 1 out of 4 ratio is being met between reassignments and hires from the entrance registers in all offices of 100 or more man-years.

D. Managers will give full consideration to the work, attendance, and safety records of all employees who are considered for reassignment. An employee must have an acceptable work, attendance, and safety record and meet the minimum qualifications for all positions to which they request reassignment. Both the gaining and losing installation head must be fair in their evaluations. Evaluations must be valid and to the point, with unsatisfactory work records accurately documented.

1. For reassignments within the geographical area covered by a District or to the geographical area covered by adjacent Districts, the following applies: An employee must have at least eighteen months of service in their present installation prior to requesting reassignment to another installation. Employees reassigned to installations under the provisions of this memorandum must remain in the new installation for a period of eighteen months, unless released by the installation head earlier, before being eligible to be considered for reassignment again, with the following exceptions: 1.) in the case of an employee who requests to return to the installation where he/she previously worked; 2.) where an employee can substantially increase the number of hours (8 or more hours per week) by transferring to another installation and the employee meets the other criteria, in which case the lock-in period will be 12 months. Employees serving under craft lock-in periods per the provisions of the National Agreement must satisfy those lock-ins prior to being reassigned to other installations. These transfers are included in the 1 out of 4 ratio.

2. For all other reassignments, the following applies: An employee must have at least one-year of service in their present installation prior to requesting reassignment to another installation. Employees reassigned to installations under the provisions of this memorandum must remain in the new installation for a period of one year, unless released by the installation head earlier, before being eligible to be considered for reassignment again, except in the case of an employee who requests to return to the installation where he/she previously worked. Employees serving under craft lock-in periods per the provisions of the National Agreement must satisfy those lock-ins prior to being reassigned to other installations.

E. Installation heads in the gaining installation will contact the installation head of the losing installationand arrange for mutually agreeable reassignment and reporting dates. A minimum of thirty days notice to the losing office will be afforded. Except in the event of unusual circumstances at the losing installations, reasonable time will be provided to allow the installation time to fill vacancies, however, this time should not exceed ninety days.

F. Reassignments granted to a position in the same grade will be at the same grade and step. Step increase anniversaries will be maintained. Where voluntary reassignments are to a position at a lower level, employees will be assigned to the step in the lower grade consistent with Part 420 of the Employee and Labor Relations Manual.

G. Employees reassigned under these provisions will be reassigned consistent with the provisions of

the appropriate craft article contained in the National Agreement. Employees will not be reassigned to full-time regular positions to the detriment of career part-time flexible employees who are available for conversion at the gaining installation. Seniority for employees transferred per this memorandum will be established consistent with the provisions of the National Agreement.

H. Relocation expenses will not be paid by the Postal Service incident to voluntary reassignment. Such expenses, as well as any resulting interview expenses, must be borne by employees.

I. Under no circumstanceswill employees be requested or required to resign, and then be reinstated in order to circumvent these pay provisions, or to provide for an additional probationary period.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN
TEE AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND
THE UNITED STATES POSTAL SERVICE

It is agreed that the following procedures will be used in situations in which an employee, as a result of illness or injury or pregnancy, is temporarily unable to work all of the duties of his or her normal assignment. Instead, such an employee is working on:

1) light duty,
2) or limited duty;

Or is receiving:

1) Continuation of Pay (COP)
2) or compensation as a result of being injured on the job
3) sick leave
4) annual leave in lieu of sick leave
5) or Leave Without Pay (LWOP) in lieu of sick leave

I. Bidding

A) An employee who is temporarily disabled will be allowed to bid for and be awarded a preferred bid assignment in accordance with the provisions in the various craft articles of the Agreement, or where applicable, in accordance with the provisions of a local Memorandum of Understanding, provided that the employee will be able to fully assume the position within six (6) months from the time at which the bid is submitted.

B) Management may, at the time of submission of the bid or at any time thereafter, request that the employee provide medical certification indicating that the employee will be able to fully perform the duties of the bid-for position within six (6) months of the bid. If the employee fails to provide such certification, the bid shall be disallowed, and, if the assignment was awarded, the employee shall become an unassigned regular and the bid will be reposted. Under such circumstances, the employee shall not be eligible to re-bid the next posting of that assignment.

C) If at the end of the six (6) morth period, the employee is still unable to fully perform the duties of the bid-for position, management may request that the employee provide new medical certification indicating that the employee will be able to fully perform the duties of the bid-for position within the second six (6) months after the bid. If the employee fails to provide such new certification, the bid shall be disallowed and the employee shall become an unassigned regular and the bid will be reposted. Under such circumstances, the employee shall not be eligible to re-bid the next posting of that assignment.

D) If at the end of one (1) year from the submission of the bid the employee has not been able to fully perform the duties of the bid-for position, the employee must relinquish the assignment, and would then become an unassigned regular and not be eligible to re-bid the next posting of that assignment.

E) It is still incumbent upon the employee to follow procedures in the appropriate craft articles to request notices to be sent to a specific location when absent. All other provisions relevant to the bidding process will also apply .

F) If the bid is to an assignment that has other duties or requirements more physically restrictive or demanding than the employee's current assignment which, at the time of bidding, the employee cannot perform as a result of temporary physical restrictions, the employee's bid will not be accepted.

G) If the employee is designated the senior bidder for an assignment which requires a deferment period, the employee must be physically capable of entering the deferment period at the time of the bid and completing it within the time limits set forth in the applicable provisions of the National Agreement. Further, if the employee qualifies during the deferment period the employee must be capable of immediately assuming the duties of the assignment in accordance with all the provisions set forth in this Memorandum of Understanding. In accordance with this provision, if the assignment requires the demonstration of a skill(s), the employee must be able to demonstrate the skill(s) on the closing date of the posting.

Mr. William Burrus

II. Higher Level Pay

Employees who bid to a higher level assignment pursuant to the procedures described in the preamble and Part I, Bidding, above, will not receive higher level pay until they are physically able to, and actually perform work in the bid-for higher level position.

Sincerely,

George S. McDougald
General Manager
Grievance and Arbitration Division
Labor Relations Department
United States Postal Service

William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO

9-1-87
DATE

MEMORANDUM OF UNDERSTANDING
BETWEEN THB
UNITED STATES POSTAL SERVICE
AND THB
AMERICAN **POSTAL** WORKERS UNION, AFL-CIO

RE: Article 7, **Section** 3.A.

The parties will meet at the **regional** level, as much ac 6 months whenever possible, to identify the time period, general number of full-time vacancies, geographic area and craft, which will be withheld/reverted and applied to Article 7, **Section** 3.A (90/10 provisions).

The Union will be notified, at the regional level, of the exact numbers to be withheld, no less than 90 days prior to the involuntary reassignment of employees.

U.S. Postal Service

American Postal Workers Union, AFL-CIO

9-20-89
(Date)

9-20-89
(Date)

Attachment

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATED POSTAL SERVICE

AND THE

AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Retreat Rights - Article 12.5.C.4

The parties mutually agree that the following bidding procedures will apply when dark craft employees of **different** levels **comprise a section and excessed** employee have **expressed a** desire to **retreat** back to **their** former section.

1. **The** initial vacancies occurring within **a Section In the same salary level** from **which excessed** employees **have active retreat rights, when posted** are limited to employees within the section of the same salary level as the **excessed** employees.

2. The residual **vacancy that occurs** from one above is then **offered** to employees who have retreat rights to the section and who, **at the** time of **excessing**, were in **the** same salary level **as** *the* residual **vacancy** when **excessed**.

3. **If** vacancies remain after the offering of retreat rights to eligible employees, these **vacancies are posted for bid.**

4. **Vacancies** that occur within the **section that** am not of the same **salary level** of the **excessed** employee with retreat right6 are posted for bid.

Mr. Anthony J. Vegliante
Manager, Grievance and Arbitration
Labor Relations

Mr. William Burrus
Executive Vice President
American Postal **Workers** Union

Date 5/27/94

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The United States Postal Service and the American Postal Workers Union, AFL-CIO (Parties), mutually agree that Arbitrator Carlton Snow's award in Case Number H7N-4Q-C 10845 shall be applied in a prospective fashion effective with the date of the award.

Accordingly, employees who are excessed into APWU represented crafts (Clerk, Maintenance, Motor Vehicle, and Special Delivery Messenger) after December 19, 1991, under the provisions of Article 12.5.C.5, shall begin a new period of seniority.

This Memorandum is without precedent or prejudice to the position of either party concerning the issue of prospective or retroactive application of arbitration awards.

Stephen W. Furgeson
General Manager
Grievance and Arbitration Division

Date April 1, 1992

Hoe Biller
President
American Postal Workers Union, AFL-CIO

Date April 16, 1992

MEMORANDUM OF UNDERSTANDING
BETWEEN
UNITED STATES POSTAL SERVICE
AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: LSM Downsizing

This Memorandum of Understanding confirms an understanding reached between the parties regarding the potential conflict between Articles 12 and 37 of the collective bargaining agreement as it pertains to involuntary reassignments and the rights of preference eligible APWU Distribution Clerks, Machine, MPLSM employees under the Veteran's Preference Act.

The parties agree whenever it becomes necessary to involuntarily reassign employees in accordance with Article 12 and/or assign in accordance with Article 37 that would result in preference eligible employees being involuntarily placed in lower level assignments, local management and union officials will comply with this agreement.

If a Local Memorandum of Understanding regarding the downsizing of the MPLSM operation has been agreed to in an installation, that agreement will continue in force and not be modified by this agreement.

Section 1. Notification to the union will be provided in accordance with the provisions of Article 12, Section j.B.4, which states:

> "The Union shall be notified in advance (as much as six (6) months whenever possible), such notification to be at the regional level, except under A.4. above, which shall be at the local level."

When projecting the downsizing of the MPLSM operation, management will identify Distribution Clerk Machine, MPLSM, duty assignments, which will be impacted *over* the next 24 months.

Section 2. Management will review casual, TE, PTF, PTR and overtime work hours for the possible establishment of additional full-time duty assignments to accommodate impacted employees. The purpose of this section is to attempt to provide a sufficient number of full-time duty assignments for the placement of impacted employees only.

Section 3. Preference eligibles and non-preference eligibles are ***not required*** to bid lower level duty assignments. However, they may voluntarily bid lower level duty assignments and, if successful, will be provided Saved Grade, in accordance with Article 4, Section 3.

Section 4. Impacted non-preference eligible employees will be encouraged to bid on the duty assignments posted in Section 5 below and are subject to assignment to vacancies per Sections 11 and 13 below. If either preference eligible or non-preference eligible employees are designated a successful bidder or assigned involuntarily to a vacancy pursuant to Article 37, Section 4, the employees will be placed in their new assignment at a date to be determined by management. However, the employees will be released for placement no later than 120 days from the date of this Memorandum of Understanding or within seven days of the termination of the MPLSM operations in the installation, whichever is later.

Section 5. Full-time vacancies and newly established duty assignments will be posted off&e-wide to full-time employees eligible to bid, 30 days prior to the abolishment of the first LSM crew. Residual vacancies and duty assignments that become vacant as a result of this one-time office-wide posting will be used for the placement of unencumbered preference eligible employees in accordance with Section 11 below. If there are any remaining vacancies after the placement of preference eligibles, the vacancies, excluding residuals, will be posted pursuant to Article 37.

Memorandum of Understanding RLT/AJV
RE: LSM Downsizing; August 23, 1996.

Section 6. Management will abolish the identified duty assignments and the provisions of Article 12, Section 5.C.4. applied. The impacted employees will be reassigned as unassigned Distribution Clerks, Machine, MPLSM, 30 days after the office-wide posting.

Section 7. Except as provided for in C. below, Distribution Clerks, Machine, MPLSM, in impacted offices who voluntarily bid to lower level duty assignments between the signing date and implementation of this memorandum in their installation, will be given the following options:

A. To be released pursuant to Section 4. with saved grade, up to the impacted number;

B. Released in accordance with Article 37, Section 3.F.2., 3.F.3.C or 3.F.4.C or local memorandum of understanding without saved grade.

C. Management may retain scheme qualified employees in their present duties for a period not to exceed 120 days and if retained such employees are entitled to saved grade.

Section 8. The provisions of Article 37 and Local Memorandum of Understanding that provide time limits for assigning **employees (successful bidders, then currently qualified, etc.) into duty assignments will not apply for purposes of this agreement.**

Section 9. **The bidding limitation contained in Article 12, Section 3.A. and bidding restrictions contained in Article 37 will be waived for Distribution Clerk, Machine,** employees within their category for the application of Section 6 and 14 of the memorandum.

Section 10. Impacted Distribution Clerk, Machine, MPLSM employees who are successful bidders to or who are involuntarily assigned to lower level duty

assignments, will be provided saved grade in accordance with Article 4, Section 3. Non impacted Distribution Clerks, Machine, MPLSM, who successfully bid to lower level vacancies and their MPLSM duty assignments are filled by impacted preference eligibles, will receive saved grade.

Section 11. After having awarded duty assignments pursuant to Section 5 above, when making involuntary assignments pursuant to Article 37, unencumbered preference eligible employees will be assigned to the same level duty assignments prior to the assignment of unencumbered non-preference eligible employees to residual vacancies. Seniority will be used when assigning unencumbered employees provided it does not prohibit the assignment of all preference eligible employees.

Section 12 The 90 day restriction on assigning unencumbered full-time Distribution Clerks, Machine, MPLSM, contained in Article 37, Section 4.C. 1 .a., (2) (3), is waived.

Section 13. When tilling lower level residual clerk craft duty assignments in accordance with Article 37.4.C.2., unencumbered preference eligible employees will be passed over for the purpose of involuntary assignment to lower level.

Section 14. If, after the completion of the above, unencumbered employees in the clerk craft who were identified as impacted but were not successful bidders pursuant to Section 5 above or involuntarily assigned pursuant to Sections 11 or 13 above and who become successful bidder on a subsequent posting to a lower level duty assignment, will be provided saved grade in accordance with Article 4, Section 3.

Section 15. If involuntary reassignments pursuant to Article 12, Section 5.C.5.a. and/orb. are necessary, preference eligible employees will be given priority placement in residual vacancies in the same level and will be passed over when making reassignments to lower level vacancies.

Memorandum of Understanding RLT/AJV
FE: LSM Downsizing; August 23, 1996.

Section 16. If preference eligible employees remain after completion of the above, such employees will remain unencumbered in their salary level with priority placement rights to residual vacancies in their salary level.

Section 17. Except in those installations where the downsizing of the MPLSM operations is not planned, Distribution Clerks, Machine, who have since July 8, 1995 been declared successful bidder or were involuntarily downgraded for non-disciplinary reasons, will be provided saved grade pursuant to Section 10 above effective the first day of the first pay period (August 31, 1996) following the signing of this memorandum. The local union will identify the employees who may be eligible and local management will verify their eligibility as it pertains to this provision, not later than 60 days from the signing of this memorandum. Employees who were provided saved grade prior to this memorandum and have since lost their saved grade entitlement due to not bidding or applying as required will not be covered by this provision.

Section 18. If an insufficient number of vacant duty assignments are available within the craft to accommodate the impacted employees due to the downsizing of the MPLSM operation at an installation, the Area Manager, Human Resources and the APWU Regional Coordinator will meet to establish a procedure to solicit full-time volunteers from employees in the impacted salary level for reassignment. Vacancies will be identified as follows:

A. Commuting area

B. Within 100 miles of the losing installation.

C. Beyond 100 miles of the losing installation.

D. Vacancies shall not be identified in offices with three (3) full-time clerks or less.

The established procedure will allow full-time volunteers to maintain their full-time status and their seniority established in accordance with Article 37, Section 2. D. 6. a. (1).

Section 19. If a dispute arises as a result of the application of this memorandum, a file

will be jointly developed locally and will be forwarded to Dispute Resolution Committee at the national level, pursuant to Article 15 of the National Agreement.

Section 20. The principles enumerated in this memorandum shall apply to full-time Distribution Clerk, Machine, SPLSM and part-time regular, Distribution Clerk, Machine, employees within their own category.

It is agreed that the above is without prejudice to the either party's position regarding the application of the saved grade provisions of Article 4., Section 3 and Article 37, Section 4.C.2.

This agreement is without prejudice to the positions of either party with regard to the application of the provisions of Article 6 and Article 12, and can not be cited except for enforcement of its provisions.

Anthony J. Vegliante
Manager, Contract
Administration
(APWU/NPMHU)

Dated: August 23, 1996

Moe Biller, President
American Postal Workers Union
Union, AFL-CIO

Dated: August 23, 1996

Memorandum of Understanding
RE: LSM Downsizing; August 23, 1996.

**MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE**

AND THE

**NATIONAL ASSOCIATION OF LETTER CARRIERS,
AFL-CIO**

AND THE

**AMERICAN POSTAL WORKERS UNION,
AFL-CIO**

The parties hereby agree to the following:

1. By accepting a limited duty assignment, an employee does not waive the opportunity to contest the propriety of that assignment through the grievance procedure, whether the assignment is within or out of his/her craft-

2. An employee whose craft designation is changed as a result of accepting a limited duty assignment and who protests the propriety of the assignment through the grievance procedure shall be represented during the processing of the grievance, including in arbitration, if necessary, by the union that represents his/her original craft.

For example, if a letter carrier craft employee is given a limited duty assignment in the clerk craft, and grieves that assignment, the employee will be represented by the NALC. If a clerk craft employee is given a limited duty assignment in the letter carrier craft, and grieves that assignment, the employee will be represented by the APWU.

Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relations

Date: _____

Lawrence A. Hutchins
Vice President
National Association of
Letter Carriers, AFL-CIO

Date: _____

William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO

Date: 1-29-97

MEMORANDUM OF UNDERSTANDING BETWEEN THE UNITED STATES POSTAL SERVICE AND JOINT BARGAINING COMMITTEE

(American Postal Workers Union, AFL-CIO, and National Association of Letter Carriers, AFL-CIO)

The U.S. Postal Service and the American Postal Workers Union, AFL-CIO, and the National Association of Letter Carriers, AFL-CIO, agree to the attached changes to Section 825.7 of the Employee and Labor Relations Manual.

825.7 Deficiencies

.71 Hazard Classifications

• • •

.72 Reporting. List deficiencies on Form 1784C, *Safety Deficiency Report,* include the standard or requirement violated, a description of the deficiency, and the classification of h-d, and send to the installation head of the facility inspected no later than 10 days after the completion of the closing conference. Send copies to the employee respresentative(s) who participated in the closing conference and/or the local safety and health committee.

.73 Abatement Committee

• • •

.733 All deficiencies determined to require more than 20 days to correct, must be reported immediately, along with the abatement plan through management channels to the District Manager, with a copy to the Regional Director, Employee and Labor Relations-

• • •

The old .735 is deleted,

The old ,736 is renumbered .735.

The old ,737 is renumbered ,736.

The old .738 is renumbered ,737.

• • •

.74 Posting. Immediately upon receipt by the installation head, that part of the Form 1784-C which applies to the specific unsafe condition must be conspicuously posted at or near the location of such condition until it has been abated, or for 3 working days, whichever is longer. The initial Form 1784-C must be removed and the amended Form 1784-C posted in its place immediately after the abatement committee has established abatement dates. In addition, a notice must be posted if any special procedures are in effect. Where, because of the nature of the facility's operations, it is not practicable to post the report at or near each such place, such report must be posted in a prominent place where it will be readily observed by all affected employees. Copies of Form 1784 will be maintained at the MSC safety office,

• • •

Date: Incorporated into December 24, 1984 Award.

The following constitutes full and complete settlement of all grievances and unfair labor practice charges initiated as a result of the "Policy on Personal Portable Radio or Tape Cassette Headphones" contained in Postal Bulletin #21379, dated November 25, 1982. All pending unfair labor practice charges concerning this matter, including 5-CA-14964-P, 1-CA-20635-P, 4-CA-13428-P, 9-CA-19165-P, 15-CA-8798-P, 19-CA-15344-P, 21-CA-21826-P, and 33-CA-6319-P, will be withdrawn.

The following applies to offices which permitted radio headset use prior to November 25, 1982:

> The use of radio headsets is permissible only for employees who perform duties while seated and/or stationary and only where use of a headset will not interfere with performance of duties or constitute a safety hazard. Employees will not be permitted to wear or use radio headsets under other conditions, including but not limited to: while walking or driving; near moving machinery or equipment; while involved in oral business communications; while in contact with, or in view of, the public; or where the headset interferes with personal protective equipment.

American Postal Workers Union, AFL-CIO

National Association of Letter Carriers, AFL-CIO

U.S. Postal Service

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: NLRB Dispute Resolution Process

The parties acknowledge the November 3, 1994, letter from the General Counsel of the National Labor Relations Board (NLRB) suggesting that the parties explore measures to reduce the number and repetitive nature of unfair labor practice charges before the Board. The parties are firmly committed to addressing these issues and have agreed to meet and discuss with each other and produce an agreement to resolve the issues raised in the NLRB General Counsel's correspondence. The parties have further agreed that the entire process of reaching an agreement on measures addressing these issues should be accomplished within forty-five (45) days of the settlement of the 1994 National Agreement.

Date: November 20, 1994

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Administrative Dispute Resolution Procedures

The U.S. Postal Service and the American Postal Workers Union, AFL-CIO (APWU) agree to establish Administrative Dispute Resolution Procedures (ADRP) to help resolve complex disputes as they arise during the course of the collective bargaining agreement. The ADRP will be used to resolve those disputes identified by the parties without the filing of any grievances. A listing of subjects for considerationin the ADRP will be submitted by the parties at the national level within 30 days following the effective date of this Memorandum of Understanding. By mutual agreement, the parties at the national level may continue to add subjects to the original listing.

For each subject(s), the Employer and the Union will designate individuals at the national level who will be responsible for discussing and, where possible, for resolving any disputes concerning the referenced subject(s). When a specific subject is under considerationin the ADRP, any grievance(s)concern that identified subj ect will be removed from the Grievance/ArbitrationProcedure and forwarded to the ADRP. Where a grievance(s) has been filed and the subject of that grievance subsequently comes under consideration by the ADRP, such grievance(s) will be removed and forwarded to the ADRP.

The national level designees will be responsible for meeting regularly to resolve pending disputes. No special forms, appeals or paper work will be necessary to utilize the ADRP. When the designees cannot agree upon a resolution, either party may declare an impasse. Each party will identify the issue in dispute in writing within 30 days after the declared impasse on the subject. The identified dispute will then be

placed on the appropriate arbitration docket.

The parties will develop specific instructionsconcerning the ADRP within 30 days after the effective date of this Memorandum of Understanding.

This Memorandum of Understanding will expire by its terms on November 20, 1998, unless extended by the parties.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Mediation Implementation

In recognition of the value of the local resolution of disputes, the United States Postal Service and the Union agree to provide voluntary mediation to local installations in an effort to improve the resolution of disputes and to enhance the labor/management relationship.

The mediation process will be incorporated into the National Agreement as new Article 15, Section 3. An official announcement will be jointly issued to the field when the mediation process is ready for implementation.

The parties shall develop a set of instructions for implementing the mediation process, including the method of selecting those individuals who will serve as mediators, as well as any relevant training requirements, within 30 days from the effective date of this Memorandum of Understanding.

The parties will meet to evaluate the mediation process after six months have elapsed from the effective date of this Memorandum of Understanding, as well as every 12 months thereafter, or as the need arises.

This Memorandum of Understanding shall expire by its terms on November 20, 1998.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE, THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO,
AND THE
NATIONAL ASSOCIATION OF LETTER CARRIERS,
AFL-CIO

Re: Step 4 Procedures

This memorandum represents the parties' agreement with regard to withdrawing a grievance from regional arbitration and referring it to Step 4 of the grievance procedure.

If a case is withdrawn from regional arbitration, referred to Step 4, and then remanded as non-interpretive, it will be returned directly to regional arbitration to be heard before the same arbitrator who was scheduled to hear the case at the time of the referral to Step 4. Additionally, if the hearing had opened, the case will be returned to the same stage of arbitration.

The party referring the case to Step 4 from arbitration on the day of the hearing or after the hearing opens shall pay the full costs of the arbitrator for that date unless another scheduled case is heard on that date by the arbitrator.

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Grievance/Arbitration Appeals

The parties agree that no later than July 20, 1995, arbitration panels will be established by Area, so each area will have its own panels. Grievance and arbitration appeals to the former Regional level will be made to the five grievance/arbitration processing centers located at the five Area offices previously identified as Regional Offices. Cases will be scheduled for arbitration by the parties in those offices.

This Memorandum is intended to continue the practices by which the above-referenced activities are currently being handled by the parties and is not intended to modify those practices.

Date: March 30, 1995

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Expedited Arbitration

The United States Postal Service and the American Postal Workers Union, AFL-CIO, agree to hear the following issues in the Expedited Arbitration forum:

1. Individual Overtime Issues
2. Withholding of Step Increases
3. Individual Leave Requests Concerning Annual Leave, Sick Leave, Leave Without Pay, Court Leave, Restricted Sick Leave, and Requests for Medical Certification
4. AWOL
5. Individual Holiday Scheduling Issues
6. Suspensions (Except Emergency Suspensions)
7. Article 25, Higher Level Assignments
8. Employee Claims
9. Letters of Demand of Less Than $2,000
10. Individual Clerk Craft Seniority Disputes
11. Such Other Matters as are Mutually Agreeable at the Area/Regional Level

This agreement does not change either party's right to refer an expedited case to regular arbitration in accordance with the applicable procedures of Article 15, Section 5.C., of the National Agreement.

The parties at the National level will continue to attempt to identify and agree upon additional issues to be referred to Expedited Arbitrationat the Area/Regional level in accordance with Section 5.C. of Article 15 of the National Agreement.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

SETTLEMENT AGREEMENT

The United States Postal Service, the American Postal Workers Union, AFL-CIO, and the Charging Parties, desire to settle an ongoing dispute between the parties, as reflected in the Tenth Amended Consolidated Complaint of board Case No. 3-CA-14483-l(P), et al. The parties agree as follows:

1. The parties recognize that the employer, the United States Postal Service, had a right to establish with Postal Service unions EI/QWL teams at the workplace. The American Postal Workers Union has no desire to prevent or prohibit the employer from establishing thsse processes. At the same time, the United States Postal Service recognizes that the American Postal Workers Union has a right not to participate in the EI/QWL process. Management must respect the APWU's decision not to participate in the process and APWU bargaining unit employees shall not be participants or members of any EI/QWL committee not jointly established by the APWU and the Postal Service. This Settlement Agreement does not prohibit committees which do not directly affect wages, hours, and vorking conditions,

2. The American Postal Workers Union, through its proper representatives, may request copies of any EI/QWL minutes if there is a reasonable belief that a subject matter has been discussed at an EI/QWL meeting which directly affects the wages,

hours, and working condition8 of the bargaining unit members. Minutes are meant to include agenda8 or other written comments relative to an EI/QWL meting. Postal Service management, upon a proper request, may inquire as to the specific nature of the union's interest in tho committee minutes. Upon receiving the union's response, management rhould not deny thr union access to the committee meeting minutes. Rather, it is the parties' desire that the union will be provided relevant portions of the committee meeting minutes in an ● xpeditiOU6 fashion.

3. The parties recognize that there will be instances where there are legitimate disputes between the parties an to the production of *the* committee minutes or portions thereof. The parties, by *entering* into this settlement, expect that disputes will be minimized in the future in light *of* this settlement agreement and the Award in American Postal Workers Union, AFL-CIO and United States Postal Service, Case No. H4T-2A-C-36687 (Arbitrator, Mittenthal November 16, 1991) which delineate the parties' respective obligations when requesting minutes of EI/QWL meetings.

4. Whenever a final adjudication is made by competent authority, or the Postal Service agrees, that (a) the Postal Service made change8 in wages, hours, or other terms and conditions of employment of employees represented by the union, (b) the Postal Service had a legal duty to give notice to and bargain with the union prior to making the change8 or the Postal Service failed to comply With the provisions *of* the National

Agreement vith the union in making such changes, and (c) the changes were the subject of discussions of the EI/QWL teams before the Postal Service decided to make such changes, the postal Service will take the following action:

A. The Postal Service will provide the minutes, if they exist, of all committee meetings in the facilities affected by such changes for six months from the date of final adjudication by a competent authority or the date the Postal Service agrees that minutes should be produced.

B. The Postal Service agrees to rescind any such changes directly affecting wages, hours, and working conditions of the APWU bargaining u-nit and restore the status quo at the option of the union. However, *if* rescission of a change is unreasonably burdensome to the employer, the employer will sake the change only if it can be shown that the union could not have protested the change through the normal grievance-arbitration process under the National Agreement. This exception is not to be lightly invoked.

c. Upon request of the union and where good cause has been shown, Headquarters personnel will inform local management as to their legal or contractual obligations under this agreement.

5. Nothing in the Settlement Agreesent is meant to expand or contract the parties bargaining obligations, or render negotiable any matter which is not deemed negotiable during the term of the National Agreement. Moreover, nothing in this

Settlement Agreement allows the Postal Service to make changes in wages, hours, or terms and conditions of employment which are in conflict or inconsistent with the National Agreement.

6. The Charging Parties will, within five days of the signing of this Settlement Agreement, request permission from the National Labor Relations Board to withdraw all pending charges alleging violations of Sections 8(a) (2) and 8(b) (1) (A) of the National Labor Relations Act.

7. By entering into this Settlement Agreement, the Postal Service does not admit that it has violated the National Labor Relations Act, the National Agreement, or any other law.

Sherry A. Cagnoli
Assistant Postmaster General
Labor Relations Department
United States Postal Service

Moe Biller
President
American Postal Workers Union, AFL-CIO

Dated: April 2, 1992

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The American Postal Yorkers Union and the United States Postal Service are committed to maintain the effectiveness of the arbitration process by ensuring that representatives of both parties maintain appropriate contact and communications with postal arbitrators. Accordingly, the parties agree that:

1. The parties' (APWU and USPS) representatives shall have no unilateral contact or discussion with an arbitrator concerning any subject which is, may be, or has been, before them.

2. As a general rule, no substantive written information shall be unilaterally sent to an arbitrator. In the context of an arbitration case which is currently designated to be heard by a specific arbitrator, however, it is understood that motions or briefs may be filed unilaterally, provided that copies are simultaneously provided to the opposing party. It is permissible, however, for either party to request subpoenas from an arbitrator unilaterally.

3. Matters such as scheduling or cancelling hearing dates, and establishing hearing locations are decided jointly by the parties. Accordingly, neither party is entitled to modify such hearing arrangements unilateraily.

4. Arbitrators may not participate in any, seminar, training program, or similar program hosted by either party unless the parties mutually agree in advance that the arbitrator's participation is appropriate.

5. All arbitrators are to conduct themselves in accordance with the standards of professional responsibility set forth in the "Code of Professional Responsibility for Arbitrators of Labor-Management Disputes."

The parties further agree that the limitations relative to arbitrator contact listed above are in addition to those expressed in the parties' Conditions of Appointment for Arbitrators.

Anthony J. Vegliante
Manager
Grievance & Arbitration
U.S. Postal Service

Moe Biller
President
American Postal
Workers Union,
AFL-CIO

11/21/95
Date

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND THE
NATIONAL ASSOCIATION OP LETTER CARRIERS, AFL-CIO

Jurisdictional issues, arising under the Modified Article 15 pilot program, will not be addressed by arbitrators in that forum.

Whenever jurisdictional issues are raised under the Hodified Article 15 pilot program, and no resolution is reached by the parties at Step 2, the Union may appeal such issues to the regional level of the regular grievance and arbitration procedure. Such issues will be processed pursuant to those provisions under Article 15 of the National Agreement.

William J. Downes
Director
Office of Contract
Administration
U.S. Postal Service

Date 8/29/89

Francis J. Conners
Executive Vice President
National Association of
Letter Carriers, AFL-CIO

Date 10/3/89

William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO

Date 9-20-89

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
AND THE
NATIONAL ASSOCIATION OF LETTER CARRIERS, AFL-CIO

The parties hereby agree that any arbitration award ● ri8ing under the Modified Article 15 grievance and arbitration procedure will be referenced in the following manner:

1. It shall not be cited a8 precedent in any *future* arbitration proceeding8 occurring outside of a test office-

2. It may, however, be cited a8 precedent in any future arbitration proceedings occurring within a test office.

This Memorandum will apply to any office implementing modified Article 15 and shall continue a8 long as the program is in ● xi8tence at the test office.

Stephen W. Furgeson
General Manager
Grievance ● a Arbitration Division
Labor Relations Department

9/6/88
DATE

William Burrus
Executive Vice ● re8ident
American Postal Workers Union, AFL-CIO

9/6/88
DATE

Francis J. Conners
Executive Vice President
National Association Of Letter Carriers, AFL-CIO

9/9/88
DATE

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RR: Modified Arbitration Decisions

The parties agree that Arbitration Awards issued under any Modified Grievance procedure are not to be cited in any future arbitrations when and if the parties withdraw from that modified grievance procedure.

Arbitration Awards rendered in any modified grievance procedure are intended to apply only in the specific subject office of the grievance and only while the office is under the modified grievance procedure.

William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO

Date: 4-4-95

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU

Date: _____

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

When the Modified Article 15 test program is terminated in a particular test site, the following procedures have **been agreed upon:**

1) An expiration date will **be agreed upon locally;**

2) **All grievances pending** in the **Modified** Article **15** process shall be decided by the appropriate management official(s) under that process. **Any** appeal6 **from** adverse decisions shall be processed pursuant to the regular contractual procedure. **For** example:

Modified Article **15**	Current Article **15**
Step 1 **decision** to----------	**Step 2**
Step la decision to----------	**Step 2**
Step **2** decision to----------	**Step 3**

3) Unless the local parties **otherwise** agree, those arbitration appeal6 already scheduled under the **Modified** Article **15** process will be heard a6 scheduled. **All other grievances pending** arbitration shall be **forwarded** to the region for logging by appeal date on the **register** of pending **cases** for regular regional or expedited panels, a6 appropriate.

4) All Step 1 grievance6 filed after the date of termination **from** the **Modified Article** 15 process **shall be in accordance with the regular contractual procedure.**

5) Postal and Union officials designated by the parties will meet at the regional level to determine future use of arbitrators certified under the pilot program.

William J. Domes
Director
Office of Contract Administration
Labor Relations Department

DATE 4/3/96

William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO

DATE 4/4/96

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
NATIONAL ASSOCIATION OF LETTER CARRIERS,
AFL-CIO AND THE AMERICAN POSTAL WORKERS
UNION, AFL-CIO

It is agreed by the United States Postal Service; the National Association of Letter Carriers, AFL-CIO; and the American Postal Workers Union, AFL-CIO, that the processing and/or arbitration of a grievance is not barred by the separation of the grievant, whether such separation is by resignation, retirement, or death.

Date: October 16, 1981

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Processing of Post-Removal Grievances

The parties agree that the processing and/or arbitration of a nondisciplinary grievance is not barred by the final dispositionof the removal of the grievant, if that nondisciplinary grievance is not related to the removal action.

(The preceding Memorandum of Understanding, Processing of Post-Removal Grievances, applies to Transitional Employees.)

Date: Incorporated into 1990 Agreement by Arbitrator Mittenthal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Grievance Arbitration

The parties agree that grievances for the Mail Equipment Shops (MES) and the Materiel Distribution Centers (MDC) shall be processed in accordance with Article 15 of the USPS-APWU National Agreement. The following exceptions shall apply through December 3 1, 1996:

Step 3

Any appeal from an adverse decision in Step 2 shall be in writing to the Vice President, Labor Relations with a copy to the Employer's Step 2 representative, and shall specify the reasons for appeal.

The grievant shall be represented at Step 3 by a union National representative or designee.

If either party's representative maintains that the grievance involves an interpretive issue under Article 41, or some supplement thereto which may be of general application, the Union representative shall be entitled to appeal an adverse decision to national arbitration.

Interpretive Issues

In the event of a dispute between the Union and the Employer as to the interpretation of Article 41, such dispute may be initiated as a grievance at Step 3 by the President of the Union.

The parties shall meet at Step 3 within thirty (30) days to attempt to resolve the grievance. If within sixty (60) days of the initiation of the grievance, it has not been resolved, the Union may appeal it to arbitration at the national level within thirty (30) days thereafter.

Arbitration

The parties shall continue to schedule arbitration hearings separately for the MDCs and MES using those arbitration panels established pursuant to the Memorandum of Understanding (re: Arbitration Panels).

The parties further agree that separate panels of arbitrators shall be established for the Mail Equipment Shops and Materiel Distribution Centers. Arbitrators for these panels shall be selected from APWU-USPS regional panels or in the event of an interpretive dispute, from the APWU-USPS national panel.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Interest on Back Pay

Where an arbitration award specifies that an employee is entitled to back pay in a case involving disciplinary suspension or removal, the Employer shall pay interest on such back pay at the Federal Judgment Rate. This shall apply to cases heard in arbitration after the effective date of the 1990 Agreement.

Date: Incorporated into 1990 Agreement by Arbitrator Mittnethal's June 12, 1991 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND
JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Diiipline Tracking System

The U.S. Postal Service will implement a Discipline Tracking System no later than 90 days after the execution of this Agreement or February 1, 1985, whichever occurs later. The Computerized Tracking System will eliminate the use of Form 50 for recording suspension actions. In situations where disciplinary actions have been overturned on appeal, records of the appealed disciplinary action will not be accessible for use in future promotional or disciplinary actions. In situations where disciplinary actions have been modified on appeal, only records of the modified disciplinary actions will be accessible from the Discipline Tracking System for use in future promotional or disciplinary actions.

Date: Incorporated into December 24, 1984 Award.

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

This memorandum addresses the time limits that must be met in order to grieve a proposed removal.

1. For the purpose of grievance procedure appeals, the time limits of Section 2 of Article 15 of the National Agreement shall run from the proposed removal notice, not **from** a decision letter on the proposed removal.

2. Once a grievance on a notice of proposed removal is filed, it is not necessary to also file a grievance on the decision letter.

3. Receipt of a notice of proposed removal starts the 30 day advance notice period **of** Section 5 of Article 16 of the National Agreement.

William J. Downes
Director
Office of Contract
Administration
Labor Relations Department

DATE 7/31/91

William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO

DATE 8-12-91

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Recognizing the need for clarification of the procedures to be followed in according employees their administrative rights under Title VII, the Veterans' Preference Act, and the National Labor Relations Act, and in order to resolve litigation in the cases of U.S. Postal Service, 281 NLRB No. 32 (1986), U.S. Postal Service, 281 N.L.R.R. No. 138 (1986); and U.S. Postal Service, 281 N.L.R.B. No. 139 (1986), the parties enter into the following memorandum of understanding.

1. The parties *agree that* when the Postal Service meets with an individual employee to resolve an EEO complaint (formal or informal), or to afford an individual preference eligible employee the right to respond to a proposed adverse action as provided by the Veterans' Preference Act, the Postal Service is under no obligation to invite the Union to be present or to participate at such meetings. A Union official may be present and participate only if that official is the employee's personal representative.

2. The parties recognize and agree that the Postal Service and an individual employee may enter into settlement agreements to resolve EEO complaints and proposed adverse actions against preference eligible employees without the knowledge or consent of the Union. However, the Postal Service shall not adjust or attempt to adjust with the individual employee any related grievances, except, to the extent permitted by Section 9a of the

NLRA and the National Agreement, those related grievances filed by the employee which arm still pending at Step1.

3. Thr parties agree that, where the Postal Service and an individual employer have entered into a settlement agreement to which the Union in not a signatory, the Portal Service may assert in the grievance procedure, or before an arbitrator, only that the settlement agreement provides the employee vith such relief as to render an award of further remedial relief to the employee unnecessary.

4. In light of this agreement, which renders the above-referenced cases moot, the parties agree to petition the National Labor Relations Board to vacate its decisions and orders in the above referenced cases, dismiss the underlying complaints, and withdraw any existing applications for enforcement.

5. This memorandum constitutes full and complete resolution of the above-referenced litigation.

6. This memorandum shall take effect upon the vacation of the above referenced NLRB decisions and orders and the dismissal by the Board of the underlying complaints.

UNITED STATES POSTAL SERVICE

10/19/87
DATE

AMERICAN POSTAL WORKERS UNION, AFL-CIO

6/21/87
DATE

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Role of Inspection Service in Labor Relations Matters

The parties recognize the role of the Postal Inspection Service in the operation of the Postal Service and its responsibility to provide protection to our employees, security to the mail and service to our customers.

Postal Inspection Service policy does not condone disrespect by Inspectors in dealing with any individual. The Postal Inspection Service has an obligation to comply fully with the letter and spirit of the National Agreement between the United States Postal Service and the American Postal Workers Union, AFL-CIO and will not interfere in the dispute resolution process as it relates to Articles 15 and 16.

The parties further acknowledge the necessity of an independent review of the facts by management prior to the issuance of disciplinary action, emergency procedures, indefinite suspensions, enforced leave or administrative actions. Inspectors will not make recommendations, provide opinions, or attempt to influence management personnel regarding a particular disciplinary action, as defined above.

Nothing in this document is meant to preclude or limit Postal Service management from reviewing Inspection Service documents in deciding to issue discipline.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The parties agree to recognize the following as nationally established policy regarding a steward's request to leave the work area while on-the-clock to interview a non-postal witness:

> In accordance with Article 17 of the 1981 National Agreement, a steward's request to leave his/her work area to investigate a grievance, shall not be unreasonably denied. Subsequent to determining that a non-postal witness possesses relevant information and/or knowledge directly related to the instant dispute under investigation, a steward may be allowed a reasonable amount of time on-the-clock, to interview such witness, even if the interview is conducted away from the postal facility. However, each request to interview witnesses off postal premises must be reasonable and viewed on a case by case basis. For example, it is not unreasonable for a supervisor and/or steward to telephone the prospective witness to ascertain availability and willingness to be interviewed and, if willing, to establish a convenient time and locale.

In witness whereof the parties hereto affix their signatures below this d a y 6 o f _____ 1982.

For the
United States Postal Service:

W. E. [illegible]

For the
Union:

[illegible]

INTERPRETIVE AGREEMENT
BETWEEN TX
UNITED STAT5S POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The issue presented to the parties in this instance involves whether a union member actively employed at a post office can be designated as the Union representative for a Step 2 meeting at another post office under the provisions in Article 17, Section 2.d.

The specific language at issue provides:

> 'At the option of a Union, representatives not on the employer's payroll **shall** be identified to perform the functions of a steward or chief steward, provided such representatives are certified in writing to the Employer at the regionai level and providing such representatives act in lieu of stewards designated under the provisions of 2A *or* 2B above.' (Underscoring added)

In full settlement of the interpretive dispute presented in this case, the parties mutually agree to the following:

1. A Union member actively employed in a post office may be designated as a Union representative to process a grievance at another post off ice.

2. Such employee must be certified in writing, to the Employer at the regional level.

3. An employee so certified will not be on the Employer's official time.

4. An employee so certified will act in lieu of the steward designated under Article 17, Section 2.A and 2.B. at the facility where the grievance was initiated.

In witness whereof the parties hereto affix their signatures below this 2nd day of June 1982.

For the
United States Postal Service:

W. E. Henry

William E. Henry, Jr.
Director
Office of Grievance and
Arbitration
Labor Relations Department

For the Union:

William Burrus

William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO

Mr. Moe Biller
'President
American Postal Workers
union, AFL-CIO
1300 L Street, N.W.
Washington, D.C. 20005

Dear Moe:

This letter is to acknowledge that an agreement has been reached between the parties that Article 17, Sections 3 and 4, of the collective bargaining agreement will apply to transitional employees for the term of the new agreement.

Please sign below to acknowledge your concurrence on this matter.

Sincerely,

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU

Concurrence: Moe Biller

Date: June 7, 1996

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE

AND THE

AMERICAN POSTAL WORKERS UNION, AFL-CIO

Whereas, the United States Postal Service (herein called the Employer) and the American Postal Workers Union, AFL-CIO (herein called the Union) are parties to a collective bargaining agreement known as the 1984 National Agreement, entered into December 24, 1984; and

Whereas, the Union has provided, through the APWU Voluntary Benefits Program (APWU/VBP), individual insurance and benefits coverage for members of the Union who are employees of the Employer and has appointed as the agent for the Union the Bank of Boston - Connecticut, 81 West Main Street, Waterbury, Connecticut 06702 (Agent).

Now, in furtherance of the spirit of the 1984 National Agreement and for other good and valuable consideration and mutual promises, the Employer and the Union hereby agree as follows:

1. **The Employer's obligations under this Memorandum of Understanding shall terminate**

a. upon the Employer's receipt of written notice given by the Union, or

b. upon the Union's receipt of written notice given by the Employer, or

c. upon such date as the parties mutually agree to terminate this Memorandum of Understanding.

2. Eligible Employees may enroll in both the Travelers **Auto** Insurance Plan and **APWU/VBP.** Where an Employee is concurrently enrolled in the Travelers Automobile Insurance Plan and APWU/VBP, the priority of premium withholdings for **APWU/VBP** will be second to Travelers.

3. Each pay period the Union, through its Agent, shall furnish the Employer a magnetic tape in a prescribed format of Employees authorizing premium withholdings from earnings. The tape will also contain changes to the existing premium withholding amounts.

4. The Employer shall notify the Agent of any Employees carrying insurance who terminate employment with the Employer or who, because of illness, vacations or other reasons, do not have sufficient earnings from which the proper premium amounts can be withheld.

5. The Union, through its Agent, shall notify the Employer as in 3 above, of insured Employees' cancellations of their written authorizations to deduct premiums.

6. For each pay period, the Employer shall remit to the Agent the premiums for all Employees enrolled for benefits. A magnetic tape and related print-out will be furnished to the Agent.

7. In consideration of the action of the Employer in making payroll deductions for Employees to be forwarded to the Agent pursuant to the provisions of paragraph 6 of this Memorandum of Understanding, the Union hereby agrees to indemnify and save the Employer free and harmless against any and all claims, demands, suits, losses, damages, costs, expenses, and attorneys' fees,

of whatever kind or nature, or any form of liability that shall arise out of, or by reason of, action taken or not taken by the Employer in reliance on any list, computer tape, notice, assignment or any other data furnished to them pursuant to this Memorandum of Understanding.

IN WITNESS WHEREOF, the parties have caused the Agreement to be executed at Washington, D.C., the 30TH day of September, 1986.

FOR THE U.S. POSTAL SERVICE

Thomas Fritsch
Assistant Postmaster General
Labor Relations Department

FOR THE AMERICAN POSTAL WORKERS UNION, AFL-CIO

Moe Biller
President

LETTER OF INTENT
BETWEEN
UNITED STATES POSTAL SERVICE
AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The parties have agreed to prepare a Memorandum of Understanding between the parties for the withholding of premiums from employees' earnings for individual disability insurance coverage. The Memorandum of Understanding will be similar to the Memorandum of Understanding between the United States Postal Service and the National Association of Letter Carriers, AFL-CIO, dated April 1, 1982, which provides for withholding of premiums from employees' earnings for individual insurance coverage as furnished through the National Association of Letter Carriers, AFL-CIO, disability insurance plan.

Date: October 17, 1984; incorporated into December 24, 1984 Award.

* * *

LETTER OF INTENT
BETWEEN
UNITED STATES POSTAL SERVICE
AND
JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, National Association of Letter Carriers, AFL-CIO)

As soon as practicable after agreement is reached over the formula to be used in determining the amount of the biweekly dues deductions, the Employer shall remit to each union all dues deductions to which it is entitled 14 days after the end of each pay period.

Date: Incorporated into December 24, 1984 Award.

* * *

SETTLEMENT AGREEMENT

Case lo. **H4N-NA-C-90**

In full and complete settlement of the above-referenced arbitration case brought pursuant to the 1987 National Agreement betveen the parties, the United States Postal Service (USPS), the National Association of Letter Carriers, AFL-CIO (NALC), and the American Postal Workers Union, AFL-CIO (APWU), hereby agree as follows:

1. When the USPS provides the Union(s) with proposed changes in handbooks, manuals or published regulations, the USPS will furnish to the Union(s), if available, the final draft and/or summary of changes vhich shov the changes being made from the existing handbook, **manual or** published regulation. In those instances where a final draft or summary is unavailable, the USPS will so advise the Union(s) in its **letter of notice.**

2. If no final draft or **summary** is available, vhich shows proposed changes, the Postal Service will, at the **request of** the Union(s), promptly make available appropriate officials to meet vith representatives of the Union(s) to identify and discuss the changes made in the proposed handbook, manual **or** published regulation from those contained in existing documents.

3. The 60 Cay period during which the Union may appeal to arbitration may be extended to accommodate ongoing **discussion of** the proposed change(s) with the **USPS** in paragraph 2, above. However, **in** no instance may the Union(s) appeal the matter to arbitration more than 14 calendar days from the close **of** those extended discussions. The USPS may also publish the proposed change(s) at anytime after the 60 day notice period under Article19.

4. Where the USPS has affirmatively expressed that there are no changes which directly relate to wages, hours, or working conditions pursuant to Article 19, time limits for Article 19 will not be used by the Postal Service as a procedural argument if the Union(s) signatory to this settlement agreement determine(s) afterwards that there has been a change to wages, hours, or working conditions.

William J. Downes
Director
Office of Contract Administration
Labor Relations Department

Lawrence G. Hutchins
Vice President
National Association of Letter Carriers, AFL-CIO

Thomas A. Neill
Industrial Relations Director
American Postal Workers Union, AFL-CIO

DATE March 11, 1988

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Centralized Uniform Program

The parties agree to the joint development, establishment, and phase-in through the USPS/APWU National Labor-Management uniform Control Committee (Uniform Committee) of a centralized system of purchasing and distributing uniforms and work clothes. By allowing the U.S. Postal Service to procure the items directly from the manufacturer(s), uniform items can be acquired at a reduced cost, in comparison to the current system. As a result of such volume purchasing, the parties anticipate that employees can be supplied with more uniform items with the U.S. Postal Service realizing monetary savings in the Uniform Program.

1. Under this system, the U.S. Postal Service will enter into contract(s) with uniform manufacturer(s) for authorized uniform items which would provide for a controlled price on uniform items. The contract(s) will also address matters such as the quality of items and the method of distribution to employees and other requirements as agreed upon by the Uniform Committee.

2. Under the new program, the annual dollar allowance will be replaced by an allowance of points to be spent by employees on authorized uniform items. Upon the signing of the Memorandum of Understanding, the parties agree to meet for the purpose of negotiating the specific elements of the uniform and work clothes allowance, including, but not limited to, the points assigned to each authorized item, the allowance of total points or number of items available for eligible employees in the distributionof such items. The point value will remain constant for the life of the Agreement.

3. The parties agree to undertake the negotiations referred to in paragraph 2 of the Memorandum upon the effective date of this Memorandum.

4. Until phased in, the employees will acquire uniforms under the current system. During the phase-in, the Uniform Committee will monitor the progress of the program to ensure the success of the new system and address matters of concern that may arise. Issues not resolved by this Memorandum will be discussed and resolved by the parties through the USPS/APWU National Uniform Committee.

5. It is understood by the parties that any increase in the existing uniform allowance in Article 26 of this Agreement will be credited toward the authorized uniform items to be negotiated as set forth in paragraph 2.

6. As the proposed Centralized Uniform Program goes into the development phase, the process will comply with Postal Service regulations which address the preference for Domestic Source. It is further understood by the parties that the specifications and quality control certifications for all work clothes and uniform apparel will be in accordance with established U.S. Postal Service specifications.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO, and
National Association of Letter Carriers, AFL-CIO)

Re: Footwear/Uniform Allowance

The parties agree that, effective July 21, 1987, footwear will be authorized for reimbursement under the Uniform Allowance Program for those employees eligible for the work clothes allowance or the contract uniform allowance. Items must meet USPS footwear specifications.

Date: July 21, 1987

* * *

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Joint Feasibility Study - Unit Accountability in Post Offices

This Memorandum of Understanding (MOU) represents an agreement between the parties to establish a National Committee to jointly study the feasibility of replacing the current method of individual clerk accountability with unit accountability. The committee will consist of a limited number of designated representatives from each party.

This committee will meet as needed to plan and study the unit accountability concept.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Stamp Stock Tolerances

The Financial Handbook for Postal Offices (F-l) shall be revised to reflect the following:

Amount of Stamp Stock	Tolerance
up to $30,000.00	$ 50.00
$30,000.01 to $60,000.00	$100.00
Above $60,000.00	$150.00

Date: January 23, 1995

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED **STATES POSTAL SERVICE**
AND THE
AMERICAN POSTAL WORKERS UNION,. AFL-CIO
AND THE
NATIONAL ASSOCIATION OF LETTER CARRIERS, AFL-CIO

The parties agree that bargaining unit employees will be provided an opportunity to petition for a hearing regarding monies demanded by the Employer pursuant to the Debt Collection Act as promulgated in postal regulations found in the Employee and Labor Relations Manual and in other handbooks, manuals, and published regulations of the Postal Service. The following procedures embody our agreement and outline this process and its relationship to the grievance-arbitration procedures in Article 15 of the National Agreement:

1) A bargaining unit employee shall have the right to file a grievance under the provisions in Article 15 of the National Agreement concerning any letter of demand, to challenge the existence of a debt owed to the Postal Service, the amount of such debt, and the proposed repayment schedule. A bargaining unit employee also shall have the right to file a grievance under the provisions in Article 15 of the National Agreement concerning any other issue arising under Article 28 of the National Agreement. However, if no grievance challenging the existence of a debt owed to the Postal Service, the amount of such debt, or the proposed repayment schedule, is initiated within 14 days of receipt of the letter of demand, and the Employer intends to proceed with the collection of the debt, the employee will be issued a "Notice of Involuntary Administrative Salary Offsets Under the Debt Collection Act," with a right to petition for a hearing, pursuant to the Debt Collection Act.

2) At any stage of the grievance-arbitration procedure where the existence of a debt, the amount of a debt, or the proposed repayment schedule has been resolved through a written settlement between the Employer and the Union, and the employee remains liable for all or some of the debt, the employee will be issued a "Notice of Involuntary Administrative Salary Offsets Under the Debt Collection Act." If a petition for hearing is filed, the Postal Service is free, before the Hearing Officer, to pursue collection of the full amount of the debt. However, any contractual issue settled by the parties in the grievance-arbitration procedure will be final and binding.

3) At any stage of the grievance-arbitration procedure where a grievance has not been initiated or advanced to the next step within the time limits set forth *in* Article 15 of the National Agreement, and the Employer intends to proceed with collection of the debt, the employee will be‘ issued a "Notice of Involuntary Administrative Salary Offsets Under the Debt Collection Act."

4) When an arbitrator finds the grievance is not arbitrable, and the Employer intend8 to proceedith the collection of the debt, the employee will be issued a "Notice of Involuntary Administrative Salary Offsets Under the Debt Collection Act."

5) Once an arbitration hearing has opened on the merits of any money demand, the employee will not be issued a "Notice of Involuntary Administrative Salary Offsets Under the Debt Collection Act," unless the arbitrator finds the grievance is not arbitrable or the grievance is settled pursuant to paragraph numbered 2.

6) If a grievance is initiated and advanced through the grievance-arbitration procedure or a petition ha8 been filed pursuant to the Debt Collection Act, regardless of the amount and type of debt, collection of the debt will be delayed until disposition of the grievance and/or petition has (have) been had, either through settlement or exhaustion of contractual and/or administrative remedies.

7) No more than 15 percent of an employee's disposable pay or 20 percent of the employee's biweekly gross pay, whichever is lower, may be deducted each pay period to satisfy a postal debt, unless the parties agree, in writing, to a different amount.

8) The provision8 of paragraphs 6 and 7 of this. Memorandum, regarding the delay of collection of the monies demanded and the amount to be collected through payroll deductions, will be incorporated in Article 28, Section 4 of the 1994 National Agreement.

9) An administrative hearing under the Debt Collection Act may be conducted by any individual not under the supervision or control of the Postmaster General, but may include a hearing official designated by the Judicial Officer.

Anthony J. Vegliante
Manager
Grievance & Arbitration
Labor Relation8

4/21/93
DATE

Thomas A. Neill
Industrial Relations Director
American Postal Workers Union,
AFL-CIO

7-15-94
DATE

Lawrence G. Hutchins
Vice President
National Association of
Letter Carriers, AFL-CIO

7/20/94
DATE

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND THE
JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO and
National Association of Letter Carriers, AFL-CIO)

Re: Reinstatement of OF-346

It is hereby agreed by the United States Postal Service; the American Postal Workers Union, AFL-CIO; and the National Association of Letter Carriers, AFL-CIO, that:

1. The safety and health of employees is of significant concern to the parties signatory to this Memorandum of Understanding. Accordingly, the parties further agree that the following is not intended to provide driving privileges to an employee when such privilege would place the safety of the public or the employee at risk.

2. The mere fact that an employee was involved in a vehicle accident is not sufficient to warrant automatic suspension or revocation of driving privileges or the automatic application of discipline.

3. When an employee's OF-346 is temporarily suspended as a result of a vehicle accident, a full review of the accident will be made as soon as possible, but not later than fourteen (14) days, and the employee's OF-346 and driving privileges must either be reinstated, suspended for a specified period of time not to exceed sixty (60) days, or revoked as warranted. If the decision is to suspend or revoke the employee's OF-346, the employee will be provided, in writing, the reason(s) for such action.

4. If an employee requests that a revoked or suspended OF-346 be reinstated, Management will review the request and make a decision as soon as possible but not later than 45 days from the date of the employee's request. If the decision is to deny the request, the employee will be provided with a written decision stating the reasons for the decision.

The Management review must give careful consideration to:

-- the nature, severity and recency of the incident(s) which led to the revocation or suspension;

-- any driver's training or retraining courses completed from private schools, state sponsored courses, or Postal Service training programs, especially when directly relevant to the incident(s) that led to the revocation;

-- successful participation in an EAP program, when relevant to the reasons for revocation;

-- the employee's state driving record consistent with the criteria for initial issuance of an OF-346 as stated in Handbook EL-827, Driver, Selection, Training, Testing and Licensing. The Employer may waive these criteria if warranted in light of the other factors listed above.

5. This Memorandum of Understanding is not intended to define the conditions or circumstances for which an employee's OF-346 may be suspended or revoked.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Local Implementation

It is hereby agreed by the United States Postal Service and the American Postal Workers Union, AFL-CIO that the following procedures will apply to the implementation of Article 30 during the 1994 local implementation period.

1. The 30 consecutive day period for 1994 local implementation will commence on February 15, 1996 and terminate on April 14, 1996.

   If no party provides written notification of its intent to invoke the local implementation process prior to February 29, 1996, presently effective Memoranda of Understanding not inconsistent or in conflict with the 1994 National Agreement shall remain in effect during the term of this Agreement. Initial proposals must be exchanged within the first twenty one (2 1) days of the 30 consecutive day local implementation period.

2. In the event that any issue(s) remains in dispute at the end of the thirty (30) consecutive day local implementationperiod, each party shall identify such issue(s) in writing. Initialed copies of this written statement and copies of all proposals and counterproposals pertinent to the issue(s) in dispute will be furnished by the appropriate local party to the appropriate management official at the grievance/arbitration processing center, of the Employer with copies to the Postmaster, local Union President and the Union's Regional Representative within fifteen (15) days of the expiration of the local implementation period. Inclusion of any matter in the written statement does not necessarily reflect the agreement of either of the parties that such matter is properly subject to local implementation.

3. The appropriate management official at the Area office and the Regional Union representative shall attempt to resolve the matters in dispute within seventy-five (75) days after the expiration of the local implementation period. The appropriate management official at the Area office and the Regional Union representative will have full authority to resolve all issues still in dispute.

4. If the parties identified in paragraph 3 above are unable to reach agreement at the Regional level by the end of the seventy-five (75) day period provided for above, the issue(s) may be appealed to final and binding arbitration by the National Union President or the Vice President, Labor Relations within twenty-one (21) days of the end of the seventy-five (75) day period.

5. Where there is no agreement and the matter is not referred to the appropriate management official at the grievance/arbitration processing center or to arbitration, the provision(s), if any, of the former Local Memorandum of Understanding shall apply unless inconsistent with or in conflict with the 1994 National Agreement.

6. Where a dispute exists as to whether an item in the former Local Memorandum of Understanding is inconsistent or in conflict with the 1994 National Agreement, such dispute will be processed in accordance with the procedures outlined in two (2) through four (4) above.

This Memorandum of Understanding expires at 12 midnight November 20, 1998.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

LETTER OF INTENT

It is the intent of the parties that charges imposed by the Employer for information furnished pursuant to Article XXXI of the National Agreement will not be greater than charges imposed by the U. S. Postal Service for release of information under the Freedom of Information Act.

J. CONWAY **(S)**
U.S. **Postal** service

EMMET ANDREWS, (S)
American Postal Workers Union, AFL-CIO

J. JOSEPH VACCA (S)
National Association of Letter Carriers, AFL-CIO

LONNIE L. JOHNSON **(S)**
National Post Office Mail Handlers, Watchmen, Messengers and Group Laborers' International Leaders Division of the Union of North America, AFL-CIO

July 16, 1978

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
THE JOINT BARGAINING COMMITTEE
(American Postal Workers Union, AFL-CIO,
National Association of Letter Carriers, AFL-CIO)

Re: Bargaining Information

Pursuant to the provisions of Article 3 1 of the National Agreement, as soon as practicable after the ratification of the 1987 National Agreement between the United States Postal Service and the Joint Bargaining Committee (JBC), the Employer shall, on an accounting period basis, provide the Union with a computer tape containing the following information on those in their respective bargaining units:

1. SSN
2. Last Name
3. First Name (Full)
4. Middle Initial
5. Address
6. City
7. State
8. ZIP Code
9. Post Office Name
10. PO State
11. PO ZIP
12. PO Finance Number
13. PO CAG
14. Rate Schedule
15. Nature of Action
16. Effective Date
17. Pay Grade
18. Pay Step
19. Health Benefit Plan
20. Designation Activity
21. Enter on Duty Date
22. Retire on Date
23. Layoff
24. Occupation Code
25. Pay Location

As a result of the Joint Bargaining Committee's request to have the full first name included, each Union will pay 50 percent of the actual systems and programming cost associated with this change, not to exceed a total cost of $10,000. Subsequently, the Postal Service will provide the Unions with the information above without charge.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN
UNITED STATES POSTAL SERVICE AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
MAINTENANCE CRAFT

Re: Subcontracting Cleaning Services

The parties agree that the following language will be incorporated into paragraph 535.261 of the Administrative Support Manual.

.26 Cleaning Services

.261 Authorization

a. When a vacancy as a result of an employee's voluntary attrition is identified in an independent installation or in a station and/or branch of an independent installation, the following sequential steps will be taken to determine whether or not a contract cleaning service may be utilized:

(1) The measured square footage of the interior area, as determined by using the procedures identified in the MS-47 handbook, is to be divided by 18,000. The resulting number is rounded to four (4) decimal places;

(2) The measured square footage of the exterior paved and unpaved area, as determined by using the procedures identified in the MS-47 handbook, is to be divided by 500,000. The resulting number is rounded to four (4) decimal places;

(3) The numbers obtained in steps 1 and 2 are then added together. If the resulting number is less than ONE (1), a contract cleaning service may be used to perform the required work.

b. If the determination is made to utilize a contract cleaning service, the local APWU President will be provided a copy of the above computations.

c. Post Offices, or stations/brancheswhich contract cleaning services under previous criteria may continue to do so.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
MOTOR VEHICLE CRAFT

Re: Highway Contracts

In furtherance of ongoing application of Article 32, Section 3 of the National Agreement the parties agree to the following principles:

1. The U.S. Postal Service reaffirms its commitment to require compliance with the highway contract specifications including the Service Contract Act. Contracting officers and administrative officials at the local level, when advised by American Postal Workers Union officials of complaints and/or provided information concerning alleged violations of a specific contract(s), especially those that relate to vehicle schedules, wage rates, and safety violations will, in a business-like manner, acknowledge to the interested American Postal Workers Union official, receipt of said information and the action taken in response to the situation identified. Background information concerning scheduled routes will not be unreasonably denied.

2. The Postal Service recognizes the requirement to accurately reflect vehicle equipment needs when developing transportation service requirements. Reasonable efforts will continue to be made at the appropriate management level to reconcile vehicle requirements to existing postal vehicle sizes. In those situations where it is determined that the vehicle needed substantially differs from that which is available in the U.S. Postal Service fleet, justificationwill be provided the responsible USPS management office for those routes that otherwise meet the criteria of Article 32.

3. The responsible USPS management office will continue to encourage all contractors to display clearly and conspicuously on all vehicles, while engaged in the transport of mail, their company name, address and the fact that they are contract vehicles.

4. When the National Union is advised of the decision to award and/or renew a highway contract(s), the U.S. Postal Service will provide a reasonable explanation of its decision.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Subcontracting - Mail Equipment Shops

The Employer and the Union agree that the making of contracts for the purchase of equipment or supplies to be manufactured by convict labor will be done in accordance with Title 39 U.S.C., Section 2201, of the Postal Reorganization Act. The parties recognize that the contracting of work to the Federal Prison Industries is subject to the provisions of Title 18, Chapter 307. The Employer will provide to the Union a copy of a request for proposal when issued.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Training Committee

The Postal Service reaffirms its commitment to provide employees with training consistent with organizational needs. Additionally, the Postal Service recognizes the desirability of affording employees opportunities for self-development and will make training programs available to meet such needs.

The Postal Service will afford the Union, at the national level, the opportunity to discuss concerns about specific training opportunities or programs. A Joint Committee on Training is hereby established at the national level which will consist of representativesof both parties. The Committee shall meet to discuss matters of mutual interest and benefit relating to training programs and opportunities. The appropriate USPS management official shall be the Employer's chief representative on such Committee. The Committee may consider and develop pilot programs, improved training methods and strategies, and other matters related to employee training and educational opportunities, including exploring the potential for developing job related training and noncompensable non job related programs through the use of advanced computer technology. Issues concerning local training and educational opportunities including the use of postal facilities for noncompensable training in college accredited courses, publicity of self-developmenttraining opportunities,and other training and educational matters of mutual interest and benefit are appropriate subjects for resolution at local labor-management committee meetings.

Consistent with established regulations and operational needs, the Postal Service will make every effort to grant requests for leave without pay by employees for training and educational opportunities. Customer Service District offices will maintain a record of employee requests for LWOP under these provisions and the resulting action taken (approved/disapproved). If the request is denied, supporting rationale must

accompany all such denials. This documentation will be forwarded to the National Training Committee, with a copy to the area manager of Human Resources on a biannual basis for review. The Committee, through joint agreement, will take appropriate action if it deems necessary.

The parties agree to consult at the national level to define whether specific training courses and/or programs are job-related, self-developmental, or can be considered both. The National Joint Training Committee will review all training programs for the purpose of compiling a listing of training opportunities for postal employees. Further, the National Joint Training Committee will discuss the establishment of training programs to promote local joint labor-management cooperation.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Use of Privately Owned Vehicles

The parties agree that the following represents the policy of the U.S. Postal Service and the American Postal Workers Union concerning the furnishing of privately owned vehicles (POV) by employees of the crafts represented by the APWU:

No craft employee represented by the APWU may be coerced into furnishing a vehicle or carrying passengers without the employee's consent. The use of a personal vehicle is the decision of the employee and it is not the intent of the parties to discourage such use of personal vehicles when transportation is needed from one postal facility to another or in the completion of the employee's assignment. When an employee begins his/her work day at one postal unit and is provided transportation to another unit to complete his/her tour of duty, that employee will be provided transportation back to the unit where his/her tour began if transportation is needed. If the employee ends tour at the new location the return trip will not be on the clock but transportation will be provided promptly by management upon request.

Date: July 21, 1987

(The preceding Memorandum of Understanding, Use of Privately Owned Vehicles, applies to Transitional Employees.)

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Ret Application of Arbitrator **Mittenthal's** Award in Case Nos. **H7T-3W-C** 12454 et al.

In order to resolve outstanding grievances that were held pending possible application of Case Nos. **H7T-3W-C** 12454 et al the parties have **agreed** to the following:

Any timely-filed ***grievance*** which can be resolved by application of **Mittenthal's** decision in **Case** NO. **H7T-3W-C** 12454 et al. which has not been settled as of the signing of this **Memorandum** shall be settled by **paying** the **grievant(s)** who travelled outside of their schedule a lump sum payment of $150.00 for each round trip.

Class action grievances shall be settled by paying each member **of** the class who travelled outside of their schedule, a lump sum payment of $150.00 for each round trip.

This settlement does not prejudice either parties **position** concerning the application of the **Mittenthal** award.

Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relation6

William Burrus
Executive Vice President
American Postal Workers
union, **AFL-CIO**

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: PTF Preference

The parties agree that the rewritten provisions of Article 37, Section 5, Conversion/Part-Time Flexible Preference, which include the Memorandum of Understanding (page 198-200 of the 1984 National Agreement), provide basically the same procedure with the following exceptions:

1. Part-time flexible employees should state a preference for duty assignments for which they are currently qualified and such preferences should be listed prior to assignments for which they are not qualified. The employees' preferences will be honored except as limited by Sec. 5 of Article 37. Failure to state a preference for the duty assignments for which the employee is currently qualified will result in the employer choosing between the duty assignments.

2. A time frame has been provided in Section 5.A.5 for placing the senior part-time flexible stating a preference into training.

3. A time frame has been provided in Section 5.A.6 when an employee should be converted to full-time and placed in the duty assignment upon successfully completing the required training or being identified as the senior currently qualified part-time flexible.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: Bids With Required Computer Skills

The following procedure will be followed when senior bidders, meeting the minimum qualifications (qualification standard), are assigned to administrative clerk craft assignments, PS-5, which require running of or interaction with computer programs:

1. The senior bidder will assume the hours and days of the assignment and be provided with on-the-job training (OJT) for a period of five working days. No out-of-schedulepremium will be paid as a result of this action.

2. By no later than the end of the five-day period the bidder must demonstrate the ability to successfully

run those programs/proceduresfor which he/she will be responsible in the performance of the duties of the assignment. The specific programs/procedureswill be identified at the beginning of the period and instruction will be provided for each during the five days of OJT.

3. If the bidder is unable to successfully demonstrate the ability to run the programs, the employee will be returned to his/her previous assignment and the assignment will be awarded to the next senior currently qualified bidder who can immediately demonstrate the ability to run the programs.

4. In the event that the senior bidder is not successful, the employee may request a schedule change to attain a reasonable amount of time between the end of the temporary assignment and the beginning of the employee's next regularly scheduled reporting time. This request is subject to the prior approval of the employee's supervisor and Union steward.

   When an employee does not request a schedule change and the end of the assignment period provided for in item 1 above is within ten hours of the employee's regular scheduled tour, managers will (prior to the qualification period) identify the schedule of the qualification period as extending through the employee's first non-scheduledday following the end of the qualificationperiod. This provision will not serve to extend the time allowed for qualification as provided for in item 2. The employee will not be eligible for out-of-schedule premium as a result of these schedule changes.

5. The parties recognize that the Employer may develop computer aptitude tests or other measures for use in determining minimum qualifications.

6. The provisions of this memorandum do not apply to operations assignments.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: Brush-up Training

The parties agree that the appropriate Handbooks will be changed to reflect the following:

I. For the purposes of this memorandum, brush-up training is defined as that training provided to employees who are successful bidders on a duty assignment and who are deemed to have a live record. Live Record is defined in Article 37, Section 1, of the National Agreement.

II. To provide brush-up training for those employees with a live record as follows:

   A. Manual Scheme (manual separation of mail into a distribution case)

      1. Less than 90 days - none.

2. 90 to 180 days - up to 60 calendar days productive distribution.

3. 18 1 days to 2 years - up to 60 calendar days productive distribution plus up to one (1) hour of study (brush-up) time for each 200 scheme items.

B. Letter Sorting Machines - Nonscheme Assignment (machine distribution of outgoing primary, state and incoming primary distributions using ZIP Codes)

1. Less than 60 days - none.

2. 60 to 90 days - up to one (1) hour keyboard training.

3. 90 to 180 days - up to two (2) hours keyboard training.

4. 181 to 365 days - up to four (4) hours keyboard training.

5. 366 to 540 days - up to six (6) hours keyboard training.

6. 541 days to 2 years - up to eight (8) hours keyboard training.

C. Letter Sorting Machines - Scheme Application (manual scheme knowledge applied to machine distribution)

1. Manual scheme 90 days (actual scheme knowledge)

a. Less than 90 days - none.

b. 90 to 180 days - up to ten (10) hours productive distribution prior to keyboard brush-up training.

c. 181 to 365 days - up to twelve (12) hours productive distribution prior to keyboard brush-up training.

d. 366 to 540 days - up to sixteen (16) hours productive distribution prior to keyboard brush-up training.

e. 541 days to 2 years - up to twenty (20) hours productive distribution prior to keyboard brush-up training.

f. In addition to the above, up to one (1) hour of study time for each 200 scheme items will be provided for d and e.

NOTE: Generally, an employee who is assigned to the letter sorting machine will have his proficiency monitored by use of the EDIT system. However, if this employee will be assigned to manual scheme distribution on a regular basis, he must be provided with productive distribution time as shown for Manual Scheme.

2. Scheme Distribution on Letter Sorting Machine

   a. Less than 60 days - none.

   b. 60 to 90 days - up to one (1) hour keyboard training.

   c. 91 to 180 days - up to two (2) hours keyboard training.

   d. 18 1 to 365 days - up to four (4) hours keyboard training.

   e. 366 to 540 days - up to six (6) hours keyboard training.

   f. 541 days to 2 years - up to eight (8) hours keyboard training.

D. Flat, Bundle, and Parcel Sorting Machines

1. Less than 60 days - none.

2. 60 to 180 days - up to one (1) hour keypad training.

3. 18 1 to 365 days - up to two (2) hours keypad training

4. 366 to 540 days - up to three (3) hours keypad training.

5. 541 days to 2 years - up to four (4) hours keypad training.

E. Machine - Memory Items

1. One (1) to 120 days - none.

2. 121 to 365 days - up to one (1) hour study time.

3. 366 days to 2 years - up to two (2) hours study time.

F. In addition to the above, training will be provided when:

1. Scheme changes exceed 10 percent - at the rate of one (1) hour for each 16 items changed.

2. Memory item changes exceed 25 percent - at the rate of one (1) hour for each 16 items changed.

G. Section 3.F.7 Assignments

1. One (1) to 540 days - none except when there has been a significant change in services offered, rates, or duties. If a significant change has occurred, the appropriate portion of the training will be repeated; however, the employee will not be tested.

2. 54 1 days to 3 years - up to 16 hours training. If significant change has occurred, appropriate training is mandatory; however, the employee will not be tested.

3. 3 years to 5 years - repeat formal training, not OJT; however, employee will not be tested.

All brush-up training is to be given on-the-clock and employees will not be required to pass an examination following the training.

III. To provide employees with training time for MPLSM keyboard training on a graduated hour scale based on the number of scheme items, up to the hours listed by scheme size as follows:

100 to 299 scheme items up to 29 hours
300 to 399 scheme items up to 30 hours
400 to 499 scheme items up to 3 1 hours
500 to 699 scheme items up to 32 hours
700 to 799 scheme items up to 33 hours
800 to 899 scheme items up to 34 hours
900 to 1000 scheme items up to 35 hours

If a machine scheme is the first assignment, an employee will be provided up to 47 hours of training. The above range is for subsequent assignments. If nonscheme application is the subsequent assignment, an employee will be provided up to 32 hours of training.

IV. Provide for sequence of training for machine assignments requiring more than one (1) scheme as follows:

1. 1st manual scheme deferment: then

2. scheme to machine deferment; then

3. 2nd manual scheme deferment; then

4. scheme to machine deferment.

In addition, the Memoranda of Understanding on pages 193, 198-200, 200 and 201 of the 1984-1987 National Agreement are rescinded.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

CLERK CRAFT

Re: Productive Distribution

It is agreed that, when the senior bidder completes 80% or more of the allotted training time for scheme qualification, the employee will have the opportunity to be tested on the items studied. This test may be taken at the option of the employee.

If the senior bidder scores at least 90% on the above test, the senior bidder may request assignment to productive distribution during the remainder of the deferment period. Such requests, including a voluntary request for a change in schedule in order to provide such productive distribution, will be granted if operationally feasible.

This test is taken only for the purpose of being assigned to productive distribution and does not count as an attempt to qualify. Employees will be afforded the same opportunities for scheme qualifications as those established in the 1984 1987 National Agreement. Appropriate visual aids shall be provided during this period of productive distribution.

Date: July 21, 1987

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: Clerk Craft Seniority Lists

The parties agree that, as of the effective date of the 1994 National Agreement, all part-time regular seniority lists will be merged with the seniority list of full-time employees. Local management will be responsible for establishing the merged seniority list and providing a copy to the Union once established

The parties further agree that, as of the effective date of the 1994 National Agreement, all employees who have lost seniority prior to the effective date of the 1994 National Agreement as a result of any of the following actions will have their seniority restored:

1. The employee changed from a part-time regular in one salary level to a part-time regular in another salary level, within the Clerk Craft in the same installation.

2. The employee changed from a full-time or part-time flexible employee to a part-time

regular employee, within the Clerk Craft in the same installation,

3. The employee changed from a part-time regular employee to a full-time or part-time flexible employee, within the Clerk Craft in the same installation.

For these employees, seniority shall begin on the date of entry into the Clerk Craft in the installation and shall continue to accrue as long as service is uninterrupted in the Clerk Craft and in the same installation except as otherwise specifically provided for by the provisions of the National Agreement.

It is the responsibility of the employee to request a correction of seniority in accordance with this Memorandum.

This Memorandum expires on the expiration date of the 1994 National Agreement.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: Interlevel Bidding -- Entrance Examination Requirements

The parties mutually agree that Clerk Craft employees with at least one year of current continuous career service in one or more of the positions listed below are eligible to bid on any other position listed below, without regard to the entrance examination requirement of the position being bid. Such employees must be otherwise eligible to bid in accordance with the provisions of the National Agreement.

An employee with at least one year of current continuous career service, in the Clerk Craft and/or in another craft(s), who is involuntarily reassigned to one of the positions listed below may be placed in that position without regard to the entrance examination requirement of the position.

The positions covered by this agreement are as follows:

Number	Occ. Code	Position Title	Level
SP **2-383**	**2330-46**	Air Records Processor	5
SP 2-44	2320-l 5	Bulk Mail Clerk	5
SP 2-43	2345-l 5	Claims and Inquiry Clerk	5
KP-12	23 15-04	Distribution Clerk	5
SP 2-l	2340-02	Distribution and Window Clerk	5

SP 2-629	2340-80	Distribution, Window, and MarkUp Clerk	5
SP 2-633	2315-13	Distribution Clerk, Machine MPLSM	6
SP 2-634	2315-14	Distribution Clerk, Machine SPLSM	6
SP 2-27	23 15-20	Flat Sorting Machine Operator	5
SP 2-28	2315-21	Flat Sorting Machine Operator	6
SP 2-37	23 15-55	Mail Processor	4
SP 2-469	2345-32	Mailing Requirements Clerk	5
SP 2-16	0301-41	Markup Clerk, Automated	4
SP 2-439	23 15-06	Parcel Post Distributor (Machine)	5
SP 2-362	23 15-06	Parcel Post Distributor (Machine)	6
KP-4	2340-04	Post Office Clerk	3
SP 2-l 1	2340-06	Postage Due Clerk	5
SP 2-12	2340-24	Postage Due Technician	6
SP 2-502	23 15-70	Sack Sorting Machine Operator	6
SP 2-38	2315-56	Senior Mail Processor	5
SP 2-35	0301-49	Senior Markup Clerk, Automated	5
KP-13	2320-O 1	Window Clerk	5
SP 2-388	2320-29	Window Services Technician	6

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
CLERK CRAFT

Re: Retail Training Task Force

The parties recognize the importance of customer service and product consulting skills in achieving customer satisfaction and retail sales growth and the important role played by clerks and managers with responsibilities in retail operations for assuring that growth.

With this in mind, the parties agree to establish a National Task Force on Retail Training. This Task Force will focus on the improvement of customer satisfaction and product consulting skills, as well as the enhancement of our public image.

The Task Force will develop and oversee the administration of a national, on-going program that emphasizes customer service and product consulting skills for clerks assigned flexible credits, as well as managers with responsibilities in retail operations.

The Task Force will consist of three members appointed by the APWU and three members appointed by the Postal Service. The charter of the Task Force will be to explore and evaluate previous programs conducted in the field, research alternative approaches, outline parameters for the program, conduct and measure a pilot program, and administer the national implementation of the program. The parties agree that the Task Force will approach its charter with a spirit of cooperation and the determination to provide managers and clerks with the skills to excel in our competitive marketplace.

The Postal Service agrees to contribute at least $1.5 million to a fund for this employee development effort. Such fund will be used by the Task Force for program development and workhour costs, including any travel related expenses.

Date: September 27, 1995

MEMORANDUM OF UNDERSTANDING BETWEEN THE U. S. POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO CLERK CRAFT

1. The Employer agrees to establish the position of Clerk-Finance Station, Standard Position 2-20, PS-6, to be filled by the senior-qualified bidder in the clerk craft. At offices with 100 or more bargaining unit employees, this position will be authorized for Finance Stations where three or less full-time clerical employees are assigned. In Finance Stations where four or more full-time clerical employees are assigned, at least 30% direct supervision (on site) will normally be provided on a daily basis, and no PS6 will be authorized.

2. Where an employee is currently assigned as a Window Services Technician, PS-6, or Special Postal Clerk, PS-6, in a Finance Station that satisfies the criteria, the employee will be converted to the position of Clerk-Finance Station, PS-6. If the Finance Station does not meet the criteria, the employee's current position shall be abolished and the employee reassigned in accordance with Appendix A.

3. If only one full-time PS-5 clerical employee is assigned to a Finance Station meeting the established criteria and he/she has more *than one* year in that assignment, the employee shall be promoted and placed in the position of Clerk-Fiance Station. If the employee has not been in the full-time PS-5 position for more than one year, a PS-6 position shall be established and posted for bid in accordance with Article XXXVII of the National Agreement.

4. In Finance Stations where two or more full-time clerical employees are presently assigned and where the Finance Station meets the criteria outlined in paragraph 1 above, management will discuss the issue with the local union representative and determine if one of the clerks has performed the required duties for more than one year. If such a determination is made, the provision of paragraph 3 above will be followed; if not, the position established will be posted for bid in accordance with Article XXXVII of the National Agreement and filled on a seniorqualified basis.

5. The senior bidder identified in accordance with paragraphs 3 and 4 above will be given the appropriate training for the PS-6 position and the opportunity to qualify. If he/she fails to qualify, the next senior bidder will be given the opportunity to qualify.

6. In no instance shall more than one Clerk-Finance Station, PS-6, be authorized at a Finance Station. Also, the position of Window Services Technician, PS-6, and Special Postal Clerk, PS-6, shall not be authorized in Finance Stations.

7. The Postal Service agrees to establish and implement the new position by January 1, 1979. The Union agrees to withdraw all cases currently pending in the grievance/arbitration procedure covered by this Memorandum of Understanding. It is further understood that no employee in a particular Finance Station is entitled to "higher level pay" for performing the duties and functions of a Clerk-Finance Station until the Clerk-Finance Station position to be created as a result of the action has been established and filled in accordance with these conditions.

Date: July 20, 1978

WALTER E. CROW (S)	JOHN A. MORCEN (S)
Chief Spokesman, Clerk Craft United States Postal Service	Chief Spokesman, Clerk Craft American Postal Workers Union, AFL-CIO

MEMORANDUM OF UNDERSTANDING BETWEEN THE U. S. POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO CLERK CRAFT

The basic window clerk training program will be implemented in the following manner:

1. The program will be implemented not later than October 31, 1978, in all applicable offices. All senior bidders who meet the criteria for training will be placed in the training program.

2. Trainees will take the final examination at the end of the deferment period; however, the examination will not be used for qualification decisions until. it has been properly validated.

3. Upon completion of the examination validation, the qualifying process will be put into effect after the Union has had the opportunity to review and evaluate the results of validation. Thereafter, the test will be used to denote successful completion of the training.

4. Any employee who leaves the training program for any reason will be returned to his/her former assignment.

Similar but abbreviated training programs will be developed for level 6 window positions and positions in small offices and implemented as in 1-4 above by January 1979.

The Self-Service Postal Unit Technician training and qualification programs will be implemented immediately using existing training and examination materials.

The training programs for Mailing Requirements Clerks, Mail Clerks and Bulk Mail Technicians have been implemented. Items 2-4 apply for these positions.

Date: July 20, 1978

WALTER E. CROWE (S)	JOHN A. MORGEN (S)
Chid Spokesman, Clerk Craft United States Postal Service	Chief Spokesman, Clerk Craft American Postal Workers Union, AFL-CIO

MEMORANDUM OF UNDERSTANDING BETWEEN THE U. S. POSTAL SERVICE AND THE AMERXCAN POSTAL WORKERS UNION, AFL-CIO

1. The Postal Service agrees that within fifteen (15) days following ratification of the 1978 National Agreement:

   a. The qualification rate for MPLSM operators shall be 98%.

   b. The acceptable EDIT proficiency rate for the MPLSM operator shall be 95%.

   c. For a period of forty-five (45) calendar days following successful completion of the multi-position letter sorting machine training program, EDIT results will be used to assist employees in making the adjustment to live mail conditions and not be made part of their permanent Individual Performance Record.

2. Within a reasonable period of time thereafter, all appropriate USPS manuals and handbooks will be amended to comport with the above.

Date: July 20, 1978

JAMES V. P. CONWAY (S)	EMMET ANDREWS (S)
United States Postal Service	American Postal Workers Union, AFL-CIO

UNITED STATES POSTAL SERVICE
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260

FEB -7 1994

MEMORANDUM FOR HUMAN RESOURCES MANAGERS (ALL AREAS)

SUBJECT : Senior Mail Processor

The attached settlement represents a resolution of two (2) national level grievances contesting the pay level and duties assigned to the Senior Mail Processor. It further resolves those situations where a determination must be made concerning the use of Senior Mail Processors to perform the servicing of the Delivery Bar Code Sorter (DBCS) or other automated equipment to which they may be assigned, as well as the circumstances under which a non-maintenance capable site's DBCS maintenance responsibilities will be fulfilled by the establishment of maintenance positions or by providing maintenance coverage. This settlement is not to be used for any other purpose, and should not be cited or used as precedent, except when there is a dispute over the application or meaning of the settlement.

Anthony J. Vegliante
Manager, Grievance and Arbitration
Labor Relations

Moe Billef
President
American Postal Workers Union, AFL-CIO

Attachment

UNITED STATES POSTAL SERVICE
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100

Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4128

Re: HOC-NA-C 19008
HOC-NA-C 19010

Dear Moe:

Recently, the U.S. Postal Service and the American Postal Workers, Union, AFL-CIO, met to discuss the above referenced cases.

The issues in these grievances concern the Senior Nail Processor (SMP), PS-5, job description and pay level.

In full and complete settlement of these grievances and all issues related to the SMP, PS-5, position, the parties agree to the following principles:

1. SMPs will be used to perform the servicing of the Delivery Bar Code Sorter (DBCS) in non-maintenance capable sites.

2. SMPs are not authorized to perform the servicing of the DBCS in maintenance capable sites. A maintenance capable site is defined as a facility that has (at a minimum) one full-time Electronic Technician, PS-09, and a National Maintenance Information and Control System (NMICS).

3. When a non-maintenance capable site has met either of the following criteria, the site's maintenance responsibility will be fulfilled by the establishment of maintenance positions or by providing maintenance coverage:

a) When the total routine servicing (preventive maintenance) on a tour for the DBCS equals 3520 hours in a year, or

b) When other mechanized or automated equipment (i.e., MLOCR, MPLSM, MPBCS, MPFSM, CFS, and SPBS) is deployed at a non-maintenance capable site, which also utilizes DBCS, a staffing analysis will be conducted to determine whether the 3520 work hours threshold, set forth in 3.a. above, has been met. If the above threshold has been met, the site's DBCS maintenance responsibility will be fulfilled by the establishment of maintenance positions (excluding custodians) or by providing maintenance coverage. This staffing analysis will consist of the DBCS total routine servicing plus staffing hours associated with the deployed equipment.

This settlement is noncitable, nonprecedential, and is made without prejudice to the position of either party.

Please sign and return the enclosed copy of this letter as your acknowledgment to settle the aforementioned cases and remove them from the pending national arbitration listing and step four process.

Moe Biller
President
American Postal Workers Union, AFL-CIO

Dated: 2/2/94

Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relations

Dated: 2/2/94

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

1) The senior bidder for all SMP positions or the mixed assignments (in #2 below) will enter a deferment period and be provided appropriate combinations of training, testing, and practical demonstration of ability to perform in the actual position. Permanent assignment to the duty assignment will be deferred until successful completion of the before mentioned requirements have been met. If the employee does not satisfactorily complete these requirements or withdraws, the employee will be returned to his/her former duty assignment and the next senior bidder will be placed into training.

2) Senior Mail Processor (SMP) duties may only be combined for creation of full-time duty assignments or added to the following existing full-time duty assignments in non-maintenance capable CSBCS offices:

a. Window Clerk (2320-01XX), SPD # KP-0013
b. Distribution Clerk (2315-04XX), SPD # KP-0012
c. Distribution and Window Clerk (2340-02XX), SPD # SP-2001 job postings only in those instances where the distribution is non-scheme.

3) The determination of whether an office is "non-maintenance capable" for the purposes of this Memorandum of Understanding (MOU) shall be governed by the provisions of the attached February 2, 1994, grievance settlement in Case Nos. HOC-NA-C 19008 and HOC-NA-C 19010.

4) The parties at the local level shall meet and discuss modifications to current duty assignments where SMP duties will be added. Should the parties fail to reach an agreement, the Postal Service may repost current duty assignments with SMP duties consistent with the National Agreement and any applicable Local Memorandum of Understanding (LMOU).

5) Section 234.34 of the Employee and Labor Relations Manual is not applicable to mixed assignments created under this MOU. Accordingly, offices may establish a posting using one of the position designations listed in #2 above, or modify a current duty assignment with SMP duties, even though the employees will spend more than 50% of the time performing SMP duties.

6) The number of authorized mixed assignments will be determined by the following criteria:

   a. up to three (3) "mixed" duty assignments for the first CSBCS machine:
   b. Up to two (2) additional "mixed" duty assignments for the second CSBCS machine; and
   c. May add one (1) "mixed" duty assignment for each additional machine.

7) This MOU is noncitable, nonprecedential concerning issues involving other Clerk Craft "mixed" duty assignments and is made without prejudice to the position of either party concerning "mixed" duty assignment issues in general.

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU
Labor Relations

Date: 4/6/95

Moe Biller
President
American Postal Workers
Union, AFL-CIO

Date: 4/11/95

Attachment

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKRRS UNION, AFL-CIO

RR: STAMP DISTRIBUTION NETWORK OFFICE BARGAINING UNIT STAFFING

This Memorandum of Understanding (MOU) represents an agreement between the parties to fully and completely resolve any and all issues regarding the staffing of SDN offices.

1. The Postal Service agrees to create a new Clerk Craft position titled "Stamp Distribution Clerk." Candidates for the position, which will be ranked at PS salary level 6, shall be selected on a "best qualified" basis. The Stamp Distribution Clerk position has been developed for exclusive use at SDN offices. It is not an authorized position for any other facility.

2. The employee complement at SDN offices shall be comprised of APWU Clerk Craft employees in the Stamp Distribution Clerk position and non-bargaining supervisory/managerial employees.

3. The initial staffing of the Stamp Distribution Clerk positions at SDN offices shall occur in the following fashion:

   a) Applications will first be solicited from Clerk Craft employees who currently perform duties related to stamp distribution and who are impacted by the closure of Stamp Distribution Offices.

   b) In the event the provisions of (a) above fail to produce a sufficient number of best qualified employees, the duty assignment will be posted for application by full-time Clerk Craft employees in the tie-in installation.

   c) The parties at the national level will meet and mutually agree as to which existing postal installation(s) will be the tie-in installation(s) for each Stamp Distribution Network office.

4. Future vacant Stamp Distribution Clerk duty assignments occurring after the initial staffing of the SDN office shall be filled in the following fashion:

   a) Posting for bid among the incumbent Stamp Distribution Clerks in the affected installation.

b) Any residual vacancy, as defined by Section 1 of Article 37, shall be posted installation-wide for application by best qualified candidates.

5. Any EAS-11 Technician position currently existing and encumbered at SDN offices as of the signing of this MOU shall be eliminated no later than two years after the signing of this MOU, unless mutually agreed to by the parties at the national level. EAS-11 positions which are eliminated will be replaced with Clerk Craft employees and filled in accordance with this MOU.

6. This Settlement Agreement shall be without precedent as to any other dispute now pending or to arise in the future between and among these parties or involving any one or more of these parties, and shall not be cited or relied upon by any party in any current or future dispute, except any which may arise concerning enforcement of this Settlement Agreement. In particular, and without limiting the reach of the foregoing sentence, the APWU and the Postal Service expressly agree that nothing in this Settlement Agreement may be cited or used in any way to affect the resolution of any national level grievance.

Robert L. Tunstall
Mr. Robert Tunstall
Director
Clerk Craft Division
American Postal Workers
Union, AFL-CIO

Date: 5-24-94

William J. Downes
Mr. William J. Downes
Manager
Contract Administration
APWU/NPMHU
U.S. Postal Service

Date: 5-24-94

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: ARTICLE 37.1.K & K.l, 2.E.4. & 5., APPLICATION OF LIVE RECORD FOR UNENCUMBERED FULL-TIME, PART-TIME FLEXIBLE AND PART-TIRE REGULAR CLERKS

As a clarification of the above referenced provisions as they apply to part-time flexible, part-time regular or unencumbered full-time employees, the parties agree that the two (2) or five (5) year period begins once the employee ceases to perform the duties which require the skill(s).

Robert L. Tunstall

Mr. Robert L. Tunstall
Director, Clerk Division
American Postal Workers
Union, AFL-CIO

Date 10/26/94

Curtis A. Farrow

William J. Downes
Manager
Contract Administration
(APWU/NPMHU)

Date 11-8-94

MEMORANDUM OF UNDERSTANDING
BETWEEN
THE UNITED STATES POSTAL SERVICE
AND AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Article 37.3.F.8

Article 37.3.F.8 allows a successful bidder to remain a 'live bidder" on previous bids. A senior bidder who enters a deferment period for one bid, automatically remains "live" on previous bids where he/she meets the current qualifications of the bid assignment(s).

The parties further agree that when an employee has entered training for a bid in which he/she is the senior bidder and then subsequently is identified as the successful bidder on a previous bid, the employee shall have the option of taking the duty assignment for which he/she is the successful bidder or remaining in training on the duty assignment previously awarded.

Such employee shall notify management, in writing, of his/her election to take the duty assignment as a successful bidder or remain in training on the duty assignment previously awarded.

Robert L. Tunstall

.Robert L. Tunstall
Director, Clerk Division
American Postal Workers
Union, AFL-CIO

Curtis W. Warren
Acting Manager
Contract Administration
APWU/NPMHU

Date: 11-8-94

Date: 11-8-94

LETTER OF INTENT
BETWEEN
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO
MAINTENANCE DIVISION

Re: Maintenance Career Assistance Guide

In recognition of the parties' commitment to providing career guidance for all maintenance employees, including custodial employees, the parties agree to modify the "maintenance career assistance guide" to include courses that are open to all maintenance employees without regard to level or job title. The foregoing in no way diminishes the U.S. Postal Service's existing commitments to career guidance.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

Re: Maintenance Position/Job Description Consolidation/Elimination

1) The parties agree that the attached job descriptions are agreed upon for the following positions and will be incorporated into the P-l Handbook:

- Electronic Technician, Level 9 (*)
- Maintenance Mechanic, Level 5
- Maintenance Hechauic, Level 4,

* The parties agree that Electronics Technician, Level 9 (0856-01XX), position has been modified in accordance with Article 19 and is now Electronic Technician, Level 9 (2604-01XX).

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2) The following position descriptions are eliminated and reclassified under the stipulated action. Incumbents of these positions will be considered qualified for the job into which they are being placed, These employees will be assigned to their current schedule (tour & days off) and will be rankea Keeping their current seniority date:

- Incumbents in the Oiler, Mail Processing Equipment, Level 4 (5323-01XX), and Mechanics Helper, Level 4 (4701-01XX), positions will be reclassified as Maintenance Mechanic, Level 4 (4749-06X.X).

- Incumbents in the General Mechanic, Level 5 (4749-02XX), and Assistant Engineman, Level 5 (5309-01XX), will be reclassified as Maintenance Mechanic, Level 5 (4749-03XX).

- Incumbents in the Custodian, Level 3 (3566-04XX), will be reclassified as Laborer Custodial, Level 3 (3502-03XX).

- Incumbents in the Laborer Custodial, Level 2 (3503-03XX), will be reclassified as Custodian, Level 2 (3566-04XX)

3) Incumbents in the following job descriptions will be eliminated through attrition and will be replaced by the subsequent job description:

a. Office Appliance Repairman, Level 5 (4806-04XX), and Scale Mechanic, Level 5 (3341-02XX), will be replaced by Maintenance Mechanic, Level 5.

b. Conveyor Mechanic, Level 6 (5343-02XX), will be replaced by Maintenance Mechanic, MPE, Level 7 (5342-01XX).

c. Elevator Mechanic, Level 7 (5313-03XX), Industrial Equipment Mechanic, Level 6 (5828-01XX), and Stationary Engineer, Level 7, will be replaced by Building Equipment Mechanic, Level 7 (5306-07XX).

d. Fireman Laborer, Level 4 (5402-02XX), will be replaced by the Building Maintenance Custodian, Level 4 (4749-10XX).

e. Postal Machines Mechanic, Level 6 (4801-06XX), will be replaced by another position at Level 7.

Nothing in this agreement precludes the posting of a vacancy identified in section 3 for bid within the occupational group until a residual vacancy occurs. Once the residual vacancy occurs, it should be reclassified as the new job indicated and posted accordingly.

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4) Incumbents in the following positions will be upgraded to the indicated position, within the same step, and retain credit toward the next step increase.

These employees shall be assigned to their current schedule (tour and days off). They will be considered qualified for the job into which they are being placed. The preferred assignment seniority of the upgraded employees shall be determined in accordance with Article 38, Section 2.P.2:

o Maintenance Mechanic, Mail Processing Equipment, Level 6 (5342-01XX), will be upgraded to Maintenance Mechanic, Mail Processing Equipment, Level 7 (5342-01XX).

- o Engineman, Level 6 (5309-02XX), will be upgraded to Building Equipment Mechanic, Level 7 (5306-07XX).

- o Electronics Technicians, Level 8 (0856-01XX), will be upgraded to Electronic Technician, Level 9 (2604-01XX).

All employees upgraded in accordance with section 4 of this agreement will be notified of the opportunity to submit a changed preferred assignment selection within thirty days of this notification.

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5) The parties agree that the duties and responsibilities of the following job descriptions being eliminated are incorporated into the replacement position description. Further, any employee beiag upgraded who has retreat rights to their former position will retain these rights in their new position.

o Blacksmith-Welder Helper, Level 4	3704-01xX
o Carpenter Helper, Level 4	4607-01XX
o Conveyor Mechanic Helper, Level 4	5343-01XX
o Custodian, Level 5	3566-04XX
o Electrician, Level 6	2805-02XX
o Electrician Helper, Level 4	2805-01Xx
o Elevator Mechanic Helper, Level 4	5313-01XX
o General Mechanic, Level 6	4749-02XX
o Laborer Custodial, Level 1	3502-03XX
o Letter Box Mechanic Helper, Level 4	3843-01XX
o Mason Helper, Level 4	3603-01XX
o Mechanic Helper, Level 5	4701-01XX
o Office Appliance Repairman Helper, Level 4	4806-03XX
o Plumber Helper, Level 4	4206-01XX
o Postal Machine Mechanic Helper, Level 4	4801-05XX
o Sign Painter Helper, Level 4	4104-07XX
o Painter Helper, Level 4	4102-01XX
o Scale Mechanic Helper, Level 4	3341-01XX
o Machinist Helper, Level 4	3414-01XX
o Electronics Technicians, Level 8	0856-01XX
o Engineman, Level 6	5309-02XX
o Maintenance Mechanic, Mail Processing Equipment, Level 6	5342-01Xx

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6) The parties agree that the following registers are eliminated and that the Maintenance Selection System Field Position Listing by Group will be revised to reflect the discontinuance of these positions.

- Assistant Engineman
- Engineman
- Fireman
- Fireman-Laborer
- Stationary Engineer
- Electronics Technician/08
- Maintenance Mechanic, MPE/06
- Elevator Mechanic
- Industrial Equipment Mechanic
- Mechanic Helper
- Oiler, MPE
- Postal Machines Mechanic
- Postal Maintenance Trainee, A & B
- Scale Mechanic

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7) The parties agree that this memorandum allows for maintenance employees to perform an expanded set of duties and responsibilities as provided in the revised standard position descriptions. As a result of *this* action, the February 1, 1988, correspondence et al., referencing position title, grade level and equipment is rescinded and void.

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8) The parties agree that *as* a result of the above changes, the existing Maintenance Selection System will require changes.

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9) The effective date of the upgrading and reclassification process shall be November 13, 1993.

Curtis W. Warren
Acting Manager
Contract Administration
(APWU/NPMHU)
Labor Relations

James Lingberg
Director, Maintenance Division
American Postal Workers
Union, AFL-CIO

Attachments

Date: 18-Oct-1993

QUESTIONS AND ANSWERS ON POSITION CONSOLIDATIONS

1. What initial actions must be taken locally?

Human Resources at Headquarters has advised all field units to change titles as listed in the Position Consolidation agreement. All reclassification and upgrades, except maintenance support positions, will have the same date, November 13, 1993. The date for the maintenance support position title changes will be announced later.

2. **Can I restructure scheduled days and hours as a result of the Memorandum Of Understanding (MOU)?**

No, the work days and tour for each employee should not be altered because of this MOU. No rebidding is needed.

3. 1 **want to do a general rebid of all ET jobs. How long do I have to wait to restructure the bids?**

There is no embargo on restructuring bid assignments. When necessary, you can restructure bids to meet operational needs. Please ensure this is discussed with the local union prior to implementation. Solely as a result of this MOU, the restructuring of bid assignments to accommodate employees is prohibited.

4. **The Laborer Materials Handling job was listed several months ago as a "Freeze, Eliminate, Attrit,"** should I **eliminate the position?**

No, the incumbent stays in the same job title until the employee leaves it.

5. **Do I post the positions identified as "eliminated through attrition"?**

No action is taken until a vacancy occurs.

Once a vacancy occurs, it can be posted for bid within the occupational group until a residual vacancy occurs. Once the residual vacancy occurs, it should be reclassified as the new job indicated and posted accordingly.

6. **What if one of my upgraded employees is an unassigned regular**?

All upgraded employees remain in the same days and tour. An unassigned regular does the same.

7. How **will seniority be determined for employees who are RECLASSIFIED to the same level?**

Reclassified **employees** will maintain the same Preferred Assignment seniority date they h their former position; relative standings are merged.

8. How **will seniority be determined for employees who are UPGRADED?**

Employees upgraded follow the National Agreement Article 3.8.2.F.2. Incumbents who were in the higher level position prior to Jun3 25, 1992, will retain seniority for preferred assignments and will remain senior to those who entered a position on or after June 25, 1992.

Employees upgraded will be merged employees who entered a position on or after June 25, 1992, based on their uninterrupted maintenance craft service in the installation.

9. **Could you give an example of a facility that has both ET-8's** and **ET-9's?**

Employees incumbent in ET-9 jobs prior to November 13, 1993, change occupational numbers, their relative seniority remains unchanged, and they have no resultant change to their days and hours.

The ET-8's are upgraded. They entered a new occupation group and level on November 13, 1993. For seniority, they follow the rules of 38.2.F.2. They also have no resultant change to their days and hours.

10. **At our BMC we have an "interim 8" ET, who is finishing On Site Maintenance Certification (OSMC). Does this employee also get promoted to ET-9 like the ET-8's at the GMF?**

Yes, all ET-8's are changed.

11. How do we fill the level 4, 5 and 9 positions since the position description/title are new?

The Electronic Technician PS-9 register is completely converted from the old ET-9 register.

For Maintenance Mechanic-4, the Mechanic Helper-4 register **will be used.** For Maintenance Mechanic-S, the General Mechanic-S register will be used. Offices will continue to use the current MSS procedures to fill these positions.

Whenever a new MSS process is established for the new positions, new guidelines will be issued.

12. **Do the Promotion Eligibility Registers convert the same as the Position consolidation list?**

No. The exceptions are shown in question 11.

13. Part 6 of the MOU eliminated the Mechanic Helper, PS-4 from the Maintenance Selection System. How will that job be filled until the MSS produces a Maintenance Mechanic-4 register?

In part 6 of the MOU, Mechanic Helper was listed in error.

14. Prior to November 13, 1993, our office had no ET-9 positions, all our ET's and our Promotion Eligibility Register (PER) were level 8s. Since no one would be bypassed, could we convert the ET-8 to a ET-9 PER?

No, in accordance with Article 38.5.B. I, if the office never had an ET-9 PER they must now establish one.

15. Does a "relief assignment" change?

Only to the extent that the titles of the specific duty assignment(s) covered by a relief assignment are converted to the new job titles.

16. **What if someone does not want their new title or new position description ?**
Employees in jobs affected by reclassification or upgrading may not remain in their former position title.

17. **What if someone is currently on LWOP? Must I upgrade them to the higher level position ?**

Actions are automatic for specified positions. If their title gets upgraded, they get upgraded.

18. During the last Open season some ET-8's refused to apply for ET-9. None are on the PER for ET-9. Should I Promote the lower level employees who are on the ET-9 PER before moving Up the ET-S's?

No. All incumbent ET-8's are considered qualified and upgraded to ET-9 on November 13, 1993.

19. What if an MPE-6 was rated by the MSS as **"Not qualified" for MPE-7. Do I still upgrade the employee?**

Yes. However these employees should only perform work on equipment they have ***been*** properly trained on.

20. **My Industrial Equipment Mechanic PS-6 IEM-6) wants a BEM-7 job. Can 1 abolish the job and place the employee in a BEM-7 as I did for the Engineman-6? The employee is on the PER for Engineman-6.**

No, the IEM-6 position remains until the incumbent vacates the position. When the position is vacated, a BEM-7 job, which incorporates the duties, is then created.

21. **In Part 5 of the agreement I see the position "Electrician PS-6 (2805-02XX)" is eliminated. Do I abolish my electrician immediately?**

No. Your electrician is a Maintenance Electrician PS-6 (2805-03XX), a different title and occupation code. The Electrician (2805-02XX) job title is vacant nationwide.

22. **Several years ago a headquarters list indicated the maintenance employee title and level for each piece of equipment, how will we know what** level is needed **for equipment now?**

Because many jobs have changed, equipment by grade level lists are now obsolete. Employees perform an expanded set of duties and responsibilities as provided in the revised position descriptions for their level.

23. **What criteria do we use to determine the number of employees required from each occupational group?**

In accordance with MMO-21-91, offices will need to estimate the skill level needed and staff to assure adequate coverage for performing the workload.

24. **What impact will this have on training?**

Some increases in training requirements are possible at offices having employees moving into different positions and duties.

On all equipment, safety training must always be a foremost consideration. Employees must not be assigned to equipment until familiar with the safety aspects of the equipment.

25. **Who wrote the new position descriptions? And why didn't the field get to decide what jobs would be kept and which ones would get new titles or promoted?**

Both management and Union used a task force in the **process.** Each task force included knowledgeable employees from the field. The parties used the task force information to provide guidance in the discussions. Eventually the parties reached an agreement that significantly benefits both sides.

26. **Item 3e shows Postal Machines Mechanic-level 6 being replaced by another duty assignment at level 7. Is this going to be an MPE-7?**

Not necessarily, when the residual vacancy occurs from the Postal Machines Mechanic position, the offices may decide to replace this vacancy with a different position. On this replacement, the local manager should discuss which position title is the most appropriate with the local APWU representative. During the headquarters discussions on the position consolidation memorandum we agreed a local determination would be needed on this position.

27. **Should I delay any bidding?**

There is no "hold" on the bidding process.

28. **Why weren't the MPE-7 and BEM-7 position descriptions included in the job consolidation package that was sent out?**

Neither position description changed with the signing of the job consolidation MOU.

29. **Can the MPE-7 work on building equipment?**

The MPE-7 Position Description includes performing preventive maintenance inspections on MPE, building and building equipment.

It is not anticipated the MPE-7 will perform building work where BEM-7's are assigned to a **facility,**

30. **Was the Letter Box Mechanic Position frozen or eliminated?**

No. There is no change to that position.

31. We have a Laborer-Custodian-3 who was selected from the MPE-6 PER four weeks ago. The promotion was to be back dated when he completed the required training. Is the promotion canceled?

No, since the selection occurred prior to November 13, 1993, when all MPE-6's were upgraded, the employee is promoted to MPE-7 upon successful completion of training.

32. We have an MPE-6 who was selected two months ago from the PER to be a Maintenance Electrician-6, the form 50 will be back **dated when the required training is completed. Will this be a problem?**

Yes, on November 13, 1993, all MPE-6's were upgraded to MPE-7. This employee should be provided an opportunity to select which job the employee wants. If the employee wants the pending Maintenance Electrician position, then prior to completing the required training, the employee needs to place that request in writing. If the employee declines the electrician position, he is an unassigned regular MPE-7 and available for assignment in accordance with the collective bargaining agreement.

33. An ET-8 **was selected and reassigned on 8/16/93 for promotion to ET-9, pending satisfactory completion of training. The employee failed the training on 1 1/19/93 and had been upgraded on 11/13/93 in accordance with the MOU. Since the upgrade occurred prior to the failure, does the employee get compensated retroactively to the date of reassignment?**

No. The November 13, 1993, action was an upgrade for all ET-8's. To have the retroactive compensation, the employee must fulfill the satisfactory completion of training obligation of the promotion selection.

34. **In the above question. the employee was reassigned as an unassigned regular ET-8 and placed on the tour and non-scheduled davs of the ET-9 duty assignment for which the training was-intended. Now what is the employee's bid?**

The employee is an ET-9 assigned to the same tour and non-scheduled days as prior to failing the course.

35. **At our BMC we have normally had an ET-8 trained and awaiting an ET-9 vacancy, While pending the vacancy. The ET-8 would perform the duties of the former position. Does that change now?**

Yes, the ET pending a vacancy is now a level 9. BMC's have normally had one or two ET-8's in a pending status after they fmished their residential training. **While an** ET-S, they performed the work of their former position.

Now all ET's are of the same title and level. The workforce will be assigned tasks covered by their position descriptions. The total MPE/ET complement will remain unchanged.

36. We **have two Clerk-Steno positions I am now thinking about swapping at least one of those positions for a Maintenance Support Clerk. Can this be done?**

No, the MOU on the Maintenance Support Clerk positions was not intended to cause movement, in either direction. between these jobs. In addition, the Maintenance Support Clerk positions may not be used until headquarters announces an implementation date for the Maintenance Support Clerk MOU.

37. **With the job consolidation we are having more seniority ties that cannot be broken with Article 38.3.J, what do we use next**

If the ties continue to exist after application of the tie breakers listed in 38.3.J, the parties agree the following will be used to break ties.

Numerical by the last three or more numbers (using enough numbers to break the tie, but not fewer than three numbers) of the employee's social security number, from the lowest to highest.

38. **What about the Maintenance Support Clerk positions?**

Until an implementation date is set and announced, there will be no changes in these positions. Until the change date occurs, vacancies in the following positions should be filled using the existing titles and registers?

Maintenance Control Technician-6
Maintenance Control Clerk-S
Maintenance Control and Stock Clerk-S
Tool and Parts Clerk-5
Office Clerk Custodial-S

When the change date occurs, each will be converted to the new title as listed in the MOU.

William J. Downes
Manager
Contracts Administration
(APWU/NPMHU)
Labor Relations

James Lingberg
Director, Maintenance Division
American Postal Workers Union,
AFL-CIO

Date: 12-2-93

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

The parties agree that this Memorandum of Understanding (MOU) represents a conclusion to all issues concerning the implementation of the new job descriptions entitled Maintenance Support Clerk, Level 5 (0303-01XX), and Maintenance Support Clerk, Level 6 (0303-02XX) as provided for in the October 18, 1993 MOU on the same subject.

Maintenance Support Clerk, Level 6 (0303-02XX)

Each Maintenance Control Technician, Level 6 (0301-07XX), will be reclassified as a Maintenance Support Clerk, Level 6 (0303-02XX), effective June 24, 1995 (PP-14, week 1). These employees will remain in their current duty assignments (hours and days off) and will maintain the same preferred assignment seniority date they had in their former position; relative standings will be maintained. All reclassified employees will be considered qualified for their new positions and eligible to bid on preferred assignments.

Maintenance Support Clerk, Level 5 (0303-01XX)

Each Maintenance Control and Stock Clerk, Level 5 (0301-19XX), Maintenance Control Clerk, Level 5 (0301-16XX), Office Clerk Custodial, Level 5 (0301-05XX), and Tool and Parts Clerk, Level 5 (6904-01XX), will be reclassified as a Maintenance Support Clerk, Level 5 (0303-01XX). These employees will remain in their current duty assignments (hours and days off) and will maintain the same preferred assignment seniority date they had in their former position; relative standings will be merged. The breaking of seniority ties will be determined in accordance with Article 38.3.J. of the National Agreement. Remaining ties shall be broken by listing the employees in numerical order by the last 3 or more numbers of their social security number (using enough numbers to break the tie, but not fewer than 3 numbers) from the lowest to the highest. All reclassified employees will be considered qualified for their new positions and eligible to bid on preferred assignments.

Promotional Eligibility Registers

Any vacancies occurring before June 24, 1995 (PP-14, week 1), will be posted and filled using existing PARs/PERs. Any vacancies occurring on/after June 24 will be withheld until new PERs are established for the Maintenance Support Clerk, Level 5, and/or Maintenance Support Clerk, Level 6. All PERs will be posted no later than August 19, 1995 (PP-18,

week 1). Upon establishment of the PER, all jobs withheld will be posted and filled using the appropriate PAR/PER.

Notices soliciting applications for PERs for Maintenance Support Clerk, Level 5, and Maintenance Support Clerk, Level 6, will be posted for 21 days beginning June 24, 1995 (PP-14, week 1), utilizing the attached qualification standards. PERs will be posted no later than August 19, 1995 (PP-18, week 1). Any additional training, education, or experience gained by an employee detailed to a position withheld in accordance with the above will not be considered when the detailed employee makes application for a PER.

Residual Maintenance Support Clerk, Level 6 (0303-02XX), vacancies will be filled on the basis of seniority (senior qualified) from the Maintenance Support Clerk, Level 5 (0303-01XX), in accordance with Article 38 of the National Agreement.

The parties agree that the following registers are eliminated effective June 24, 1995 (PP-14, week 1):

Maintenance Control and Stock Clerk (0301-19XX)
Maintenance Control Clerk (0301-16xX)
Tool and Parts Clerk (6904-01XX)
Office Clerk, Custodial (0301-05XX)
Maintenance Control Technician (0301-07XX)

Preferred Assignment Registers

Employees who are reclassified will continue to bid on preferred assignments utilizing preferred assignment forms submitted for their former positions. Additionally, notices will be posted for seven days notifying all reclassified employees of the opportunity to submit a new or amended preferred assignment selection form. This new or amended form will not count toward the three opportunities afforded in Article 38.5.A.6.e.

The attached questions and answers will assist you in understanding the impact of the new job description.

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU
Labor Relations

Date: 5/24/95

James Lingberg
Director, Maintenance
Division
American Postal Workers
Union, AFL-CIO

Date: 5/17/95

Attachment

Attachment to MOU: Questions and Answers on Maintenance Support Position Consolidations

1. How will my seniority for preferred assignments be affected?

All employees will keep their same relative seniority date. For example, employees promoted before June 25, 1992, will retain their seniority date as the date they entered the occupational group and level and will remain in the top portion of the PAR list. Employees promoted after June 25, 1992, will retain their seniority date as their total Maintenance Craft service in the installation and will be listed on the PAR list below those promoted prior to June 25, 1992.

2. How will the seniority lists be combined?

The seniority lists will be merged with all employees keeping their same relative date. In accordance with the National Agreement, the lists will remain in order of seniority as determined in question 1.

3. I hold a position in tools and parts. How will my current duty assignment be affected?

You will continue to report to your original duty assignment (as it was originally posted), regardless of whether you are a Tool & Parts Clerk, Maintenance Control Clerk, Maintenance Control & Stock Clerk, or Office Clerk Custodial. Employees wilt not be assigned away from their original duty assignment on a day-to-day basis. However, employees may be required to "fill-in" on other assignments for such purposes as heavy work load, holidays, unexpected absences, lunch breaks, or other short term needs.

4. I am a Tool & Parts Clerk and did not take the typing test which is a requirement of the Maintenance Support Clerk position. Will I have to take this test to be reclassified as a Maintenance Support Clerk?

No, all Tool & Parts Clerks are to be considered qualified for the Maintenance Support Clerk, level 5, position in their current duty assignment and are eligible to bid on vacant duty assignments.

5. How will the Level 6 Maintenance Control Technician be affected?

The position description and title of this job was changed through the Article 19 process to Maintenance Support Clerk, Level 6. All seniority lists will remain the same. All Level 6 Maintenance Control Technicians are to be considered qualified for the Maintenance Support Clerk, Level 6, position in their current duty assignment and are eligible to bid on vacant duty assignments.

6. Are there going to be major changes in assignments such as abolishing and re-establishing duty assignments?

Solely as a result of this consolidation, the restructuring of bid assignments to accommodate employees is prohibited. There is no embargo on restructuring bid assignments to meet operational needs. Management will discuss any restructuring with the union prior to implementation.

7. Will I receive a work clothes allowance?

Yes, both new positions are entitled to a work clothes allowance.

8. How will this consolidation affect overtime?

Overtime in the Maintenance Craft is established in Article 38.7.D., which requires overtime desired lists to be established for each occupational group and level. Article 30 allows the local parties to establish overtime lists by sections. Local management should meet with the union to determine what effect this will have on overtime assignments.

9. How will this consolidation affect annual leave?

All annual leave commitments must be honored. Local management should meet with the union to determine what effect this will have on their Local Memorandum Of Understanding (LMOU).

10. I am presently a Tool & Parts Clerk and did not take the typing test. How do I qualify for the Maintenance Support Clerk. Level 6?

You must meet the Qualification Standard for the Level 6 position including the examination requirements, test 710 (clerical) and test 714 (typing).

11. How will employees be ranked on the Promotion Eligibility Registers?

For the Maintenance Support Clerk, Level 5, employees will be listed as best qualified.

For the Maintenance Support Clerk, Level 6, qualified Maintenance Support Clerks, Level 5, will be ranked in senior qualified order. All others will then be listed below the senior qualified applicant in best qualified order.

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
MOTOR VEHICLE CRAFT

Re: Developmental Program for Automotive Mechanic

The parties agree that the APWU will continue to participate in a USPS study team for the establishment of a developmental program leading to the position of Automotive Mechanic, PS-6.

At the conclusion of the study, which will be no later than January 1, 1997, the parties will meet to decide whether the program should be expanded to a nationwide program, to continue to study the program, or to terminate due to a lack of success in relation to the parties' goals of greater opportunity for craft employees and improved efficiency for the USPS.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
MOTOR VEHICLE CRAFT

Re: Annual Bidding Procedure

This Memorandum of Understanding (MOU) represents an agreement between the parties to establish a joint committee to explore and create a standard procedure for annual bidding of specified Motor Vehicle Craft duty assignments when applicable under Article 39, Section 2.A.6. and 7.

This joint effort will seek to establish a standard procedure which is the most efficient and cost effective for both the Postal Service and Motor Vehicle Craft employees. This committee will meet no later than sixty (60) days after the signing of this agreement to begin exploring this issue and conclude no later than June, 1995, unless otherwise agreed to by the parties at the National level.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

LETTER OF INTENT
UNITED STATES POSTAL SERVICE
and
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Within 60 days of the ratification of the 1981 National Agreement with the American Postal Worker's Union, AFL-CIO, **and the National Association of Letter Carriers, AFL-CIO, the Postal Service intends to do the following:**

1. Issue a written reminder to Vehicle Maintenance Facility Managers that installation heads have the authority to waive the written examination associated with the selection of Automotive Mechanics in keeping with the Handbook **P-12B,** Qualifications Standards, Bargaining Unit Position.

2. Issue written instructions to fleet management personnel setting forth our intention that vehicles with a two ton or greater load capacity leased for a period of one year or more should be equipped with power steering provided that:

   a. such equipment is reasonably available; and

   b. the lease cost for power steering is no greater than that which would be incurred for a vehicle without power steering.

In any regard, it is the Postal Service's intent that all leased vehicles have a steering geometry which is appropriate for the load capacity of the vehicle.

Date: Printed in 1981 Agreement.

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO
SPECIAL DELIVERY MESSENGER CRAFT

Re: Special Delivery Unit Review

A review will be conducted in each special delivery unit on an annual basis to determine appropriate scheduling and staffing. This review will include, but not be limited to, an analysis of total workload assigned to the Special Delivery Messenger Craft in that unit, service requirements, and overtime. The results of the review will be shared with the appropriate union representative,and the employer will make adjustments if appropriate.

Delivery of expedited mail will be consistent with Methods Handbook, DM-20 1, Express Mail Service, the Postal Operations Manual and the Domestic Mail Manual. The total workload assigned to Special Delivery Messengers will not be decentralized or adjusted for the sole purpose of removing work from the Special Delivery Messengers.

Date: July 21, 1987

LETTER OF INTENT
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Operation of Powered Industrial Equipment

The operation of powered industrial equipment that is powered by electric motor (battery) or internal combustion (flammable gases) requires the operators to have an appropriately endorsed Certificate of Vehicle Familiarization and Safe Operation. This is the case regardless of whether the operator walks behind or rides on the equipment to guide it.

Level 4 employees, in the Mail Equipment Shops and Materiel Distribution Centers, who operate this equipment and are required to have an appropriately endorsed Certificate of Vehicle Familiarization and Safe Operation are entitled to Level 5 compensation for the period of such operations.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Work Clothes Program - MES

The parties agree that employees who are assigned to the Mail Equipment Shops and who are entitled to a Work Clothes Allowance, shall be suspended from the Uniform Allowance Program. These employees will continue to be eligible for the established allowance amount as determined by Article 26, however, the Employer will establish an agreement with an authorized vendor of the U.S. Postal Service Uniform Program that will provide eligible employees with aprons, smocks, work shirts and/pants. Based on the allotment authorized, employees will retain their current Uniform Program anniversary date and shall continue to be subject to all existing regulations regarding the work clothes program, except as noted above.

Effective with the date of this Agreement, employees assigned to the position of Group Leader shall be eligible for the Work Clothes allowance.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Training Opportunities - Mail Equipment Shops

The Employer will continue to post the opportunity to take available PEDC courses to enhance employee's abilities to pass qualifying examinations for the following positions:

Mail Equipment Shops Technician - Grade 9

Data Conversion Operator (MES) - Grade 4

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Mail Equipment Shops Operations

The parties agree that the Union will be informed as far in advance as practicable of any decision which could substantially alter operations which affect jobs at the Mail Equipment Shops.

No final decision on whether to substantially alter operations which affect jobs at the Mail Equipment Shops will be made until the Employer has met and discussed the matter with the Union.

The intent of the parties is to provide that affected employees are given consideration, including training for reassignment to an available postal position, for which they meet all qualifications, within the Mail Equipment Shops bargaining unit or to another bargaining unit represented by the American Postal Workers Union, AFL-CIO.

This Memorandum of Understanding expires at 12 midnight, November 20, 1998.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Supplemental Work Force - Article 7, Section 1.B.3

The parties mutually agree that the number of casuals, for the Mail Equipment Shops, who may be employed in any period, other than May through September and December, shall not exceed 5% of the total number of employees covered by this bargaining agreement at the Mail Equipment Shops. During the months of May through September, the number of casuals that may be employed shall not exceed 10% of the total number of employees covered by this bargaining agreement at the Mail Equipment Shops.

The parties mutually agree that the number of casuals, for the Materiel Distribution Centers, who may be employed in any period, other than May through September and December, shall not exceed 5% of the total number of employees covered by this bargaining agreement at the Materiel Distributioncenters. During the months of May through September, the number of casuals that may be employed shall not exceed 10% of the total number of employees covered by this bargaining agreement at the Materiel Distribution Centers.

Those casuals employed at the Mail Equipment Shops and the Materiel Distribution Centers will not be counted as part of the national total referenced at Article 7.1 .B.3.

This Memorandum expires December 3 1, 1996.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Non-Bargaining Unit Position Details - MDC

The parties agree that the assignments of those employees detailed to nonbargaining positions at the Topeka Materiel Distribution Center as of the effective date of this agreement are not subject to the provisions of Article 41.2.G.3 until the first occurrence of a detail to a nonbargaining position after the employee has returned to his/her bargaining-unit assignment.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Typing Requirement Review - MDC

The parties agree that the employer will review those positions at the Materiel Distribution Centers which currently have a typing requirement to determine the appropriate typing requirements for those positions This review will be completed within 180 days after the effective date of this Agreement.

Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Dependent Care Task Force

During the term of the 1994 National Agreement, the parties agree to continue at the national level a "Task Force on Dependent Care." The Task Force shall have three representativesof the American Postal Workers Union (APWU), AFL-CIO, and three representatives of the U.S. Postal Service (USPS).

The purpose of the Task Force shall be to evaluate and make recommendations regarding dependent care issues. In this regard, the task force shall continue to study and assess the benefits of dependent care programs to employees and the USPS regarding issues such as improvements in attendance, productivity, morale, turnover, etc. Other issues to be considered include, but are not limited to, liability, usage, and equity.

The Task Force will continue to explore a full range of options including, but not limited to, dependent care programs, referral services, parenting seminars, consortiums, and information services.

The parties agree to establish a Dependent Care Fund. The Postal Service will contribute $1.3 million to the Dependent Care Fund. The Task Force will develop procedures for administering the Dependent Care Fund. No program (including any pilot program) or consultants may be funded by the Dependent Care Fund except by approval of the Task Force. The Fund may be used to retain the services of a professional consultant(s) and to develop dependent care programs through loans or grants. Dependent care programs may include referral services, parenting seminars, elder care seminars, consortiums, information services, child and elder care education and training activities. A professional consultant(s) may be retained to assist the Task Force in assessing proposals for dependent care programs, to assist local management and employees in the development of dependent care programs, and to assess the benefits of dependent care programs, once established, to employees and the USPS.

Dependent care programs may be funded by the Dependent Care Fund only where an assessment conducted by a professional chosen by the Task Force has been completed, presented to the Task Force, and demonstrates the need for the particular type of dependent care program contemplated and that the program will provide some benefit to postal employees and the USPS. Benefits to the USPS which will be evaluated include improvements in attendance, productivity, morale, turnover, etc.

Within an appropriate period after the initiation of any dependent care program, the Task Force shall conduct a study to assess the benefits to employees and the USPS of the program. Benefits to the USPS to be specifically evaluated include effects on attendance, productivity, morale, turnover, etc.

The Task Force shall convene periodically but at least quarterly, at such times and at such places as it deems appropriate during the term of the 1994 Agreement. No actions or recommendations may be taken by the Task Force except by consensus of its parties subject to the approval of the National President of the APWU and the Vice President of Human Resources, USPS.
Date: Incorporated into 1994 Agreement by Arbitrator Clarke's October 1, 1995 Award

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: SINGLE POSITION HIGH SPEED INDUCTION WIT (SPHSIU)

The parties agree to meet at the St. Paul BMC within 30 days of this agreement to discuss the methods and means to finalize the design of the work station at the St. Paul BMC. After the final design is developed, work stations nationwide will be modified.

The U.S. Postal Service in cooperation with the American Postal Workers Union, AFL-CIO, will finalize the development of prototype work stations on the SPHSIU by addressing issues such as, but not limited to, the following:

1. Slide Modification - The final slide and facing area modifications in the St. Paul BMC will serve as a basis for the final configuration. This will include continued development to resolve feed problems on the slide.

2. Operator work Station Modification - The parties will meet within 60 days to discuss and reach agreement on improvements and modifications in the following areas:

a) Keying, Keyboards and Pedestals
b) Sit/Stand Device for Operators
c) Culling Out of Non-Machineable Outsides
d) Ready-light and/or audible tones, the use of anti-fatigue mats.

In addition, progress reports regarding these improvements and modifications will be rendered every 60 days.

3. Illumination - Work station illumination will be maintained by the operator in the range of 75 to 200 footcandles. In addition, issues such as diffused high bay lighting, operator controlled rheostats at workstations, glare, and task specific lighting criteria will need to be addressed.

4. Noise Control - Noise exposure will be maintained within the level of 84 dbA time weighted average or less. The Postal Service will continue efforts at all BMCs to reduce noise levels below 84 dbA.

5. Rotation Systems - Operators will not be required to key continuously for period6 of greater than two (2) hours. If operators are required to key continuously for two (2) hours,

the interim between keying cycles will be at least one (1) hour with rotation to non-keying duties.

The parties at the local level shall meet during the month of October, 1990 to negotiate a rotation schedule. If no agreement is reached, the dispute may be appealed to a joint committee at the national level. If no agreement is reached at the national level, the parties will refer the issue to a regional level arbitrator to make the decision on a proper rotation.

The parties agree to meet within 90 days to discuss, resolve and implement the following:

1.) Training - A training program will be developed, jointly. The training program will include, but is not limited to, orientation to keyboard operation, facing of parcels, rates of training, posture and work-related movements.

2.) Prelininarv and Follow-up Medical Evaluations to Determine Effectiveness of Procedures - The parties agree to develop evaluations to determine the effectiveness of modifications to the final SPHSIU designs.

It was mutually agreed that the above constitutes full and complete settlement of all grievances filed concerning the institution of the Single Person High Speed Single Person High Speed Induction Unit (SPHSIU) at Bulk Mail Centers (BMC's) as of the date of this agreement. The Union agrees to withdraw all Unfair Labor Practice complaints filed regarding the same issue. Any grievances filed subsequent to the signing of this memorandum concerning the open issues identified above will receive expedited handling through the Grievance-Arbitration Procedure.

Joseph J. Mahon, Jr.
Assistant Postmaster General
Labor Relations Department

Date: 9/21/90

Moe Biller
President
American Postal Workers Union, AFL-CIO

Date: 9/28/90

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Effective Dates

The parties agree that in the absence of a successor agreement to the 1990-1994 National Agreement, the following contractual provisions will apply as set forth below:

1. **Article 10, Section 4. - Choice vacation selections shall proceed as provided in the 1990-1994 Natlonal Agreement and/or local memoranda of understanding.**

2. **Article 15, Section 4.A.7. - Terms of arbitrators--The term of arbitrators under the 1990-1994 National Agreement will expire May 20, 1995, unless the parties otherwise mutually agree.**

3. **Article 37, Section 3.A.5. - Reposting of occupied duty assignments due to cumulative changes to starting times--Changes in starting times that occurred during the 1990-1994 National Agreement will not accrue beyond November 20, 1994.**

4. **Article 37, Section 3.B.1. A full-time Distribution Clerk, Machine, serving under a bidding restriction on the expiration date of the 1990-1994 National Agreement will be released from such restriction effective 180 days from the date the employee was permanently assigned to the duty assignment requiring the restriction.**

Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relations

Moe Biller, President
American Postal Workers Union, AFL-CIO

Dated: 11/4/95

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Transitional Employee

1. The parties agree to the following principles:

   a. The transitional work force will be comprised of noncareer, bargaining unit employees.

   b. Transitional employees will be hired for a term not to exceed 360 calendar days and will have a break in service of at least 5 days between appointments.

   c. Transitional employees will be used to cover duty assignments held pending reversion due to automation and residual vacancies withheld pursuant to Article 12. The term "held pending reversion" is a vacant duty assignment which is due to be reverted. The term "residual vacancies" are those positions that remain vacant after the completion of the voluntary bidding process.

   d. Transitional employees may also be used to replace part-time attrition. The term "attrition" refers to the reduction in the career employee complement for any reason.

   e. The use of transitional employees will be phased out as the deployed automated equipment becomes operationally proficient. Transitional employees covering positions withheld for career employees will be retained until the reassigned employees, who require training, qualify for their new duty assignments. The phase-out period for the accomplishment of the above objectives (individually or in combination) may not exceed 90 days from the date of deployment.

   f. Transitional employees who are covering duty assignments held pending reversion or residual vacancies withheld pursuant to Article 12 will not be displaced from these assignments for the purpose of utilizing a casual employee.

   g. Leave provisions for transitional employees are included in Attachment A.

2. On a quarterly basis, the local union at the impacted office will be provided with an updated report which will provide the following (see Attachment B; Impacted Office Employee Status Report):

   a. The projected reduction for the transition period separated by category as follows: LDC 11, LDC 12 (letters), LDC 12 (Flats), LDC 13, and other clerical (except LDC 42).

   b. A baseline number for each category and a quarterly update of each category for full-time positions and part-time positions.

   c. A listing of transitional employees by name and the job number these employees are working on for positions withheld (see Attachment Bl; Positions Withheld).

d. A listing of transitional employees by name and the job number these employees are working on for positions held pending reversion (see Attachment B2; Positions Held Pending Reversion).

e. A listing of transitional employees by name and a listing of part-time employees who were replaced by name for part-time assignments (see Attachment B3; Part-Time Assignments).

f. Management will supply the local union, at the impacted site, with information regarding the equipment deployment schedule for the transition period. The deployment schedule will include specific information (i.e., types of equipment, date of deployment, deployment site). The equipment deployment schedule will be updated annually.

g. Management will supply the local union at the impacted site with information regarding the impact. This informationwill also include the time frames for these impacts. Any changes to this information by management requires a 14-day advance notice to the local union. As equipment is deployed and becomes fully operational, the number of transitional employees specific to that deployment will be removed from those assignments in accordance with l.e. above.

3. On a quarterly basis, management agrees to provide the following information at the regional level:

a. Management will supply the union with a projected regional reduction of employees for the transition period (see Attachment C; REGIONAL COMPLEMENT REDUCTION REPORT).

b. On a quarterly basis, management will supply the union with the projected reduction in each MSC, a listing of impacted offices, the actual attrition in the current quarter by impacted office, and a current listing of positions withheld by impacted office.

c. Management will total the information in Item number 2 and supply a regional summary.

4. Regional Determination--Number of Withheld Vacancies:

a. Within 7 days from the effective date of this agreement, the parties at the regional level will meet to determine the number of vacancies withheld during the previous 90-day period.

b. Solely for the purpose of applying this memorandum, withheld residual vacancies will be identified as those vacancies for which the union has received Article 12 notification at the regional level as being withheld for employees who may be involuntarily reassigned outside the installation. In order to be considered a with- held vacancy, the union, at the local level, had to be advised of the specific vacancy withheld by assignment number. This requirement had to be accomplished either by posted notice, letter to the local union, or verbally. Verbal notification can be considered only if the local union official agrees that such verbal notification occurred.

c. Once the withheld residual vacancies are identified, management may use transitional employees to backfill withheld vacancies consistent with the provisions of this Memorandum of Understanding.

5. Career Employee Option for Vacant Duty Assignment:

   a. Prior to assigning a transitional employee to an impacted vacancy (held pending reversion), full-time career employees who are potentially impacted, who are performing identical duties, and who possess the identical skills of the vacant duty assignment, may opt for the vacant assignment.

      This option procedure will consist of a writtenpreselectionof hours and days off by potentially impacted employees. The option procedure will not exceed 7 calendar days, and employees who failed to submit their preselection choices will be bypassed.

   b. Employees will have 21 days from the effective date of this memorandum to submit their preselection options. Employees who assume new positions on different tours or employees new to a facility will have the opportunity to submit their preselection options within 7 days of assuming their new position. Employees will also have an opportunity to change or modify their preselection options once every 6 months.

6. Assignment of Part-Time Flexible Employees to a Withheld Vacancy:

   a. Prior to assigning transitional employees to withheld/ held pending reversion vacant positions, management will assign the senior qualified part-time flexible employee to cover the withheld/heldpending reversion vacancy, and may backfill the part-time flexible employee's position with a transitional employee. The assignment of the part-time flexible employee to the withheld/held pending reversion vacancy does not change the workhour guarantees.

   b. Part-time flexible employee hours worked in withheld/held pending reversion vacancies will not be considered when determining whether the criteria has been met for conversion to full-time pursuant to any maximization obligations the employer may have, or otherwise entitle the part-time flexible to any rights or benefits greater than other part-time flexible employees.

   c. If the senior part-time flexible employee does not possess the required skills for the withheld/held pending reversion vacancy, the part-time flexible will be bypassed. If there are no qualified part-time flexible employees, management may use a transitional employee to backfill the withheld/held pending reversion vacancy.

7. Bidding Provisions--Full-time Distribution Clerk, Machine:

   a. A full-time Distribution Clerk, Machine, who is restricted from bidding in accordance with Article 37.3.B will be allowed to bid and these restrictions will be waived provided:

      (1) The employee is currently working in a position which is identified to be eliminated due to automation;

      (2) The employee has completed a 90-day probationary period.

   b. If a full-time Distribution Clerk, Machine, is restricted from bidding pursuant to Article

37.3.B, and is the successful bidder on a duty assignment pursuant to Subsections a(1) and (2) above, the duty assignment will be held for the employee until his/her current position is eliminated or management may assign the employee to the duty assignment pursuant to the applicable craft articles of the National Agreement.

This duty assignment will be covered in the same manner as a withheld position.

c. An employee who is restricted from bidding pursuant to Article 37.3 .B may bid and be deemed the successful bidder only once.

8. Reassignment of Career Employees Outside of a Section, Craft, or Installation:

a. Prior to reassigning career employees outside of a section, craft, or installation, management will offer impacted career employees, on a seniority basis, the opportunity to work any existing transitional assignment. Impacted career employees must be currently qualified to backfill these assignments.

b. There will be no out-of-schedulepay or training provided to qualify the impacted employees for these temporary assignments.

9. Layoff of Career Employees:

a. Prior to laying off career employees, management will offer the impacted employees the opportunity to work any existing transitional assignments within the installation. The impacted employee must be currently qualified to backfill these assignments.

b. There will be no out-of-schedulepay or training provided to qualify the impacted employees for these temporary assignments.

10. Article 15:

a. The parties recognize that transitional employees will have access to the grievance procedure for those provisions which the parties have agreed apply to transitional employees.

b. Nothing herein will be construed as a waiver of the employer's obligation under the National Labor Relations Act. Transitional employees will not be discharged for exercising their rights under the grievance- arbitration procedure.

c. The separation of transitional employees upon completion of their 360-day term and the decision to not reappoint transitional employees to a new term are not grievable.

Transitional employees may be separated for lack of work at any time. Such separation is not grievable except where it is alleged that the separation is pretextual.

Transitional employees may be disciplined or removed within the term of their appointment for just cause and any such discipline or removal will be subject to the grievance-arbitration procedure, provided that within the immediately preceding six months, the employee has

completed ninety (90) work days, or has been employed for 120 calendar days, whichever comes first. In any such grievance, while the concept of progressive discipline will not ordinarily apply, the appropriateness of the discipline may be considered.

In the case of removal for cause within the term of an appointment, a transitional employee shall be entitled to advance written notice of the charges against him/her in accordance with the provisions of Article 16 of the National Agreement.

This Section c is effective June 7, 1996.

11. Health Insurance

After an initial appointment for a 360-day term and upon reappointment to another 360-day term, any eligible non-career transitional employee who wants to pay health premiums to participate in the Federal Employees Health Benefits (FEHB) Program on a pre-tax basis will be required to make an election to do so in accordance with procedures to be published as soon as administratively practicable. The total cost of health insurance is the responsibility of the non-career transitional employee.

12. Higher Level Pay

Effective June 8, 1996, in the event a transitional employee (TE) is temporarily assigned to a higher level position, such employee will be paid at the higher level only for the time actually spent on such job. This language should not be construed to encourage the Postal Service to temporarily assign such employees to higher level positions.

Date: June 7, 1996

ATTACHMENT A

TRANSITIONAL EMPLOYEE ANNUAL LEAVE PROVISIONS:

I. GENERAL

A. Purpose. Annual leave is provided to transitional employees for rest, recreation, emergency purposes, and illness or injury.

1. Accrual of Annual Leave. Transitional employees earn annual leave based on the number of hours in which they are in a pay status in each pay period.

Rate of Accrual	Hours in Pay Status	Hours of Annual Leave Earned Per Pay Period
1 hour for each unit of 20 hours in pay status in	20	1
	40	2
	60	3

each pay period	80	4 (max.)

2. Biweekly Crediting. Annual leave accrues and is credited in whole hours at the end of each biweekly pay period.

3. Payment For Accumulated Annual Leave. A separating transitional employee may receive a lump-sum payment for accumulated annual leave subject to the following condition:

   a. A transitional employee whose separation is effective before the last Friday of a pay period does not receive credit or terminal leave payment for the leave that would have accrued during that pay period.

II. AUTHORIZING ANNUAL LEAVE

A. General. Except for emergencies, annual leave for transitional employees must be requested on Form 3971 and approved in advance by the appropriate supervisor.

B. Emergencies and Illness or Injury. An exception to the advance approval requirement is made for emergencies and illness or injury; however, in these situations, the transitional employee must notify appropriate postal authorities as soon as possible as to the emergency or illness/injury and the expected duration of the absence. As soon as possible after return to duty, transitional employees must submit Form 3971 and explain the reason for the emergency or illness/injury to their supervisor. Supervisors approve or disapprove the leave request. When the request is disapproved, the absence may be recorded as AWOL at the discretion of the supervisor as outlined in Section IV.B below.

III. UNSCHEDULED ABSENCE

A. Definition. Unscheduled absences are any absences from work that are not requested and approved in advance.

B. Transitional Employee Responsibilities. Transitional employees are expected to maintain their assigned schedule and must make every effort to avoid unscheduled absences. In addition, transitional employees must provide acceptable evidence for absences when required.

IV. FORM 3971, REQUEST FOR, OR NOTIFICATION OF, ABSENCE

A. Purpose. Application for annual leave is made in writing, in duplicate, on Form 3971, Request for, or Notification of, Absence.

B. Approval/Disapproval. The supervisor is responsible for approving or disapproving application for annual leave by signing Form 3971, a copy of which is given to the transitional employee. If a supervisor does not approve an application for leave, the disapproved block on Form 3971 is checked and the reasons given in writing in the space provided. When a request is disapproved, the reasons for disapproval must be noted. AWOL determinations must be similarly noted.

ATTACHMENT B

IMPACTED OFFICE EMPLOYEE STATUS REPORT

Projected Reduction for Transition Period:

LDC 11	_____
LDC 12/Letters	_____
LDC 12/Flats	_____
LDC 13	_____
Other Clerical; except LDC 42	_____
Total:	_____

QUARTERLY UPDATE

FULL-TIME:	Baseline	PQ1	PQ2	PQ3	PQ4
LDC 11	_____	_____			_____
LDC 12/Letters	_____	_____			_____
LDC 12/Flats	_____	_____	_____		_____
LDC 13	_____	_____		_____	_____
Other Clerical; except LDC 42	_____	_____			_____
Total:	_____	_____			_____

PART-TIME:	Baseline	PQ1	PQ2	PQ3	PQ4
LDC 11	_____	_____			_____
LDC 12/Letters	_____	_____			_____
LDC 12/Flats	_____	_____			_____
LDC 13	_____	_____			_____
Other Clerical; except LDC 42	_____	_____			_____
Total:	_____	_____			_____

POSITIONS WITHHELD--SEE ATTACHMENT B1
POSITIONS HELD PENDING REVERSION--
SEE ATTACHMENT B2
PART-TIME ASSIGNMENTS--SEE ATTACHMENT B3

ATTACHMENT B1

Positions Withheld

Transitional Employee's Name	Job Number & Assignment Date

ATTACHMENT B2

Positions Held Pending Reversion

Transitional Employee's Name	Assignment Job Number

ATTACHMENT B3

Part-time Assignments

Transitional Employee's Name and Assignment Date	Replaced Part-time Employee's Name

ATTACHMENT C

REGIONAL COMPLEMENT REDUCTION REPORT

REGION _____ FY _____

PROJECTED REGIONAL REDUCTION _____

Division _____

MSC:	Projected Reduction:

Divisional Total: _____

Impacted Offices:	ATTRITION PQ1	PQ2	PQ3	PQ4	POSITIONS WITHHELD PQ1	P Q 2	PQ3	PQ4
*DIVISIONAL SUBTOTALS:								

* Regional totals calculated on final page of report.

CBR

ATTACHMENT C - Continued

REGIONAL COMPLEMENT REDUCTION REPORT
SUMMARY

_____ REGION / FY _____

PROJECTED REGIONAL REDUCTION: _____

REGIONAL TOTALS

ATTRITION:

Postal Quarter (PQ) 1 _____ PQ 2 _____ PQ 3 _____ PQ4 _____

Fiscal Year _____ TOTAL: _____

POSITIONS WITHHELD:

Postal Quarter (PQ) 1 _____ PQ 2 _____ PQ 3 _____ PQ4 _____

Fiscal Year _____ TOTAL: _____

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Transitional Employees

The parties agree that only the following articles and portions of articles of the National Agreement as they appear in bold face print below apply to transitional employees:

Article 1

Article 2

Article 3

Article 5

Article 7

ARTICLE 7
EMPLOYEE CLASSIFICATION

Section 1. Definition and Use

C. Transitional Work Force--APWU

1. The transitional work force shall be comprised of noncareer, bargaining unit employees utilized to fill vacated assignments as follows:

   a. Transitional employees may be used to cover duty assignments which are due to be eliminated by automation and residual vacancies withheld pursuant to Article 12.

   b. Transitional employees may be used to replace part-time attrition. Over the course of a pay period, the Employer will make a reasonable effort to ensure that qualified and available part-time flexible employees are utilized at the straight-time rate prior to assigning such work to transitional employees working in the same work location and on the same tour.

2. Transitional employees shall be hired pursuant to such procedures as the Employer may establish. They will be hired for a term not to exceed 360 calendar days for each appointment. Such employees have no daily or weekly work hour guarantees, except as provided for in Article 8.8.D. Transitional employees will have a break in service of at least 5 days between appointments.

3. The use of transitional employees will be phased out as the deployed automated equipment becomes operationally proficient.

ARTICLE 8
HOURS OF WORK

Section 3. Exceptions

The above shall not apply to part-time employees and transitional employees.

Part-time employees will be scheduled in accordance with the above rules, except they may be scheduled for less than eight (8) hours per service day and less than forty (40) hours per normal work week.

Transitional employees will be scheduled in accordance with Section 2, A and B, of this Article.

Section 4.G. Overtime Work

Transitional employees shall be paid overtime for work performed in excess of forty (40) work hours in any one service week. Overtime pay for transitional employees is to be paid at the rate of one and one-half (1 1/2) times the basic hourly straight-time rate.

When an opportunity exists for overtime for qualified and available full-time employees, doing similar work in the work location where the employees regularly work, prior to utilizing a transitional employee in excess of eight (8) work hours in a service day, such qualified and available full-time employees on the appropriate Overtime Desired List will be selected to perform such work in order of their seniority on a rotating basis.

Section 7. Night Shift Differential.

B. Effective for the period July 6, 1996 through November 21, 1997, for time worked between the hours of 6:00 p.m. and 6:00 a.m. transitional employees shall be paid additional compensation at the applicable flat dollar amount at each pay level in accordance with Appendix A, page 303, attached hereto.

Effective November 22, 1997, for time worked between the hours of 6:00 p.m. and 6:00 a.m. transitional employees shall be paid additional compensation at the applicable flat dollar amount at each pay level in accordance with Appendix B, page 304, attached hereto.

As soon as administratively practicable, transitional employees on the payroll as of June 7, 1996 shall be paid a one-time cash payment equal to twelve cents ($. 12) times the number of hours for which each was paid a shift differential premium during the thirteen (13) accounting periods ending May 24, 1996.

Section 8. Guarantees

D. Effective June 7, 1996, any transitional employee who is scheduled to work and who reports shall be guaranteed two (2) hours of work or pay. Such work or pay shall not be guaranteed if such employees are directed not to report ahead of the time they were scheduled to report to work.

Section 9. Wash-up Time

Installation heads shall grant reasonable wash-up time to those employees who perform dirty work or work with toxic materials. The amount of wash-up time granted each employee shall be subject to the grievance

procedure.

The preceding paragraph shall apply to transitional employees,

ARTICLE 9
SALARIES AND WAGES

Section 9. Transitional Employee

A. Transitional employees on the payroll during the pay period ending July 5, 1996, will be paid an hourly rate of pay in accordance with Appendix B, Table 1 for the duration of the 1994 National Agreement.

B. Employees initially appointed to transitional employee positions on or after July 6, 1996, will be paid an hourly rate of pay in accordance with Appendix B, Tables 2 through 5.

ARTICLE 10
LEAVE

Section 2. Leave Regulations

A. The leave regulations in Subchapter 5 10 of the Employee and Labor Relations Manual, insofar as such regulations establish wages, hours and working conditions of employees covered by this Agreement, other than transitional employees, shall remain in effect for the life of this Agreement.

B. Career employees will be given preference over noncareer employees when scheduling annual leave. This preference will take into consideration that scheduling is done on a tour-by-tour basis and that employee skills are a determining factor in this decision.

ARTICLE 11
HOLIDAYS

Section 6. Holiday Schedule

D. Transitional employees will be scheduled for work on a holiday or designated holiday after all full-time volunteers are scheduled to work on their holiday or designated holiday. They will be scheduled, to the extent possible, prior to any full-time volunteers or nonvolunteers being scheduled to work a nonscheduled day or any full-time nonvolunteers being required to work their holiday or designated holiday. If the parties have locally negotiated a pecking order that would schedule full-time volunteers on a nonscheduled day, the Local Memorandum of Understanding will apply.

Article 14

Article 15

Article 17 Sections 2, 3, 4, 6, and 7

Article 18

Article 19

ARTICLE 19
HANDBOOKS AND MANUALS

New Paragraph 3 :

Article 19 shall apply in that those parts of all handbooks, manuals and published regulations of the Postal Service, which directly relate to wages, hours or working conditions shall apply to transitional employees only to the extent consistent with other rights and characteristics of transitional employees negotiated in this Agreement and otherwise as they apply to the supplemental work force. The Employer shall have the right to make changes to handbooks, manuals and published regulations as they relate to transitional employees pursuant to the same standards and procedures found in Article 19 of this Agreement.

Article 20

Article 22

Article 23

Article 24

Article 27

Article 28

Article 3 1

Article 32

Article 34

Article 36

Article 42

Article 43

Only the following Memorandums of Understanding from the 1990 National Agreement shall apply to Transitional Employees:

Use of Privately Owned Vehicles
Leave Sharing
Leave Without Pay

Date: June 7, 1996

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

In the interest of enhancing career employment opportunities for APWU transitional employees, the Postal Service and the APWU agree as follows:

1. APWU transitional employees (TEs) (as set forth in the TE Agreements of 12/31/91 and 2/2/93), who have completed 180 days of employment as a TE and are still on the TE rolls, may take two such entrance examinations for career position(s APWU-representedcrafts. Only two such examinationopportunities will be provided each eligible TE pursuant to this memorandum, except that eligible TEs will be permitted to retake any exam which is subsequently discontinued and replaced.

2. Eligible TEs who wish to take an entrance examination for career position(s) in APWU-represented crafts must submit their request in writing to the appropriate personnel office. The local union will be provided written notification of TEs who have submitted such requests. The requested examinations will be administered to eligible TEs consistent with normal scheduling of the exams.

3. Each TE's exam results will be scored, including any applicable veterans' preference points and passing scores, will be merged with the existing register for that exam. Eligible TEs who already have a passing test score on the same register will have the option of merging the new test score with the existing register in lieu of their old test score. Thereafter, normal competitive selection procedures will apply in making appointments to career positions.

4. This agreement will be effective from June 7, 1996, through November 20, 1998. Nothing herein is intended to limit any veterans' preference in hiring as established by law.

Date: June 7, 1996

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE AND

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: PART TINE FLEXIBLE CONVERSIONS/TRANSITIONAL EMPLOYEES

1. CONVERSION OF CLERK CRAFT PART-TINE FLEXIBLES (PTF)

A. Installations with 100 or more career clerk craft employees.

(1). All part-time flexible clerk craft employees on the rolls on the date of this agreement will be converted to full-time regular in the clerk craft in their own installation by June 30, 1993.

(2). Full-time regular employees with retreat rights may exercise those rights up to the number of part-time flexible employees slated for conversion. The Postal Service shall either provide part-time employees slated for conversion (up to the number of full-time employees exercising their retreat rights) opportunities for conversion to other installations or convert such employees in their own installation at the option of the employer. However, such newly converted employees may not remain in their installation unless all eligible employees with retreat rights have been provided with the opportunity to exercise their retreat rights to return to their craft and/or installation.

(3). Conversions made pursuant to 1.A.(2). above will not count as conversions for offices of less than 100 career clerk craft employees even if such employees accept opportunities in the less than 100 career clerk craft employee installations.

B. Installations with less than 100 career clerk craft employees

(1). PTFs on the rolls on the date of this agreement in installations with less than 100 career clerk craft employees will be given an opportunity to convert to full-time regular in the clerk craft in their own or another installation. It is the intent of the parties that any such requirement to change offices will not be utilized by management as a device to discourage conversions of PTFs and that inconvenience and disruption to PTFs will be minimized. The timetable for administering opportunities for these conversions is as follows:

By June 30, 1993	2,000 Minimum
July 1, 1993 to June 30, 1994 -	4,000 Minimum
July 1, 1994 to June 30, 1995 -	4,000 Minimum
July 1, 1995 to June 30, 1996 -	4,000 Minimum
July 1, 1996 to June 30, 1997 -	2,000

(2). If more than the minimum number of conversions required in 1.B.(1). above are made pursuant to this agreement, those in excess for any period will count toward the next time frame requirement and will be cumulative toward the 16,000 maximum obligation of this agreement.

(3). For purposes of this agreement, the Employer will liberalize transfer rules for career clerk craft employees requesting transfer to installations of 100 or more career clerk craft employees. There is no prohibition to the employer hiring part-time flexible employees in installations of 100 or more career clerk craft employees. The parties however, recognize that it is in the interest of both the Employer and the Union to provide career employees in installations of less than 100 career clerk craft employees the opportunity to transfer prior to such hiring.

Such part-time flexible employees who elect to transfer and are subsequently converted to

full-time shall be counted against the conversion obligations of Section 1.B.(1). of this agreement. A full-time employee who elects to transfer may be replaced by a PTF employee in the losing office who will be convex-ted to full-time. Such conversions shall count towards the conversion obligations. If the union is unable to provide a PTF who is willing to transfer to a vacancy, the subsequent conversion of the PTP hired to fill the vacancy shall count towards the conversion obligations.

(4). The following principles will be utilized when providing opportunities for the conversion of clerk craft PTFs in installations of less than 100 career clerk craft employees:

a. PTFs will be converted to full-time in their current installation if full-time clerk craft duty assignments or other conversion opportunities are available.

b. If sufficient full-time clerk craft opportunities are not available to accommodate PTFs in their installation, a list (including skills needed, days off, schedule, location, and whether the position is residual or unencumbered) of all available full time clerk craft opportunities in offices within the commuting area that do not have part-time flexible employees on the rolls, will be provided to the appropriate APWU Regional Coordinator-

If the foregoing process does not result in sufficient opportunities for the conversion of PTFs, the Postal Service will identify clerk craft opportunities outside the commuting area in installations that do not have part-time flexible employees on the rolls, and provide this list to the appropriate APWU Regional Coordinator-

Within 30 days, the APWU Regional Coordinator will provide the names of eligible and qualified PTFs who will accept those opportunities.

c. A part-time flexible employee converted to full-time pursuant to this section who fails to qualify in the full-time assignment, may be returned to his/her former installation as a part-time flexible employee. An employee converted to full-time and returned to his/her former installation under this section will count as a conversion for purposes of this agreement.

d. For purposes of this agreement, the MOU on page 308 of the 1990 National Agreement regarding minimum qualifications applies to part-time flexible employees who are converted to full-time.

2. CONVERSION OF MOTOR VEHICLE CRAFT PART-TIME FLEXIBLES

A. Pursuant to this agreement, 450 PTF Motor Vehicle craft employees will be converted to full-time regular in their own or another installation by November 30, 1993.

B. The principles contained in Section 1.B.(4) of this agreement apply to Motor Vehicle craft conversions except that the list of opportunities both within and outside of the commuting area will be provided to the APWU Motor Vehicle Craft Director at the National level.

3. CONVERSION OF SPECIAL DELIVERY CRAFT PART-TIME FLEXIBLES

A. Pursuant to this agreement, 100 PTF Special Delivery Messenger craft employees will be converted to Pull Time regular in their own or another installation by November 30, 1993.

B. The full time assignments will be made in accordance with Article 7.2.A. of the collective bargaining agreement. Further, the parties agree to jointly explore work content of the converted PTF employees as well as that of all other Special Delivery Messengers.

C. The principles contained in Section 1.B.(4). of this agreement apply to Special Delivery Craft

conversions except that the list of opportunities both within and outside of the commuting area will be provided to the APWU Special Delivery Craft Director at the National level.

4. GENERAL PRINCIPLES FOR PTF COWVRRSIONS

A. Except as otherwise provided for in this agreement, it is understood and agreed by the pax-ties that PTF conversions made under this agreement to unencumbered assignments will be made to the same or higher level consistent with the established procedures set forth in the craft articles of the collective bargaining agreement.

B. Any PTF accepting a transfer to another office under this agreement will be considered a voluntary transfer and the PTF will not be eligible for relocation benefits.

C. Withheld positions - The parties agree that the provisions of Article 12 Section 5.B.2 of the 1990 National Agreement continue to apply.

5. TRANSITIONAL EMPLOYEES - CLERK AND MAINTENANCE CRAFTS

A. From the date of this Memorandum of Understanding (MOU) until November 30, 1997 the total number of APWU Clerk and Maintenance Craft Transitional Employees working in Postal installations nationwide will be in accordance with the following schedule:

(1)CLERK CRAFT AND MAINTENANCE CRAFT

Date of this agreement thru Nov. 30, 1993 - 20,000
December 1, 1993 thru June 30, 1995 - 22.000
July 1, 1995 thru June 30, 1996 16:000
July 1, 1996 thru June 30, 1997 10,000
July 1, 1997 thru November 30, 1997 - 5,000
After December 1, 1997 - Zero or Number Allowed by TE Agreement In Force At Time

(2) Transitional employees working as custodians at any one time will be reduced as follows:

Date of this agreement thru June 30, 1995 - 500
July 1, 1995 thru June 30, 1996 300
July 1, 1996 thru June 30, 1997 100
After July 1, 1997 - ZERO

After December 1, 1997 - Zero or number allowed by TE Agreement in force at that time

The parties agree that casual employees may not be employed in lieu of full or part-time custodial employees.

The maintenance craft TEs working as custodians at any one time will be limited to 500 of the amount apportioned in Section 5.A.(1) above. If the present custodial complement of TEs exceeds the 500 limit, the adjustment down to the 500 limit will be made through TE attrition, ie; as custodial TEs terms expire, no additional TEs will be hired into the custodial area until the number goes below the 500 maximum.

B. The number of APWU clerk craft TEs in installations with more than 100 career clerks will not exceed 15% of the career clerk craft work force on the rolls in that installation. If an installation presently exceeds 15%, that installation will reduce its TE complement through attrition, ie; as TE terms expire, no additional TE hiring will occur until the installation gets below the maximum percentage. At the request of the local union representative, any office over the 15% maximum will provide a list of TEs and their Enter On Duty (EOD) date. The total number of TEs will not exceed the number of TEs allowed in this agreement.

C. The number of TEs in each craft will be apportioned to each Area Office by Headquarters and communicated to the APWU at the National Level. Each Area Office will allocate a number from their total number of TEs in each craft to each installation within its' Area and provide this information to the appropriate Regional Union Official.

D. Alleged violations of this agreement relating to the TE complement shall be limited to violation of the nationwide maximum and/or the 15% installation maximum.

E. On a quarterly basis, or more frequently at its discretion, the Postal Service may re-evaluate its need for TEs and redistribute them by Area and/or installation. The total number of TEs in the Postal Service will not increase beyond the allocated number for each time frame as described above.

When there is a change in needs, the appropriate union representatives must be notified in advance. At the National Level, on an Accounting Period (AP) basis, the Postal Service will provide a list by craft of on rolls TEs by finance number. In addition, the local union representative will be provided with all TE hiring activity by craft as it occurs and on an AP basis.

F. Installation is defined as a main post office, airport mail facility, terminal or any similar organizational unit formerly under the direction of one postal official, together with all stations, branches and other subordinate units, as defined prior to the USPS management restructuring of 1992.

6. TRANSITIONAL EMPLOYEES - MOTOR VEHICLE CRAFT

A. The Postal Service may hire up to 450 TEs in the Motor Vehicle Craft. This limit is over and above the limits set forth in Section 5.A.(1) above for the Clerk and Maintenance crafts.

B. Under no circumstances will the number of TEs in the Motor Vehicle craft exceed 450. This number will be reduced in accordance with the following schedule:

Date of this agreement thru June 30, 1995 - 450
July 1, 1995 thru June 30, 1996 - 350
July 1, 1996 thru June 30, 1997 - 150
July 1, 1997 - ZERO
After December 1, 1997 - Zero or number allowed by TB agreement in force at time

7. TRANSITIONAL EMPLOYEES - SPECIAL DELIVERY CRAFT

A. The Postal Service may hire up to 100 TEs in the Special Delivery Craft. This limit is over and above the limits set forth in Section 5.A.(1). above for the clerk and maintenance crafts.

B. Under no circumstances will the number of TEs in the Special Delivery craft exceed 100. This number will be reduced in accordance with the following schedule:

Date of this agreement thru June 30, 1995 - 100
July 1, 1995 thru June 30, 1996 75
July 1, 1996 thru June 30, 1997 50
July 1, 1997 - ZERO
After December 1, 1997 - Zero or number allowed by TE agreement in force at time

a. GENERAL PRINCIPLES - TRANSITIONAL EMPLOYEES

A. TEs hired in a specific craft will be limited to work within the craft.

B. The parties agree that they will work together to establish au effective method to track the need for withheld vacancies.

C. The existing APWU Transitional Employee agreement dated December 3, 1991, is modified in the following manner:

(1). All parts of the TE agreement remain in force with the exceptions of Section l.c., d., and e., Section 2, Section 3, Section 4, Attachments B, B1, B2, B3, C, and Article 7, Section 1.C.3, which are hereby suspended for the term of this agreement.

(2). Section 5 will remain in force with the following addition: APWU TEs may be used in other assignments including duty assignments while the opting and/or bidding process is being completed.

In addition, the parties agree that over the course of a pay period, the Employer will make a reasonable effort to ensure that qualified and available part-time flexible employees are utilized at the straight-time rate prior to assigning such work to transitional employees working in the same work location and on the same tour.

9. NO LAYOFF

Each employee in the American Postal Workers Union, AFL-CIO, who is employed in the regular work force as of the date of this agreement, and who has not acquired the protection provided under Article 6 of the collective bargaining agreement shall be protected henceforth against any involuntary layoff or reduction in force (RIP) during the term of the collective bargaining agreement ending November 20, 1994.

10. **WITHOUT PREJUDICE**

This agreement shall not prohibit either party from proposing changes to either this or the previous TE agreement in future collective bargaining. In addition, this agreement will not be cited by either party in any future interest arbitration proceeding.

11. **PTF CONVERSION/TRANSITIONAL EMPLOYEE GRIEVANCES**

A. This agreement shall be considered full and final settlement of all grievances filed to date with regard to the hiring of Transitional Employees and the conversion of Part-Time Flexible employees to full-time. Any future grievances on maximizations may not use hours worked prior to this agreement as a basis for the grievance. In addition, any conversions to Full-time made as a result of a future grievance may only count toward management's obligation under Section 1.B.(1) above if such PTFs are converted short of arbitration.

B. At the District level, the parties will review existing grievances on Article 7, Section 3.B and C. to determine if they can help identify additional full time positions for PTF conversions.

C. Additionally, in light of the fact that the parties have agreed to resolve these disputes in accordance with this memorandum of understanding, the APWU agrees to withdraw the unfair labor practice charge (Case #5-CA-23057(P)) which has been filed claiming violations of the TE memoranda of understanding.

12. **TE FUTURE CAREER OPPORTUNITIES**

A. The parties herein express the desirability of affording future career employment opportunities to TBS. Consistent with that view, the parties agree to jointly explore the feasibility of such career opportunities, consistent with applicable law.

Moe Biller

Mr. doe Biller
President
American Postal Workers
Union, AFL-CIO

Date 2/2/93

Joseph J. Mahon, Jr.
Vice President
Labor Relations
U.S. Postal Service

Date 2-2-93

Questions and Answers on the Memorandum of Understanding
Signed February 2, 1993

RE: PTF Conversions/TE Hiring and Use

Prepared Jointly
by
The American Postal Workers Union, AFL-CIO, and
The United States Postal Service

The following questions and answers are provided to clarify the MOU signed between the parties regarding **PTF** conversions and TE hiring and utilization:

1. Section **1.A.(1).**
Can the conversions be completed over a period of time, such as one per pay period?

The conversions can be completed over a period of time as long as the national deadlines and minimums for each year are adhered to. However, if full time assignments are available, we would urge earlier conversions in order to maximize the number of opportunities for all the applicable PTFS.

2. Section **l.A.**
Our office, as of the signing of **this MOU, has 98 clerk craft employees on the rolls. During the life of this** non we **hire five additional employees which** raises **our clerk** craft corpleaent to 103. **Must** we convert the **PTFs that were on the rolls as of the signing of this agreement, since we now exceed the 100 clerk craft employee criteria?**

No. For purposes of large and small installations as defined in the Memo, it is the number of career clerk craft employees as of February 2, 1993, the date the agreement was signed. From that date no installation can be changed to a different category for purposes of this agreement.
NOTE: If **PTFs** are hired, they will be converted IN THAT **INSTALLATION before PTFs** with more seniority from another installation are allowed to convert to that installation, in accordance with the national agreement.

3. Section **1.A.&** B.
Can management convert PTFs to full-time without identifying a residual vacancy?

A. Yes, however the employee will be considered **"unencumbered"** and may be subsequently assigned to a residual vacancy.

4. Section l.A. & B.
Are the conversions to full-time "regular' positions or can they be made to full-time "flexible".

A. The agreement provides for conversion to full-time "regular".

5. Section 1.B.4.b
What do you mean by the term unencumbered?

Unencumbered refers to a full-time employee not holding a bid assignment, which includes unassigned regular.

6. Section 1.A.(2).
How does section 1.A.(2) relate to those employees that were excessed to another craft within their installation, since they technically do not have retreat rights but must be returned to their craft at the first opportunity?

All excessed employees would be returned in accordance with Article 12 prior to converting existing PTF clerks in the installation.

7. Section 1.A.(2). & (3).
Can a local office that has employees with retreat rights elect to convert PTFs to full-tire and retain them in the office, if all retreat right employees have been afforded their right to return?

A. YCS.

8. Section 1.B.(1)
What will be the criteria used to determine if there are available Full Tire vacancies in an office?

The determination as to available full time vacancies is made locally. Some of the determining factors include the present and future needs of the office, the impact of the recent early retirements and a review of any grievances filed on maximization.

9. Section 1.B.(4).
In the Clerk craft, if the parties agree that previously 'withheld' positions should be filled, what is the proper procedure?

A. "Withheld" positions are residual vacancies and should be filled through the assignment of unencumbered employees, transfers or the conversion and assignment of a PTP, in accordance with existing procedures.

10. Section 1.B.(3).
If full-time employees transfer under the liberalized rules will the employee retain full-time status.

A. The National Agreement provides that employee6 transferring from one installation to another become PTFs in the gaining installation, however, if there are no PTFs in the gaining installation such employee6 may be retained as full-time.

11. Section l.A. **&B.**
If the opportunity **for conversion is to a** residual vacancy in a level different fror that of **the** senior **PTF,** must the **employee assume the level of** the **vacancy?**

A. Yes.
NOTE: In terms of who gets opportunities in the different levels; if the conversion is within the installation, the conversions will be made in accordance with the terms of the national agreement: if the conversions are to another installation, the Regional union representative will make the determination.

12. Sections l.A **&B.**
What is the seniority date of the **employee who** elects to go to another **office to be converted?**

He/she begin6 a new period of seniority in accordance with appropriate craft articles.

13. Sections l.A. &B.
If **the employee is required to be converted to another office due** to **no opportunities in his/her own office, does he/she have to accept the conversion to full tire?**

No.

14. Section 1.B.(3)
Are we required to accept transfers, if requested, without the normal review of the employee's record, eg. safety, attendance, etc.?

As stipulated in the agreement, the transfer rules will be liberalized for purposes **of** this MOU. The reason for relaxing the transfer rules is to open opportunities to fulfill the obligation **of** the MOU.

15. Section 1.B.(4).a.
'PTFs will be converted to full-tire in their current installation if full-time **clerk craft duty assignments or other conversion opportunities are available'. what does this mean? Can we convert outside the craft?**

Other conversion opportunities means to positions created by a review of needs of the office, a **review** of maximization grievances, **a** need for additional duty assignments. No, it does **not** mean we can convert outside the craft.

16. Section 1.B.(4).b.
when are the lists of opportunities referenced in Section 1.B.(4).b. due to the appropriate APWU regional representative?

The lists are due to the APWU regional representative with enough lead time to allow them the 30 days to find the PTFs eligible and qualified to fill the conversion opportunity. Qualified is defined in the MOU on Page 308 of the collective bargaining agreement.
NOTE: Motor Vehicle and Special Delivery craft lists of opportunities will be provided to Labor Relations, Manager, Contract Administration APWU/NPMHU, 475 L'Enfant Plaza, Washington, DC, 20260-4127.

17. Section 1.B.(4).b.
Who will the APWU Regional representative provide the names of the eligible and qualified PTFs to?

The names will be provided to the Area Manager, Human Resources.
NOTE: Motor Vehicle and Special Delivery craft lists of eligible and qualified names will be provided to Labor Relations, Headquarters, who will then provide them to the appropriate Area Manager, Human Resources.

18. Section 1.B.(4).
How do employees become aware of the conversion opportunities and how do they notify their appropriate APWU regional coordinator?

The APWU Regional Coordinator will establish a procedure for the PTFs in his/her region.

19. Section 1.B.(4).
Can a PTF employee go directly to an installation head of another office to be afforded the opportunity for conversion?

No. All PTFs converted to full time outside their own installation will be coordinated through the APW Regional representative.

20. Section 3.
If an assignment is created pursuant to Article 7.2.A. combining clerk and Special Delivery Messenger work, what craft will the converted SDM employee be assigned?

A. Special Delivery Messenger.

21. Section 4.
Can an assignment identified as 'held pending reversion" be changed in regard to off days or hours?

A. No, but it can be reverted.

22. Section 4
what happens if the employer decides **to decrease the** number of assignments **that had been identified to** the union as **"impacted'?**

A. A new "impact statement" must be provided to the ***union*** pursuant to the parties' agreement identifying the changed conditions. Any subsequent postings of the former impacted positions must be posted installation wide pursuant to the craft articles.

23. Section **5**
Will TEs be limited to work on "withheld", "held pending reversion" or "PTF attrition" assignments?

A. No. They may be worked on other assignments however they may not replace a employee *on* **a bidded or** opted assiqnment or be used in lieu of **PTFs** pursuant to Section **8.C.2.** of this MOU.

24. Section **5**
Is the "opting" process impacted **by the new TE hiring** authority?

A. No. Career **Employees may still opt in accordance** with the original TE **agreement dated December 3,** 1991.

25. Section **5.E.**
"When there is a change in needs, the appropriate union representative will be notified in advance". Who has this responsibility and what appropriate union official will be notified?

Operations will be responsible for determining any change in needs. The information will be provided to Labor Relations. Labor Relations will have the responsibility to notify the APWU official. At the national level, the Manager, Contract Administration, **APWU/NPMHU,** will notify the President of the **APWU** and at the Area level the Area Managers will determine the change in needs for their area and designate responsibility for notifying the appropriate APWU Regional Coordinator.

26. **Section 8.**
Can unencumbered employees opt for vacant work weeks?

A. Yes, if the full time employee who is potentially impacted is performing identical duties, and possess the identical skills of the vacant duty assignment.

27. Section 9

Does the No **Layoff** provision apply only to each employee in the **APWU** union employed in the regular work force?

No. The no layoff applies to all bargaining unit employees in the regular work force represented by the **APWU** covered by the 1990 National Agreement.

28. Section 12

If the need to hire exists can we convert to career an existing TE employee without going to the hiring register?

This issue will be explored by the parties in accordance with Section 12 of the MOU.

William Burrus
Executive Vice President
American Postal workers
Union, AFL-CIO

William Downes
Manager
Contract Administration
U.S. Postal Service

MEMORANDUM OF INTENT
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: PTF OPPORTUNITIES FOR CONVERSION TO OTHER THAN OWN INSTALLATION -- CLARIFICATION TO SECTION 1.B.(4).c. OF MOU SIGNED FEBRUARY 2, 1993

This memo of intent clarifies Section 1.B.(4).c of the MOU signed between the parties on February 2, 1993 concerning the conversion of PTFs and hiring/utilization of TEs in the crafts represented by the APWU.

Section 1.B.(4).c. reads as follows:

> "c. A part-time flexible employee converted to full-time pursuant to this section who fails to qualify in the full-time assignment, may be returned to his/her former installation as a part-time flexible employee. An employee converted to full-time and returned to his/her former installation under this section will count as a conversion for purposes of this agreement."

As further clarification of the intent of the parties in this provision, the following will apply:

Before conversion to full-time, the employee must meet the skill requirements of the position selected for. Therefore, the following process will be used when transferring PTFs for the purposes of conversion under the MOU.

1. Upon identification by the APWU Regional Coordinator of the PTF for placement, the PTF may be detailed to the gaining office.

2. The PTF will be given appropriate training.

3. If the PTF passes training, conversion is made. For purposes of seniority, the date of detail assignment is the seniority date.

4. If the PTF fails training, the employee may be returned to former installation as a PTF with no loss in seniority or be converted to full-time in the gaining installation, at the option of the employer. (If the employer excersises the option to retain the PTF and convert him/her in the gaining installation, his/her seniority date will be the date of the conversion)

5. The Area office will compile a list of all opportunities given to the APWU Regional Coordinator in accordance with this section and the MOU. The Area office will simultaneously forward a copy of the list to William J. Downes, Manager, Contract Administration **APWU/NPMHU.**

William Burrus
William **Burrus**
Executive Vice President
American Postal Workers
Union, AFL-CIO

Date: 3-23-93

William J. Downes
William J. Downes
Manager
Contract Administration APWU/NPMHU
Labor Relations
U.S. Postal Service

Date: 3-23-93

MEMORANDUM OF INTENT
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: MODIFICATION TO EXISTING TRANSFER RULES SPECIFICALLY FOR IMPLEMENTATION OF MOU SIGNED FEBRUARY 2, 1993

Reference Section 1.B.(3). of the Memorandum of Understanding signed February 2, 1993 and the 1990-1994 Collective Bargaining Agreement, Article 12, Section 6. Transfers.

With these provisions in mind, following are modified transfer rules in connection with the MOU signed between the parties.

TRANSFERS TO FULL-TIME REGULAR POSITIONS BY FULL-TIME REGULAR OR PART TIME REGULAR EMPLOYEES THROUGH THE APWU REGIONAL COORDINATOR:

FULL-TIME REGULAR OR PART-TIME REGULAR CLERK CRAFT EMPLOYEES TRANSFERRING TO FULL-TIME VACANT POSITIONS -- IN LIEU OF PTFs FOR CONVERSION TO FTR

A. Management will identify full-time vacant positions (residual duty assignments or unencumbered) and provide a list of those positions to the APWU Regional Coordinator. The APWU Regional Coordinator may identify full-time regular or part-time regular clerks for transfer to these positions and installation heads are required to accept them with the following exceptions:

Management may deny transfer if:

1. the employee has a live disciplinary record as defined in Article 16, Section 10, and/or,
2. the employee is on light or limited duty.

B. Transfers of full-time regular or part time regular career clerk craft employees to and from offices of any size office through this process will be counted towards the obligation of the employer to offer opportunities to convert PTP employees to FT in offices of less than 100 career clerk craft employees.

C. Transfers will be contingent on the employee possessing the minimum qualifications for the position as established in the MOU on Page 308 of the national agreement.

D. These modifications to the transfer rules will be for the Clerk Craft only and be in effect until the obligations are complete under the Memorandum of Understanding signed February 2, 1993.

B. Other than the Clerk Craft, transfer requests are subject to the existing provisions of the contract.

TRANSFERS TO PART TIME CARBBR POSITIONS THROUGH THE APWU REGIONAL COORDINATOR:

FULL-TIME REGULAR OR PART-TIME CLERK CRAFT EMPLOYEES TRANSFERRING TO PART-TIME FLEXIBLE POSITIONS

A. Prior to hiring PTFs/PTRs, management may provide a list of part-time flexible career positions to be filled to the APWU Regional Coordinator. The APWU Regional Coordinator will identify full-time regular, part-time flexible or part-time regular clerks for transfer to these positions and installation heads are required to accept them with the following exceptions:

Management may deny transfer if:

1. the employee has a live disciplinary record as defined in Article 16, Section 10, and/or,
2. the employee is on light or limited duty.

B. Transfers will be contingent on the employee possessing the minimum qualifications for the position as established in the MOU on Page 308 of the national agreement.

C. These modifications to the transfer rules will be for the Clerk Craft only and be in effect until the obligations are complete under the Memorandum of Understanding signed February 2, 1993.

D. Other than the Clerk Craft, transfer requests are subject to the existing provisions of the contract.

E. If the APWURegional Coordinator is not provided with a PTP position to be filled and the Postal Service fills the need through hiring, any subsequent conversion of the PTF to full-time by the employer does not count towards the obligation of the employer under the MOU to offer conversion opportunities for PTFs in less than 100 career clerk craft employees.

If the APNU Regional Coordinator is provided with a PTP position to be filled and supplies an employee who is accepted for the transfer, any subsequent conversion of the PTP to full-time counts toward the obligation of the employer under the MOU to offer conversion opportunities for PTFs in less than 100 career clerk craft employees.

If the APWU Regional Coordinator is provided with a PTF position to be filled and is unable to provide a PTF/PTR/FTR transfer, the Postal Service may proceed to fill the need through hiring. A subsequent conversion of the PTF to full-time will count towards the obligation of the

employer under the **MOU** to offer conversion opportunities for **PTFs** in less than 100 **career** clerk craft employees.

William Burrus

Mr. William **Burrus**
Executive Vice President
American Postal Workers
Union, AFL-CIO

Date: 4-6-93

William J. Downes

Mr. **William J.** Downes
Manager
Contract **Administration**
APWU/NPMHU

Date: 4-2-93

MEMORANDUM OF INTENT
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RR: REVIEW OF WITHHELD POSITIONS

1. All vacancies currently withheld under Article 12 are in the process of being reviewed by management. Upon completion, the results of the review will be shared with the appropriate APWU Regional Coordinator. If the review determines that the number of withheld positions needed has changed, a new or updated impact statement(s) will be provided to the union reflecting the most recent projections.

2. If the review results in a reduction in the number of withheld positions, then the local parties will meet to determine which method(s) will be used for filling any vacant assignments previously withheld. The method(s) used for filling such vacancies will be applied in the order outlined as follows:

1. The assignment of an unencumbered full-time employee;

2. The conversion of a part-time flexible (PTF) within the installation;

3. Transfer of an eligible career clerk craft employee through the APWU Regional Coordinator in accordance with the PTP conversion MOU signed February 2, 1993.

3. Withheld positions identified to accommodate previously notified excessed employees who have been provided letters of excessing or are in the process of being notified, and who will, at the time of the review, definitely be excessed, shall not be subject to the review of #1 above.

4. This review of withheld positions is a one time only review and is for the exclusive purpose of the application of the MOU signed February 2, 1993, between the APWU and U.S. Postal Service.

William Burrus
William Burrus
Executive Vice President
American Postal Workers
Union, AFL-CIO
Date: 4-6-93

William J. Downes
William J. Downes
Manager
Contract Administration
APWU/NPMHU
Date: 4-2-93

MEMORANDUM OF INTENT
BETWEEN THB
UNITED STATBS POSTAL SBRVICB AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: TE/PTF CONVERSION MOU - WHAT CONVERSIONS COUNT TOWARD EMPLOYER OBLIGATION

This Memorandum of Intent (MOI) details the understanding between the parties of what counts toward the employer's obligation under Section 1.B.(1). in the Memorandum Of Understanding (HOU) signed February 2, 1993.

Following are the basic principles to be used in determining which opportunities count towards the obligation as described above.

When the APWU Regional Coordinator is provided an opportunity to fill a full-time career position, that opportunity will count toward the employer's obligation under Section 1.B.(1). of the MOU.

When the APWU Regional Coordinator is provided an opportunity to fill a part-time flexible career position, that opportunity will count toward the employer's obligation under Section 1.B.(1). of the MOU when the PTF is subsequently converted to full-time.

Conversions of PTFs Within Own Installation
(Less than 100 Career Clerk Craft Employee Installations)

All PTFs on the rolls on February 2, 1993, in less than 100 career clerk craft employee installations, converted to full-time regular status within their own installation will count.

Pull-Time Regular Positions

All full-time regular opportunities provided to the APWU Regional Coordinator in accordance with the MOU will count.

Part-Time Flexible Positions

If the APWU Regional Coordinator is provided with a PTP position to be filled and supplies a PTF/PTR/FTR employee who is accepted for the transfer, any subsequent conversion of the PTP to full-time regular will count.

If the APWU Regional Coordinator is provided with a PTP position to be filled and is unable to provide a PTF/PTR/FTR transfer, the Postal Service may proceed to fill the need through hiring. A subsequent conversion of the PTP

to full-time regular will count.

If the APWU Regional Coordinator is NOT provided with a PTP position to be filled and the Postal Service fills the need through hiring, a subsequent conversion of the PTP to full-time regular does NOT count, unless the PTR opportunity was provided to the APWU Regional Coordinator and the Coordinator provided the PTP in question.

If the employer hires a PTR who is subsequently converted to PTF and eventually converted to full-time regular, it will NOT count unless the PTP opportunity was provided to the APWU Regional Coordinator and the Coordinator provided the PTR in question.

These provisions will be in effect only for the duration of the MOU signed February 2, 1993 or until the employer's obligations to offer opportunities is complete.

William Burrus
William Burrus
Executive Vice President
American Postal Workers Union, AFL-CIO
Date: 4-6-93

William J. Downes
William J. Downes
Manager
Contract Administration
APWU/NPMHU
Date: 4-6-93

Subject: Transitional Employee Agreement Version III

Combination of the appropriate provisions from:

December 3, 1991, Memorandum of Understanding,
Re: Transitional Employees
And;
February 2, 1993, Memorandum of Understanding/APWU
PTF Conversions/Transitional Employees

In order to assist both APWU and USPS representatives and to promote a clear understanding of the applicable provisions of the agreements between the parties regarding Transitional Employees signed December 3, 1991, and the subsequent MOU on Transitional Employees/Conversions of PTFs signed February 2, 1993, attached is a document combining the applicable provisions of the two TE agreements.

Please note that this is not a NEW agreement, but simply the relevant provisions of the two TE agreements merged into one document.

This document was prepared jointly by the APWU and USPS at the national level. Retain this document for reference when questions arise regarding TEs and/or conversion of PTFs that fall under this MOU.

In addition, future modifications of this agreement or new agreements related to this understanding will use this document as reference. Those future references will refer to the attached document as "TE III" and note the date this joint memorandum is signed below.

Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO

William J. Downes
Manager
Contract Administration
APWU/NPMHU
U.S. Postal Service

Date: May 4, 1994

Attachments

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE AND

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: PART-TIME FLEXIBLE CONVERSIONS/TRANSITIONAL EMPLOYEES

1. CONVERSION OF CLERK CRAFT PART-TIME FLEXIBLES (PTFs)

A. Installations with 100 or more career clerk craft employees.

(1) All part-time flexible clerk craft employees on the rolls on the date of this agreement will be converted to full-time regular in the clerk craft in their own installation by June 30, 1993.

(2) Full-time regular employees with retreat rights may exercise those rights up to the number of part-time flexible employees slated for conversion. The Postal Service shall either provide part-time employees slated for conversion (up to the number of full-time employees exercising their retreat rights) opportunities for conversion to other installations or convert such employees in their own installation at the option of the employer. However, such newly converted employees may not remain in their installation unless all eligible employees with retreat rights have been provided with the opportunity to exercise their retreat rights to return to their craft and/or installation.

(3) Conversions made pursuant to 1.A.(2). above will not count as conversions for offices of less than 100 career clerk craft employees even if such employees accept opportunities in the less than 100 career clerk craft employee installations.

B. Installations with less than 100 career clerk craft employees.

(1) PTFs on the rolls on the date of this agreement in installations with less than 100 career clerk craft employees will be given an opportunity to convert to full-time regular in the clerk craft in their own or another installation. It is the intent of the parties that any such requirement to change offices will not be utilized by management as a device to discourage conversions of PTFs and that inconvenience and disruption to PTFs will be minimized. The timetable for administering opportunities for these conversions is as follows:

By June 30, 1993	- 2,000 Minimum
July 1, 1993 to June 30, 1994	- 4,000 Minimum
July 1, 1994 to June 30, 1995	- 4,000 Minimum
July 1, 1995 to June 30, 1996	- 4,000 Minimum
July 1, 1996 to June 30, 1997	- 2,000

(2) If more than the minimum number of conversions required in 1.B.(1). above are made pursuant to this agreement, those in excess for any period will count toward the next time frame requirement and will be cumulative toward the 16,000 maximum obligation of this agreement.

(3) For purposes of this agreement, the Employer will liberalize transfer rules for career clerk craft employees requesting transfer to installations of 100 or more career clerk craft employees. There is no prohibition to the employer hiring part-time flexible employees in installations of 100 or more career clerk craft employees. The parties however, recognize that it is in the interest of both the Employer and the Union to provide career employees in installations of less than 100 career clerk craft employees the opportunity to transfer prior to such hiring.

Such part-time flexible employees who elect to transfer and are subsequently converted to full-time shall be counted against the conversion obligations of Section 1.B.(1). of this agreement. A full-time employee who elects to transfer may be replaced by a PTF employee in the losing office who will be converted to full-time. Such conversions shall count towards the conversion obligations. If the union is unable to provide a PTF who is willing to

transfer to a vacancy, the subsequent conversion of the PTF hired to fill the vacancy shall count towards the conversion obligations.

(4) The following principles will be utilized when providing opportunities for the conversion of clerk craft PTFs in installations of less than 100 career clerk craft employees:

a. PTFs will be converted to full-time in their current installation if full-time clerk craft duty assignments or other conversion opportunities are available.

b. If sufficient full-time clerk craft opportunities are not available to accommodate PTFs in their installation, a list (including skills needed, days off, schedule, location, and whether the position is residual or unencumbered) of all available full-time clerk craft opportunities in offices within the commuting area that do not have part-time flexible employees on the rolls, will be provided to the appropriate APWU Regional Coordinator.

If the foregoing process does not result in sufficient opportunities for the conversion of PTFs, the Postal Service will identify clerk craft opportunities outside the commuting area in installations that do not have part-time flexible employees on the rolls, and provide this list to the appropriate APWU Regional Coordinator.

Within 30 days, the APWU Regional Coordinator will provide the names of eligible and qualified PTFs who will accept those opportunities.

c. A part-time flexible employee converted to full-time pursuant to this section who fails to qualify in the full-time assignment, may be returned to his/her former installation as a part-time flexible employee. An employee converted to full-time and returned to his/her former installation under this section will count as a conversion for purposes of this agreement.

d. For purposes of this agreement, the MOU on page 308 of the 1990 National Agreement regarding minimum qualifications applies to part-time flexible employees who are converted to full-time.

2. CONVERSION OF MOTOR VEHICLE CRAFT PART-TIME FLEXIBLES

A. Pursuant to this agreement, 450 PTF Motor Vehicle craft employees will be converted to full-time regular in their own or another installation by November 30, 1993.

B. The principles contained in Section 1.B.(4) of this agreement apply to Motor Vehicle craft conversions except that the list of opportunities both within and outside of the commuting area will be provided to the APWU Motor Vehicle Craft Director at the National level.

3. CONVERSION OF SPECIAL DELIVERY CRAFT PART-TIME FLEXIBLES

A. Pursuant to this agreement, 100 PTF Special Delivery Messenger craft employees will be converted to full-time regular in their own or another installation by November 30, 1993.

B. The full time assignments will be made in accordance with Article 7.2.A. of the collective bargaining agreement. Further, the parties agree to jointly explore work content of the converted PTF employees as well as that of all other Special Delivery Messengers.

C. The principles contained in Section 1.B.(4). of this agreement apply to Special Delivery Craft conversions except that the list of opportunities both within and outside of the commuting area will be provided to the APWU Special Delivery Craft Director at the National level.

4. GENERAL PRINCIPLES FOR PTF CONVERSIONS

A. Except as otherwise provided for in this agreement, it is understood and agreed by the parties that PTF conversions made under this agreement to unencumbered assignments will be made to the same or higher level consistent with the established procedures set forth in the craft articles of the collective bargaining agreement.

B. Any PTF accepting a transfer to another office under this agreement will be considered a voluntary transfer and the PTF will not be eligible for relocation benefits.

C. Withheld positions - The parties agree that the provisions of Article 12, Section 5.B.2, of the 1990 National Agreement continue to apply.

5. TRANSITIONAL EMPLOYEES - CLERK AND MAINTENANCE CRAFTS

A. From the date of this Memorandum of Understanding (MOU) until November 30, 1997, the total number of APWU Clerk and Maintenance Craft Transitional Employees working in postal installations nationwide will be in accordance with the following schedule:

(1) CLERK CRAFT AND MAINTENANCE CRAFT

Date of this agreement thru Nov. 30, 1993 - 20,000
December 1, 1993 thru June 30, 1995 - 22,000
July 1, 1995 thru June 30, 1996 - 16,000
July 1, 1996 thru June 30, 1997 - 10,000
July 1, 1997 thru November 30, 1997 - 5,000
After December 1, 1997 - Zero or Number Allowed by TE Agreement In Force At Time

(2) Transitional employees working as custodians at any one time will be reduced as follows:

Date of this agreement thru June 30, 1995 - 500
July 1, 1995 thru June 30, 1996 300
July 1, 1996 thru June 30, 1997 100
After July 1, 1997 - ZERO
After December 1, 1997 - Zero or number allowed by TE Agreement in force at that time

The parties agree that casual employees may not be employed in lieu of full or part-time custodial employees.

The maintenance craft TEs working as custodians at any one time will be limited to 500 of the amount apportioned in Section 5.A.(1) above. If the present custodial complement of TEs exceeds the 500 limit, the adjustment down to the 500 limit will be made through TE attrition, i.e., as custodial TEs terms expire, no additional TEs will be hired into the custodial area until the number goes below the 500

maximum.

B. The number of APWU clerk craft **TEs** in installations with more than 100 career clerks will not exceed 15% of the career clerk craft work force on the rolls in that installation. If an installation presently exceeds **15%,** that installation will reduce its TE complement through attrition, i.e., as TE terms expire, no additional TE hiring will occur until the installation gets below the maximum percentage. At the request of the local union representative, any office over the 15% maximum will provide a list of **TEs** and their Enter On Duty (EOD) date. The total number of **TEs** will not exceed the number of **TEs** allowed in this agreement.

C. The number of **TEs** in each craft will be apportioned to each Area Office by Headquarters and communicated to the APWU at the National Level. Each Area Office will allocate a number from their total number of **TEs** in each craft to each installation within its' Area and provide this information to the appropriate Regional Union Official.

D. Alleged violations of this agreement relating to the TE complement shall be limited to violation of the nationwide maximum and/or the 15% installation maximum.

E. On a quarterly basis, or more frequently at its discretion, the Postal Service may re-evaluate its need for **TEs** and redistribute them by Area and/or installation. The total number of **TEs** in the Postal Service will not increase beyond the allocated number for each time frame as described above.

When there is a change in needs, the appropriate union representatives must be notified in advance. At the National Level, on an Accounting Period (AP) basis, the Postal Service will provide a list by craft of on rolls **TEs** by finance number. In addition, the local union representative will be provided with all TE hiring activity by craft as it occurs and on an AP basis.

F. Installation is defined as a main post office, airport mail facility, terminal or any similar organizational unit formerly under the direction of one postal official, together with all stations, branches and other subordinate units, as defined prior to the USPS management restructuring of 1992.

6. TRANSITIONAL EMPLOYEES - MOTOR VEHICLE CRAFT

A. The Postal Service may hire up to 450 TEs in the Motor Vehicle Craft. This limit is over and above the limits set forth in Section 5.A.(1) above for the Clerk and Maintenance crafts.

B. Under no circumstances will the number of TEs in the Motor Vehicle craft exceed 450. This number will be reduced in accordance with the following schedule:

Date of this agreement thru June 30, 1995 - 450
July 1, 1995 thru June 30, 1996 - 350
July 1, 1996 thru June 30, 1997 - 150
July 1, 1997 - ZERO
After December 1, 1997 - Zero or number allowed by TE agreement in force at time

7. TRANSITIONAL EMPLOYEES - SPECIAL DELIVERY CRAFT

A. The Postal Service may hire up to 100 TEs in the Special Delivery Craft. This limit is over and above the limits set forth in Section 5.A.(1). above for the clerk and maintenance crafts.

B. Under no circumstances will the number of TEs in the Special Delivery craft exceed 100. This number will be reduced in accordance with the following schedule:

Date of this agreement thru June 30, 1995 - 100
July 1, 1995 thru June 30, 1996 75
July 1, 1996 thru June 30, 1997 50
July 1, 1997 - ZERO
After December 1, 1997 - Zero or number allowed by TE agreement in force at time

8. GENERAL PRINCIPLES - TRANSITIONAL EMPLOYEES

A. TEs hired in a specific craft will be limited to work within the craft.

B. The parties agree that they will work together to establish an effective method to track the need for withheld vacancies.

C. 1. The transitional work force will be comprised of non-career, bargaining unit employees.

2. Transitional employees will be hired for a term not to exceed 359 calendar days and will have a break in service of at least 6 days between appointments.

3. Transitional employees who are covering duty assignments held pending reversion or residual vacancies withheld pursuant to Article 12 will not be displaced from these assignments for the purpose of utilizing a casual employee.

4. Leave provisions for transitional employees are included in Attachment A.

D. Career Employee Option for Vacant Duty Assignment:

1. Prior to assigning a transitional employee to an impacted vacancy (held pending reversion), full-time career employees who are potentially impacted, who are performing identical duties, and who possess the identical skills of the vacant duty assignment, may opt for the vacant assignment.

   This option procedure will consist of a written pre-selection of hours and days off by potentially impacted employees. The option procedure will not exceed 7 calendar days, and employees who failed to submit their pre-selection choices will be bypassed.

2. Employees will have 21 days from the effective date of this memorandum to submit their pre-selection options. Employees who assume new positions on different tours or employees new to a facility will have the opportunity to submit their pre-selection options within 7 days of assuming their new position. Employees will also have an opportunity to change or modify their pre-selection options once every 6 months.

3. APWU TEs may be used in other assignments including duty assignments while opting and/or bidding process is being completed.

4. The parties agree that over the course of a pay period, the Employer will make a reasonable effort to ensure that qualified and available part-time flexible employees are utilized at the straight-time rate prior to assigning such work to transitional employees working in the same

location and on the same tour.

E. Assignment of Part-Time Flexible Employees to a Withheld Vacancy:

1. Prior to assigning transitional employees to withheld/held pending reversion vacant positions, management will assign the senior qualified part-time flexible employee to cover the withheld/held pending reversion vacancy, and may backfill the part-time flexible employee's position with a transitional employee. The assignment of the part-time flexible employee to the withheld/held pending reversion vacancy does not change the work hour guarantees.

2. Part-time flexible employee hours worked in withheld/held pending reversion vacancies will not be considered when determining whether the criteria has been met for conversion to full-time pursuant to any maximization obligations the employer may have, or otherwise entitle the part-time flexible to any rights or benefits greater than other part-time flexible employees.

3. If the senior part-time flexible employee does not possess the required skills for the withheld/held pending reversion vacancy, the part-time flexible will be bypassed. If there are no qualified part-time flexible employees, management may use a transitional employee to backfill the withheld/held pending reversion vacancy.

F. Bidding Provisions -- Full-time Distribution Clerk, Machine:

1. A full-time Distribution Clerk, Machine, who is restricted from bidding in accordance with Article 37.3.B will be allowed to bid and these restrictions will be waived provided:

(a) The employee is currently working in a position which is identified to be eliminated due to automation:

(b) The employee has completed a 90-day probationary period.

2. If a full-time Distribution Clerk, Machine, is restricted from bidding pursuant to Article

37.3.B, and is the successful bidder on a duty assignment pursuant to Subsections l.(a) and (b) above, the duty assignment will be held for the employee until his/her current position is eliminated or management may assign the employee to the duty assignment pursuant to the applicable craft articles of the National Agreement. This duty assignment will be covered in the same manner as a withheld position.

3. An employee who is restricted from bidding pursuant to Article 37.3.B may bid and be deemed the successful bidder only once.

G. Reassiqnment of Career Employees Outside of a Section, Craft or Installation:

1. Prior to reassigning career employees outside of a section, craft, or installation, management will offer impacted career employees, on a seniority basis, the opportunity to work any existing transitional assignment. Impacted career employees must be currently qualified to backfill these assignments.

2. There will be no out-of-schedule pay or training provided to qualify the impacted employees for these temporary assignments.

H. Layoff of Career Employees:

1. Prior to laying off career employees, management will offer the impacted employees the opportunity to work any existing transitional assignments within the installation. The impacted employees must be currently qualified to backfill these assignments.

2. There will be no out-of-schedule pay or training provided to qualify the impacted employees for these temporary assignments.

I. Article 15:

1. The parties recognize that transitional employees will have access to the grievance procedure for those provisions which the parties have agreed apply to transitional employees.

2. **Nothing herein will be construed as a waiver of** the employer's obligation under the National

Labor Relations Act. Transitional employees will not be discharged for exercising their rights under the grievance/arbitration procedure.

3. Such employees will not be protected by the "just cause" provisions of Article 16. However, the employer cannot retaliate against transitional employees for filing grievances or invoking applicable contractual rights.

4. In any arbitration case concerning a discharge of a transitional employee, the union will bear the burden of proof in establishing that the employer's chief motivation for such a discharge was for retaliation for protected activity.

In addition, the parties agree that over the course of a pay period, the Employer will make a reasonable effort to ensure that qualified and available part-time flexible employees are utilized at the straight-time rate prior to assigning such work to transitional employees working in the same work location and on the same tour.

9. NO LAYOFF

Each employee in the American Postal Workers Union, AFL-CIO, who is employed in the regular work force as of February 2, 1993, and who has not acquired the protection provided under Article 6 of the collective bargaining agreement shall be protected henceforth against any involuntary layoff or reduction in force (RIF) during the term of the collective bargaining agreement ending November 20, 1994.

10. WITHOUT PREJUDICE

This agreement shall not prohibit either party from proposing changes to either this or the previous TE agreement in future collective bargaining. In addition, this agreement will not be cited by either party in any future interest arbitration proceeding.

11. PTF CONVERSION/TRANSITIONAL EMPLOYEE GRIEVANCES

A. This agreement shall be considered full and final settlement of all grievances filed to date with regard to the hiring of Transitional Employees and the conversion of Part-Time Flexible employees to full-time. Any future grievances on maximization may

not use hours worked prior to this agreement as a basis for the grievance. In addition, any conversions to Full-time made as a result of a future grievance may only count toward management's obligation under Section 1.B.(1) above if such PTFs are converted short of arbitration.

B. At the District level, the parties will review existing grievances on Article 7, Section 3.B and C. to determine if they can help identify additional full time positions for PTF conversions.

c. Additionally, in light of the fact that the parties have agreed to resolve these disputes in accordance with this memorandum of understanding, the APWU agrees to withdraw the unfair labor practice charge (Case #5-CA-23057(P)) which has been filed claiming violations of the TE memoranda of understanding.

12. TE FUTURE CAREER OPPORTUNITIES

A. The parties herein express the desirability of affording future career employment opportunities to TEs. Consistent with that view, the parties agree to jointly explore the feasibility of such career opportunities, consistent with applicable law.

Attachment

ATTACHMENT A

TRANSITIONAL EMPLOYEE ANNUAL LEAVE PROVISIONS:

I. GENERAL

A. Purpose. Annual leave is provided to transitional employees for rest, recreation, emergency purposes, and iilness or injury.

1. Accrual of Annual Leave. Transitional employees earn annual leave based on the number of hours in which they are in a pay status in each pay period.

Rate of Accrual	Hours in Pay Status	Hours of Annual Leave Earned Per Pay Period
1 hour for each unit of 20 hours in pay status in each pay period	20	1
	40	2
	60	3
	80	4 (max.)

2. Biweekly Crediting. Annual leave accrues and is credited in whole hours at the end of each biweekly pay period.

3. Payment For Accumulated Annual Leave. A separating transitional employee may receive a lump-sum payment for accumulated annual leave subject to the following condition:

a. A transitional employee whose separation is effective before the last Friday of a pay period does not receive credit or terminal leave payment for the leave that would have accrued during that pay period.

II. AUTHORIZING ANNUAL LEAVE

A. General. Except for emergencies, annual leave for transitional employees must be requested on Form 3971 and approved in advance by the appropriate supervisor.

B. Emergencies and Illness or Injury. An exception to the advance approval requirement is made for emergencies, and illness or injury; however, in these situations, the transitional employee must notify appropriate postal authorities as soon as

possible as to the emergency or illness/injury and the expected duration of the absence. As soon as possible after return to duty, transitional employees must submit Form 3971 and explain the reason for the emergency or illness/injury to their supervisor. Supervisors approve or disapprove the leave request. When the request is disapproved, the absence may be recorded as AWOL at the discretion of the supervisor as outlined in Section IV.B below.

III. UNSCHEDULED ABSENCE

A. Definition. Unscheduled absences are any absences from work that are not requested and approved in advance.

B. Transitional Employee Responsibilities. Transitional employees are expected to maintain their assigned schedule and must make every effort to avoid unscheduled absences. In addition, transitional employees must provide acceptable evidence for absences when required.

IV. FORM 3971, REQUEST FOR, OR NOTIFICATION OF, ABSENCE

A. Purpose. Application for annual leave is made in writing, in duplicate, on Form 3971, Request for, or Notification of, Absence.

B. Approval/Disapproval. The supervisor is responsible for approving or disapproving application for annual leave by signing Form 3971, a copy of which is given to the transitional employee. If a supervisor does not approve an application for leave, the disapproved block on Form 3971 is checked and the reasons given in writing in the space provided. when a request is disapproved, the reasons for disapproval must be noted. AWOL determination must be similarly noted.

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE AND

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: TRANSITIONAL EMPLOYEES

The parties agree that only the following articles and portions of articles of the National Agreement as they appear in bold face print below apply to transitional employees:

Article 1

Article **2**

Article 3

Article 5

Article 7

ARTICLE 7
EMPLOYEE CLASSIFICATION

Section **1.** Definition and Use
*** * * * * * * * * * * * * * ***

C-Transitional Work Force **– APWU**

1. The transitional work force shall be comprised of noncareer, bargaining unit employees, utilized to fill vacated assignments as follows:

   a. Transitional employees may be used to cover duty assignments which are due to be eliminated by automation and residual vacancies withheld pursuant to Article 12.

   b. Transitional employees may be used to replace part-time attrition. Over the course of a pay period, the Employer will make a reasonable effort to

ensure **that qualified and available part-time flexible employees are utilized at the straight-time rate prior to assigning such work to transitional employees working in** the same **work location and on the same tour.**

2. Transitional employees shall be hired pursuant to such procedures as the Employer may establish. They will be hired for a term not to exceed 359 calendar days for each appointment. Such employees have no daily or weekly work hour guarantees. Transitional employees will have a break in service of at least 6 days between appointments.

Article 8

ARTICLE 8
HOURS OF WORK

Section 3. Exceptions

The above shall not apply to part-time employees and transitional employees.

Part-time employees will be scheduled in accordance with the above rules, except they may be scheduled for less than eight (8) hours per service day and less than forty (40) hours per normal work week.

Transitional employees will be **scheduled in accordance with Section 2, A and B, of this Article.**

Section 4.6. Overtime Work

Transitional employees shall be paid overtime for work performed in excess of forty (40) work hours in any one service week. Overtime pay for transitional employees is to be paid at the rate of one and one-half (1 1/2) times the basic hourly straight-time rate.

When an opportunity exists for overtime for qualified and available full-time employees, doing similar work in the work location where the employees regularly work, prior to utilizing a transitional employee in excess of eight (8) work hours in a service day, such qualified and available full-time employees on the appropriate Overtime Desired List will be selected to perform such work in order of their seniority on a rotating basis.

Section 7. Night Shift Differential

For time worked between the hours of 6:00 p.m. and 6:00 a.m. employees shall be paid additional compensation at the rate of ten percent (10%) of the base hourly straight-time rate.

For time worked between the hours of 6:00 p.m. and 6:00 a.m. transitional employees shall be paid additional compensation at the rate of ten percent (10%) of the basic hourly straight-time rate.

Section 9. Wash-Up Time

Installation heads shall grant reasonable wash-up time to those employees who perform dirty work or work with toxic materials. The amount of wash-up time granted each employee shall be subject to the grievance procedure.

The preceding paragraph shall apply to transitional employees.

Article 9

ARTICLE 9
SALARIES AND WAGES

Section 10. Transitional Employee

During the term of the 1990 Agreement, transitional employees' hourly rate will be as provided in this section.

A. Transitional employees will be paid at Step A or Step AA, as appropriate, of the part-time flexible basic hourly rate of the position to which they are assigned.

Article 10

ARTICLE 10
LEAVE

Section 2. Leave Regulations

A. The leave regulations in Subchapter 510 of the Employee and Labor Relations Manual, insofar as such regulations establish wages, hours and working conditions of employees covered by the Agreement, other than transitional employees, shall remain in effect for the life of this Agreement.

B. Career employees will be given preference over non-career employees when scheduling annual leave. This preference will take into consideration that scheduling is done on a tour-by-tour basis and that employee skills are a determining

factor in this decision.

Article 11

ARTICLE 11
EOLIDAYS

Section 6. Holiday Schedule

D. Transitional employees will be scheduled for work on a holiday or designated holiday after all full-time volunteers are scheduled to work on their holiday or designated holiday. They will be scheduled, to the extent possible, prior to any full-time volunteers or nonvolunteers being scheduled to work a nonscheduled day or any full-time nonvolunteers being required to work their holiday or designated holiday. If the parties have locally negotiated a pecking order that would schedule full-time volunteers on a non-scheduled day, the Local Memorandum of Understanding will apply.

Article 14

Article 15

Article 17- Sections 2, 6, and 7

Article 18

Article 19

ARTICLE 19
HANDBOOKS AND MANUALS

New Paragraph 3:

Article 19 shall apply in those parts of all handbooks, manuals and published regulations of the Postal Service, which directly relate to wages, hours or working conditions shall apply to transitional employees only to the extent consistent with other rights and characteristics of transitional employees negotiated in this Agreement and otherwise as they apply to the supplemental work force. The Employer shall have the right to make changes to handbooks, manuals and published regulations as they relate to transitional employees pursuant to the same standards and procedures found in Article 19 of this agreement.

Article 20

Article 22

Article 23

Article 24

Article 27

Article 28

Article 31

Article 32

Article 34

Article 36

Article 42

Article 43

Only the following Memorandum of Understanding from the 1990 National Agreement shall apply to Transitional Employees:

Use of Privately Owned Vehicles
Leave Sharing
Leave Without Pay

SUBJECT: FEBRUARY 2, 1993, APWU Memorandum of Understanding
TE III

QUESTIONS & ANSWERS

Foilowing am queationa and answers pmpared jointly by the APWU and USPS. The Q & As specifically address pmbisma which have been raised by the field during implementation of the February 2.1903. MOU between the APWU and USPS. The Q & As will further clarify the intent of the parties on the proper appkation of the terms of the MOU to those issues.

1. Ara TEs qualified or eligible to receive military leave. court leave or administrative leave?

   NO.

2. Can TEs be worked beyond eight (8) hours in a service day (or beyond 40 hours on overtime) befora a career overtime desired list empioyea is scheduled to work (up to 10 or 12 hours, whichever applicable overtime desired list they are on)?

   Befora a TE can be scheduled to work beyond eight (8) hours in a service day or for overtime (more than 40 hours), those career empioyeea on the ● ppmprtata OTD list must be scheduled to work the overtime hours up to their applicable list preference, unless there is a need for simuitaneow scheduling, in which case both me career and me TE am scheduled to work.

   As examples:

   Them is a need for one person to work 4 hours beyond the tour. A career employee on the 12 hour OTDL and a TE who has worked 8 hours that service day (or 40 hours) am available. The career employee on the OTDL works me 4 hours OT.

   There is a need for two people to work 2 hours simultaneously beyond me tour. A araer employee on the 12 hour OTDL and a TE who has worked 8 hours that service day (or 40 hours) am avaiiabie. Both work the 2 hours, since the need is simultaneous.

   Them is a need for one peraon to work 2 hours bayond the tour. A career emptoyea on the 12 hour OTDL who is not qualified and a TE who has worked 8 hours that service day who is qualified am available. The TE works the 2 hours since the career employee is not qualified. If the TE is qualified and a career employee on me OTDL is not, them is no obligation to work the career employee OT in that situation.

   Them am many different situations which might arise. if there are anv questions. tha basic principle to be applied in fiiiing operational naeds is that, ail things being equai in me opportunity, a career empioyee on the OTDL has a superior claim to overtime before a TE is scheduled for more that 8 hours in a service day or beyond 40 hours.

3. Can TEs still be used in withheld, withheld pending reversion, PTF attrition, as well as tha other aasignmenta allowed under TE II?

   YES. The Postal Service may continue to utilize TEs in withheld, withheld pending reversion and PTF attrition provided the Service has complied with the applicable provisions of the collective bargaining agreement with regard to the withholding.

Moe Biller
President
American Postai Workers Union, AFL-CIO

Date: 2/1/96

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU

Date: 11/13/95

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: RBCS

In full and complete settlement of all issues related to the implementation of RBCS, the APWU and the Postal Service agree to the following principles:

1. The Postal Service recognizes the value of postal employment in the fulfillment of its automation program and the APWU recognizes the value of cooperation with the Postal Service in the implementation of the automation program.

2. The parties agree that the RBCS keying position is a Data Conversion Operator, PS-4, clerk craft. In addition, the parties agree to utilize the concept of Group Leader - Data Conversion Operator, PS-5, clerk craft, in the RBCS keying sites.

3. The parties will develop the details of an orderly transition of RBCS to postal operations by means of a Joint Task Force on RBCS Implementation whkh is referenced in paragraph 10 of this Memorandum of Understanding. One of the purposes of the Task Force is to protect service during the transition. The Postal Service is committed to performing all RBCS work with postal employ- (career and noncareer) as quickly as operationally possible. The current 25 RBCS contract sites and the 2 EAF sites will be converted to postal operations at the earliest possible date. However, the parties recognize that during the transition phase and in order to maintain service at an existing contract site, there may be unavoidable delays in converting a contract site to a postal operation. Only in such circumstances may the Postal Service extend particular contracts beyond the initial contract term. In no case may such contract extensions continue beyond December 31, 1998. Should the union believe that any contract extension violates the principles in this paragraph, the APWU may immediately proceed to arbitration with priority scheduling.

4. The clerical staffing of the RBCS sites will be accomplished by utilizing the ratio of 30 percent career work hours to 70 percent Transitional Employee work hours (work hours do not include leave hours). The ratio of career work hours to Transitional Employee work hours in RBCS sites is limited to those activities that are related to RBCS opemtions, which also includes other activities such as administrative support This ratio of career work hours to Transitional Employee work hours in RBCS sites is a national percentage. The Postal Service is committed to ensuring that the conditions of this provision are met on an ongoing basis.

   The Parties recognize that volume and work hours will fluctuate during the course of a fiscal year. It is unlikely that work hour projections will precisely match actual experience. Therefore, there will be a need to monitor work hours and adjust the work hours and/or complement to assure that the national work hour percentages are achieved on average over each fiscal year. The following procedures will be utilized to monitor and adjust work hours/complement to comply with this agreement:

   a. The Postal Service will make the initial projections for volume and work hours in the RBCS opemtions. Also, the Postal Service will project the career complement at each keying site. The career complement system-wide must be sufficient to work thirty percent of the projected work hours.

b. Commencing with the first accounting period after the start-up of Postal RBCS operations, the parties will meet at least once each accounting period to review actual experience and revised projections. The parties will agree upon any necessary adjustments to the planned career complement work hours.

c. After the first year of Postal RBCS operations, the Postal Service will make work hour and career complement projections by fiscal year. The patties will meat at least quarterly to review actual experience and revised projections. The parties will agree upon any necessary adjustments to the planned career complement work hours.

d. After completion of the first twenty-four months of Postal RBCS operations, the parties will meat to review the actual experience in relation to achieving the agreed upon percentages of thirty percent career work hours and seventy percent Transitional Employee work hours.

If the experience shows difficulty in kwping within a one percent career workhour variance, the parties will resolve the difference and consider appropriate adjustments, such as lump sum payments to identified affected employees and/or other complement adjustment options.

Adjustments in work hours and/or complement are intended to quickly recover any deviatiin from plan, in order that at the end of the fiscal year, the agreed upon work hour percentages are achieved.

5. The parties recognize that the Transitional Empbyee complement provides the Postal Service with additional flexibility. It is the intent of the parties that the career workforce, up to the agreed upon percentage, will occupy full-time duty assignments to the extent that there exists 8 hours of work within 9 or 10 consecutive hours, as appropriate.

6 The lock-in period for Data Conversion Operators will be 365 days. The parties agree that each RBCS site will complete the twelve (12) week production ramp-up period before the lock-in period will begin for the full-time Data Conversion Operators in RBCS sites.

7. The Postal Service retains the right to determine the location of the RBCS sites, as wall as the right to determine which images are processed at each such RBCS site. A RBCS site processing images for an installation other than the installation in which the RBCS site is situated will be considered an independent installation for purposes of the application of the National Agreement.

8. Consistent with applicable law, the parties will establish procedures which will provide RBCS Transitional Employees with RBCS career opportunities.

9. Employees will be required to qualify for RBCS keying at a rate of 7,150 keystrokes per hour at an accuracy rate of 98 percent Employees will be expected to maintain the performance and accuracy rates required for qualification, which the parties agree is a fair day's work. There shall be no production standards unless one is promulgated pursuant to Article 34. The parties will jointly work to develop methods of maintaining the throughput and accuracy rates for the system, the training program for qualifying employees as keyers and a system for monitoring performance. The part&s will review the keying rate of 7,150 keystrokes per hour and accuracy rates and adjust as appropriate, prior to the implementation of Remote Computer Read.

10. The parties agree to establish a Joint Task Force to address issues of mutual concern with respect to RBCS implementation. The Joint Task Force on RBCS impiementation will meet to discuss and agree on certain matters, including but not limited to the following topics:

    a. Ergonomics - Ergonomic concerns related to work stations and operational methods shall be jointly addressed through a consultative process. The Joint Task Force will make its initial recommendations to the parties concerning operational methods, within 90 days of the date of this Memorandum of Understanding. Thereafter, the Joint Task Force will address either party's continuing concerns.

    b. Group Leader-Data Conversion Operator, PS-5, clerk craft - Prior to the activation of the next 22 RBCS sites, the parties will negotiate the details of such staffing.

    c. Application of Transitional Employee Memoranda of Understanding - Within 30 days of the date of this Memorandum of Understanding, the parties will meet and agree upon which portions of the existing Transitional Employee Memoranda of Understanding shall be applicable to the RBCS Transitional Employees.

    d. Career Opportunities for Transitional Employees - The procedures necessary to provide career opportunities for RBCS Transitional Employees will be completed no later than 120 days of the date of this Memorandum of Understanding.

    e. Information Tracking - The Postal Service will share performance tracking information on RBCS operations with the APWU.

    f. Interaction of a Separate RBCS Site with Other Postal installations - Prior to the first RBCS site completing its tweive (12) week production ramp-up, the parties shall agree to a procedure for RBCS site career employees to be able to move into an installation or installations in a geographical area contiguous to the RBCS site, after the 365 day lock-in period has been completed. Prior to activation of a Postal RBCS site, the parties shall resolve all issues related to Article 30 of the National Agreement with respect to such RBCS site.

    The parties intend to form sub-committees to address these matters and, unless otherwise indicated, report to the Joint Task Force within ninety days of the date of this Memorandum of Understanding. Failure of the parties to reach agreement on any Joint Task Force matters shall not delay the activation of any RBCS site.

11. The parties agree that the terms of this Memorandum of Understanding and any other agreements which the parties enter as a result of the activities and recommendations of the Joint Task Force on RBCS Implementation shall not be raised during the 1994 National Negotiations or during any related interest arbitration proceedings.

Moe Biller
President
American Postal Workers
Union, AFL-CIO

Dated: 11/2/93

Joseph J. Mahon, Jr.
Vice President
Labor Relations
U.S. Postal Service

Dated: 11/3/93

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Be: RBCS Implementation

As soon as possible, the USPS will offer an opportunity to all Joint Bargaining Committee represented employees, to express an interest in one of the BBCS Data Conversion Operator, PS-4, clerk craft jobs in an RBCS site. This solicitation will permit an expression of interest by state, metropolitan area or city.

After the USPS selects a site for an BBCS operation, a notice will be posted for clerk craft employees within the district encompassing the selected site offering full-time and part-time career opportunities In the selected rite. A posting shall be made at post offices within the district to inform and invite them to express an interest. For purposes of this Memorandum of Understanding (HOU) only, the term district is defined as the geographical area covered by each of the USPS districts as of the date of this IOU.

Employees requesting reassignment to or bidding for keying positions in the BBCS sites shall be given an opportunity to demonstrate that they meet the minimum qualifications by taking the appropriate examinations. Such opportunities shall be offered to employees vho are being considered for the keying positions.

SECTION 1. ASSIGNBENT OF OPPORTUNITIES AT RBCS SITES

A. INDEPENDENT INSTALLATION

The folloving areas of consideration, in the order listed, shall be utilized for the purposes of offering and avarding career opportunities to employees:

1. Pull-tire Opportunities

   a. Clerk craft from the solicitation and district-vlde posting:

      (1) Full-time
      (2) Part-time flexible
      (3) Part-time regular

   b. Employees in other crafts represented by the Joint Bargaining Comittee vho have expressed an interest in

the solicitation will be selected based on their craft seniority or their standing on their part-time flexible roll:

(1) Full-time
(2) Part-time flexible
(3) Part-time regular

2. Part-tine **Opportunities**

Available career part-time opportunities shall be filled in accordance vith **1.a.** and b. above.

B. PART OF AN **EXISTING** INSTALLATION

The folloving procedures and areas of consideration shall be utilized, in the order listed, to initially fill the nevly created assignments:

1. Pull-time assignments

a. Clerk craft in the installation

(1) Career full-time duty assignments shall be posted and avarded.

(2) If a residual vacancy or vacancies **remain,** the remaining vacancy or vacancies shall be posted for application office-vide to employees represented by the Joint Bargaining Committee. The full-time duty assignments **will** be avarded to employees vho meet the **minimum** qualifications as follovs:

(a) Clerk Craft

1) Part-time flexible
2) Part-time regular

(b) Employees in other crafts vho expressed an interest **in** the solicitation **will** be selected based on their craft seniority or their standing on the part-time flexible roll.

1) Full-time
2) Part-time flexible
3) Part-time regular

(c) Clerk craft employees **within** the district vho **had** expressed an interest in the solicitation or district-vide posting as follows:

1) Full-time
2) Part-time flexible
3) Part-time regular

(d) All other Joint Bargaining Committee employees who had expressed an interest in the solicitation a6 follows:

1) Clerk craft

a) Pull-tile
b) Part-time flexible
c) Part-time regular

2) Other craft6

2. Part-time career opportunities shall be offered to employee6 vho meet the minimum qualifications a6 follovs:

a. Clerk craft vithin the Installation:

(1) Full-time
(2) Part-time flexible
(3) Part-time regular

b. Employees in other crafts within the Installation vho expressed an Interest In the solicitation will be selected based on their craft seniority or their standing on their part-time flexfble roll as follovs:

(1) Full-time
(2) Part-time flexible
(3) Part-time regular

c. Clerk craft employees within the district vho had expressed an interest in the solicitation or district-vlde posting as follovs:

(1) Full-time
(2) Part-time flexible
(3) Part-time regular

d. All other Joint Bargaining Committee employees who had expressed an interest in the solicitation as follows:

(1) Clerk craft

a) Full-time
b) Part-time f lexlble
c) Part-time regular

(2) Other craft6

C. **SENIORITY**

Career employee6, vho are reassigned to a RBCS site as a result of the implementation of Section 1 of this Memorandum of Understanding, will have their reassignment treated as a detail

during the 12 veek production ramp-up period. At the end of the 12 week period, the reassigned career employees will have their seniority established as the date of the reassignment of the first career employee or the date of the first outside hire at the site whichever is earlier. The provfsions of Article 37, Section 2.D.4. shall be used to break any ties in seniority.

D. RELOCATION

Career employees reassigned to a RBCS site as a result of implementation of Section 1 of this Memorandum of Understanding are responsible for payment of all expenses Incurred as a result of such reassignments. Such employees are not entitled to per diem, temporary quarters, moving, mileage, or reimbursement for movement of household goods.

SECTION 2. BIDDING RESTRICTIONS

A. INDEPENDENT INSTALLATION

1. After the completion of the 12 veek production ramp-up period, an employee vho becomes a full-time RBCS Data Conversion Operator for the first time will be restricted from further bidding or voluntary reassignment for a period of 365 days.

2. Former RBCS Data Conversion Operators vho bid back to a RBCS Data Conversion Operator duty assignment and require the complete classroom training will be restricted from further bidding for a period of 180 days.

3. The bidding restrictions in (1) and (2) above apply unless such bid is to one of the folloving:

   a. another RBCS Data Conversion Operator duty assignment;

   b. a duty assignment in a higher level vithin the installation; or

   c. caused by substantiated medical or health reasons vhereby continuation in the RBCS Data Conversion Operator duty assignment vould be harmful to the employee.

4. Full-time RBCS Data Conversion Operators may continue to apply for positions in the installation vhich are filled baaed on best qualified, including other craft jobs for vhich they are eligible to apply.

B. PART OF AN EXISTING INSTALLATION

1. After the completion of the 12 veek ramp-up period, an employee vho becomes a full-time RBCS Data Conversion

Operator for the first time shall be restricted from further bidding or voluntary reassignment for a period of 365 days.

2. A former RBCS Data Conversion Operator who bids back to a RBCS Data Conversion Operator duty assignment and requires the complete classroom training will be restricted from further bidding for a period of 180 days.

3. The bidding restrictions in (1) and (2) above apply unless such bid is to one of the following:

   a. another RBCS Data Conversion Operator duty assignment;

   b. a job In a higher level; during the 365 days immediately following the 12 week production ramp-up this exception will only apply to bids to Group Leader, RBCS Data Conversion Operator, PS-5, assignment; or

   c. caused by substantiated medical or health reasons vhereby continuation in the RBCS Data Conversion Operator duty assignment vould be harmful to the employee.

4. Pull-time RBCS Data Conversion Operators may continue to apply for positions which are filled based on best qualified, including other craft jobs for which they are eligible to apply-

Moe Biller
President
American Postal Vorkers Union, AFL-CIO
Dated: 11/2/93

Joseph J. Mahon, Jr.
Vice President
Labor Relations
U.S. Postal Service
Dated: 11/3/93

MEMORANDUM FOR APWU NATIONAL, STATE, AND LOCAL UNION OFFICIALS
AREA MANAGERS, CUSTOMER SERVICES
AREA MANAGERS, PROCESSING AND DISTRIBUTION
DISTRICT MANAGERS, CUSTOMER SERVICES
PLANT MANAGERS, PROCESSING AND DISTRIBUTION

SUBJECT: Labor-Management Cooperation

The amicable resolution of our differences regarding the deployment of RBCS marks a milestone in the relationship between the Postal Service and the American Postal Workers Union, AFL-CIO.

Although we have established a pattern of resolving more disputes through voluntary agreement than through litigation, none has had the significance of this agreement. Not only were the substantive issues of major concern to each of us, but the agreement recognizes that we cannot anticipate and provide for all future contingencies. We must establish a relationship built on mutual trust and a determination to explore and resolve issues jointly. This agreement embraces these principles.

In order to build on this momentum and improve our relationships throughout the Postal Service, we set forth the following principles of mutual commitment:

1. The APWU and the Postal Service hereby reaffirm their commitment to and support for labor-management cooperation at all levels of the organization to ensure a productive labor relations climate which should result in a better working environment for employees and to ensure the continued viability and success of the Postal Service.

2. The parties recognize that this commitment and support shall be manifested by cooperative dealings between management and the Union leadership which serves as the spokesperson for the employees whom they represent.

3. The parties recognize that the Postal Service operates in a competitive environment and understand that each Postal Service product is subject to volume diversion. Therefore, it is imperative that management and the Union jointly pursue strategies which emphasize improving employee working conditions and satisfying the customer in terms of service and costs. A more cooperative approach in dealings between management and APWU officials is encouraged on all issues in order to build a more efficient Postal Service.

4. The Postal Service recognizes the value of Union involvement in the decision making process and respects the right of the APWU to represent bargaining unit employees. In this regard, the Postal Service will work with and through the national, regional, and local Union leadership, rather than directly with employees on issues which affect working conditions and will seek ways of improving customer service, increasing revenue, and reducing postal costs. Management also recognizes the value of union input and a cooperative approach on issues that will affect working conditions and Postal Service policies. The parties affirm their intent to jointly discuss such issues prior to the development of such plans or policies.

5. The APWU and the Postal Service approve the concept of joint meetings among all organizations on issues of interest to all employees, but which are not directly related to wages, hours or working conditions, such as customer service, the financial performance of the organization and community-related activities. In this regard, the APWU will participate in joint efforts with management and other employee organizations to address these and other similar issues of mutual interest.

6. On matters directly affecting wages, hours or working conditions, the Postal Service and the APWU recognize that separate labor-management meetings involving only the affected Union or Unions are necessary. The parties are encouraged to discuss, explore, and resolve these issues, provided neither party shall attempt to change or vary the terms or provisions of the National Agreement.

Moe Biller
President
American Postal Workers
Union, AFL-CIO

Dated: 11/2/93

Marvin Runyon
Postmaster General/CEO
U.S. Postal Service

Dated: 11/2/1993

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE AND

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: REMOTE ENCODING CENTER - TRANSITIONAL EMPLOYEES

In accordance vith the *November* 2, 1993, Memorandum *of* Understanding, Section 10.c., the parties agree that the following sections of the existing provisions of the Transitional Employee Agreement (TE III, Cover Memo dated **May 4, 1994) do not apply in Remote Encoding Centers:**

Sections 1, 2, 3, 4, 5, 6, 7, 8.B., 8.C.3, 8.D., 8.E., 8.F., 8.G., 11, 12, and Article 7, Sections 1.C.1.a. & b.

Moe Biller

Mr. Moe Biller
President
American *Postal* Workers
Union, AFL-CIO

Anthony J. Vegliante

Mr. Anthony J. Vegliante
Manager
Grievance and **Arbitration**
Labor Relation8
U.S. Postal Service

Date: May 4, 1994

Attachment8

MEMORANDUM OF UNDERSTANDING

BETWEEN THE

UNITED STATES POSTAL SERVICE AND

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: REMOTE ENCODING CENTER - FUTURE DOWNSIZING

In accordance with the November 2, 1993, Memorandum of Understanding, the parties agree that before any action is taken to reduce the work force in Remote Encoding Centers (RECs), the parties will meet to discuss the applicability of the following sections of the TE III document. Cover Memo dated May 4, 1994:

Section 8.D. Career Employees Option for Vacant Duty Assignment,

Section 8.E. Assignment of Part-Time Flexible Employees to a Withheld Vacancy,

Section 8.G Reassignment of Career Employees Outside of a Section, Craft, or Installation.

This agreement is entered into without prejudice to the positions of either party.

Mr. Moe Biller
President
American Postal Workers
Union. AFL-CIO

Mr. Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relations
U.S. Portal Service

Dater May 4 1994

INTERIM WORK RULES REMOTE ENCODING CENTERS

The following interim work rules apply to all Remote Encoding Centers (REC) activated prior to February 1, 1995, and shall apply until the conclusion of the local implementation period following the 1994 National Agreement.

In addition, the interim work rules Will apply to RECs activated after February 1, 1995. The local implementation period for any such center shall be the 30 days after completion of the 12 week operational ramp up, unless otherwise mutually agreed to by the local parties to extend. These interim work rules will apply until the conclusion of the local implementation period.

The provisions of Article 30 shall apply at the conclusion of the local implementation period.

The local parties may mutually agree to modification8 of the below listed interim work rules if they determine that local circumstances warrant prior to local implementation period.

The parties are encouraged to institute local Labor-Management meetings as soon as practicable to consider matter6 of mutual concern.

Additional or longer wash-up periods.

In the event that an employee is assigned to perform dirty work or work with toxic materials, the employee will be allowed reasonable wash up time. before lunch and end of tour.

The establishment of a regular work week of five days with either fixed or rotating days off.

Regular work veeks shall be established with fixed off days in accordance vith Article 8 of the National Agreement. As far as practicable the five days shall be consecutive day6 within the service week.

Formulation of Local Leave Program.

The parties at the local level shall meet as soon as Possible to establish a local leave program. If the parties, however, are unable to reach agreement regarding the formulation of a local leave program, it will be fowarded to the National RBCS committee for final resolution.

The method of selecting employees to work on a holiday.

The following order will be used for holiday scheduling:

- All part-time flexible employees to the extent possible, even if payment of overtime is required.

- All full-time and part-time regular employees who possess the necessary skills and have volunteered to *work* on the holiday or their designated holiday.

- Transitional Employees (TEs), to the extent possible at the straight time rate, will be scheduled for work on a holiday or designated holiday after full-time volunteers are scheduled to work on their holiday or designated holiday. For purposes of this provision scheduling at the straight-time rate means up to 8 hours per day and 40 hours per week. If a dispute arises over application of this provision the parties will consider the pattern of scheduling the TE within these constraints for the week *prior to* the week in which the schedule is posted.

- Full-time and part-time regular volunteer employees whose scheduled non-work day falls on the holiday or a day designated as a holiday and possess the necessary skills, even though the payment of overtime is required, by seniority.

- Full-time and part-time regular nonvolunteer employees whose scheduled nonwork day falls on the holiday or day designated as a holiday and possess the necessary skills, even though the payment of overtime is required, by juniority.

- Full-time and part-time regular employees who have not volunteered to work their holiday, by juniority.

Whether "Overtime Desired" lists in Article 8 shall be by section and/or tour.

Overtime desired list for full-time career clerk craft employees will be established by tour. Overtime work shall be scheduled among qualified and available employees doing similar work in the work location where the employees regularly work.

Overtime desired list for the maintenance craft will be established by tour and occupational group and salary level.

The identification of assignments comprising a section, when it is proposed to reassign within an installation employees excess to the needs of a section.

For Clerk Craft, when applying Article 12 of the National Agreement, Sections are defined as by Tour, by Plant serviced. For the Maintenance Craft, when applying

Article 12 of the National Agreement, Sections are **defined** as by Tour, Occupational Group and salary level.

The **parties** at the National level will determine the specifics of the application of Article 12 to the **RECs.**

Those other items which are subject to local implementation as provided in the craft provisions of this Agreement.

Article 37 - **Clerk Craft**

A. The local president of the **APWU** will be provided an updated copy **of** seniority lists for full-time and part-time regular employees on a quarterly basis.

B. If the starting time of a full-time duty assignment in the **clerk craft** is changed from one **(1)** hour up to two **(2)** hours during the life of the National Agreement, the incumbent shall have the option **of** accepting the new reporting time. No assignment will be reposted when the change in starting time is one hour or less. If the incumbent elects not to accept the new reporting time, the duty assignment **will** be reposted. Any change more than two (2) hours will be posted.

Article 38 - **Maintenance Craft**

A. The local president of the APWU will be provided an updated copy of seniority lists for full-time and part-time regular employees on a quarterly basis.

B. When it is necessary that fixed scheduled day(s) of work in the basic work week for a craft assignment be permanently changed, or that the starting time for such an assignment be changed by 2 or more hours, the affected assignment(s) shall be reposted, by notice of intent. An exception to the **requirement to** repost an assignment where the change in starting time is 2 or more hours may be negotiated locally. If the incumbent in the assignment has more seniority for the preferred assignment than the senior employee on the preferred assignment eligibility register for those off days or hours, the employee may remain in the duty assignment, if the employee so desires.

It is agreed that the Interim Work Rules contained in this document will not be cited for any purpose, except for enforcement of the above, by either party, in any future proceeding.

Anthony J. Vegliante
Manager
Grievance and Arbitration
U. s. Postal Service

Date: 10/4/94

Moe Biller
President
American Postal Workers Union

Date: 10/4/94

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: CONSOLIDATION - REMOTE ENCODING CENTER AND PLANT

The parties agree that whenever it becomes necessary to make a Remote Encoding Center (REC) part of an existing installation because the REC site will begin keying images for that installation, the provisions of Article 12, Section 5.C.2., Consolidation of an Independent Installation, of the collective bargaining agreement will apply with the following one exception:

> Those REC Clerk Craft career employees who were voluntarily reassigned to the REC site directly from the continuing installation will have their seniority calculated as if their service was uninterrupted in the continuing installation.

This exception applies oniy to REC site Clerk Craft career employees who were voluntarily reassigned to the REC site and only in the specific situation as described above.

Moe Biller
Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO
Date: 5/25/95

Anthony J. Vagliante
Manager
Contract Administration
APWU/NPMHU
Date: 5/23/95

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE AND
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: GROUP LEADER POSITION - REMOTE ENCODING CENTERS

The parties recognize that the establishment of a group leader position as an integral part of Remote Encoding Centers (REC) is to help reduce overhead costs and improve quality, morale, and productivity. The Joint USPS/APWU goal of a quality operation in RECs will be enhanced through the utilization of Data Conversion Operator (DCO), Group Leaders.

The foilowing represents agreement between the parties that the position of Group Leader, Data Conversion Operator, PS-05, will be utilized in RECs in accordance with this agreement.

Data Conversion Operator, Group Leaders, will be utilized by management to perform data conversion operator keying functions and to assist Supervisors and Data Conversion Operator keyers by performing duties in support of routine administrative functions at RECs.

Group Leaders' responsibilities shall include, but are not limited to the following:

1. The Group Leaders are responsible for keying when not engaged in group leader duties and must maintain their speed and accuracy proficiency when performing their DCO keying duties.

2. The Group Leader shall be responsible for routine administrative functions related to DCO Keyer Performance Evaluation Review (KPER) procedures. Such functions shall include conducting KPER(s) and maintaining associated record keeping.

   The Group Leader shall not recommend or communicate to the supervisor any proposed disciplinary action related to the results of the KPER process. The Group Leader will present all errors detected in the KPERs to their immediate supervisor.

   The Group Leader performing routine KPER(s) does not preclude any management official from personally conducting special KPER(s), as deemed necessary. However, special KPERs will be performed only for analysis and/or determination of an operator's keying deficiencies in order that appropriate

corrective action can be effectively undertaken. Any corrective action taken will be in accordance with the KPER procedure and the collective bargaining agreement. Special KPERs will not be used expressly to single out individual DCOs for disciplinary action.

3. The Group Leader shall perform routine administrative time and attendance functions that include data entry of time and attendance information; verification and correcting of time records; and any further administrative duties reiated to time and attendance as directed by local REC management. The supervisor maintains all responsibility for approving any changes and initiating any administrative or corrective actions relating to time and attendance of employees.

4. The Group Leader shall assist in Human Resource administrative functions, including new employee orientation, by performing routine functions as deemed necessary by REC management. The Group Leader will protect all appropriate confidential information on individual employees.

5. The Group Leader shall provide DCO training and support, both classroom, on-the-job and ergonomic, as well as any associated routine administrative record keeping. The Group Leader shall provide follow up and/or remedial training to keyers, as deemed appropriate by management. The Group Leader performing this training function(s) does not preclude any management official from assisting in the administration of any training and/or providing the training if there are no Group Leaders or qualified Group Leaders.

6. The Group Leader shall perform other Human Resource, quality control, administrative and support functions to improve the operation, as deemed necessary and appropriate by REC management.

7. The number of Group Leaders and their area of responsibility will be determined by management at the local level after consultation with the local union. However, there will be no less than two Group Leaders for every one Supervisor (e.g. Remote Encoding Operations [REO]), or no more than three Group Leaders for every one Supervisor.

8. Group Leaders will be trained in the correct procedures to follow when conducting KPERs. The parties will jointly develop a Group Leader training course to be administered to all Group Leaders_

9. Group Leader duty assignments will be posted for bid only to full-time career DCOs currently working in the REC who have keyed successfully for at least six months (the six months could include TE time) .

10. The appropriate number of Group Leader duty assignments will be posted for bid within thirty days of the signing of this memorandum in all existing Postal REC sites that have operated for six months *cr* more.

11. Newly established or converted contract RECs will post the appropriate number of Group Leader positions no less than 6 months or more than 7 months after the activation of the facility.

12. This agreement is made without prejudice to the positions of the parties. The parties agree that this agreement cannot be cited in any forum other than one that deals directly with enforcement of this agreement.

Mr. Moe Biller
President
American Postal workers Union, AFL-CIO

Date: 5/26/95

Mr. Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU

Date: 5/23/95

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATBS POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RR: Interaction of An Independent REC Site with Other Postal Installations

In accordance with the November 2, 1993 Memorandum of Understanding, Section 10.f., the parties agree to the following procedure for career employees employed in independent Remote Encoding Centers (RECs) to be voluntarily reassigned to designated contiguous existing postal installation(s):

1. Prior to reassigning a career RBCS employee in an independent Remote Encoding Center (REC) into a part-time or full-time position in a postal installation designated by the National Joint Task Force on RBCS Implementation as contiguous to a REC, the following contractual procedures for filling vacancies shall be accomplished within the postal installation in the following order:

   A. Normal posting, bidding and awarding of clerk craft duty assignments (not being considered for reversion) as prescribed in Article 37 of the National Agreement.

   B. Assignment of full-time employees not encumbered in a bid duty assignment as prescribed in Article 37, Sections 3.F.10 and 11.

   c. Placement of any employees who have been excessed out of the facility and exercise their retreat rights in accordance with Article 12.

   D. Conversion of part-time flexible employees as prescribed in Article 37, Section 2.D.5.

   E. Voluntary reassignment of part-time regulars in accordance with the National Agreement who have expressed, in writing, their desire to be reassigned from part-time regular to the part-time flexible rolls.

2. Before any residual full-time vacancy or part-time position is filled through new hires in the designated contiguous postal installation(s), those opportunities shall be offered to eligible and qualified career employees in the contiguous REC who have expressed an interest in writing in being voluntarily reassigned.

3. Career employees in a contiguous RBC shall be provided an opportunity in the months of February and July of each year to express, in writing, their desire to be voluntarily reassigned to full-time and/or part-time positions in a designated contiguous postal installation(s).

4. Career employees in a REC shall be eligible for voluntary reassignment and shall be reassigned as follows:

   A. Full-time career employees must have been employed in the REC for 365 days, which begins after the completion of the 12 week ramp up period.

   B. Part-time career employees must have been employed in the REC for eighteen months after the completion of the 12 week ramp up period.

   c. Those eligible and qualified career employees shall be selected for voluntary reassignment by seniority and/or their standing on their part-time flexible roll.

   D. Those employees voluntarily reassigned will begin a new period of seniority pursuant to Article 37.

   E. Sections (1) and (2) of the Memorandum found on Page 308 of the 1990 Agreement shall apply for the purpose of establishing minimum qualifications for voluntary reassignment.

   P. Employees will be accepted for voluntary transfer unless they have a live disciplinary record. Employees with a live disciplinary record may be considered for transfer on a case-by-case basis.

5. Positions withheld pursuant to Article 12 or withheld pending reversion pursuant to the TE agreement will not be considered as available to be filled in accordance with this Memorandum.

6. This Memorandum of Understanding is not intended to deprive any employee of any rights gained in accordance with the provisions of the PTF conversion MOU signed February 2, 1993.

7. When career employees are being considered for voluntary reassignment, the installation head will contact the manager of the losing REC and arrange for mutually agreeable reassignment and reporting dates. A minimum of thirty days notice to the losing REC will be afforded. Except in the event of unusual circumstances at the losing REC, reasonable time will be provided to allow the REC time to fill vacancies, however, this time shall not exceed ninety days from the date of the identification of the vacancy to be filled under this memorandum.

8. The Postal Service may collect and analyze data to determine the impact of career employee movement under this memorandum-

9. The parties agree to the following clarifying amendments to the Memorandum of Understanding on RBCS Implementation dated November 2, 1993:

   A. Section 2.A.1. delete "or voluntary reassignment."

   B. Section 2.A.2. delete "who bid back" and substitute "who is voluntarily reassigned back,"

   C. Section 2.B.1. delete "or voluntary reassignment.**

Moe Biller
President
American Postal Workers Union, AFL-CIO

Anthony J. Vegliante
Manager
Grievance and Arbitration
Labor Relations

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: INDEPENDENT REMOTE **ENCODING CENTERS -** ENTRANCE EXAMINATION OPPORTUNITIES FOR TRANSITIONAL EMPLOYEES

In the interest of further enhancing career employment opportunities for APWU transitional employees (TEs) in independent Remote Encoding Center (REC) sites, the Postal Service and the APWU agree as follows:

1. APWU TEs in independent REC sites, who have completed 180 days of employment as a TE in a REC site and are still on the rolls in a pay status in a REC, may take the 710 examination or any entrance examination for which the REC installation maintains a register for a career position in that REC site. Eligible APWU TEs in dependent REC sites will be provided the same opportunities as other TEs in the installation per the MOU dated June 7, 1996.

   Only two such examination opportunities will be provided during the term of this Memorandum of Understanding to each eligible TE pursuant to this Memorandum, except that eligible TEs will be permitted to retake the 710 exam if it is subsequently replaced.

2. Eligible TEs in RECs who wish to take the 710 entrance examination must submit their request in writing to the REC Manager or designee. The local union will be provided written notification of TEs who have submitted such requests.

   The requested 710 examination(s) will be administered to eligible TEs in RECs in conjunction with the public testing of applicants, provided there will be at least two such tests administered during the term of this Memorandum.

   The Postal Service will not be obligated to administer special 710 testing for this MOU for REC TEs unless it is determined that the entrance examination will not be open to the public sufficiently to accommodate two opportunities for eligible TEs during the term of this Memorandum.

3. Each TE's exam results taken in accordance with this memorandum will be scored, including any applicable veterans' preference points, and the Postal Service will take the higher score and merge it with the existing register for that exam. Thereafter, normal competitive selection procedures will apply in making appointments to career prositions.

4. This agreement will be effective from June 7, 1996 through November 20, 1998. Nothing herein is intended to limit any veterans' preference in hiring as established by law.

Anthony J. Vegliante
Manager, Contract Administration
APWU/NPMHU
U.S. Postal Service

Date: 9/12/96

Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO

Date: 9/12/96

DATA OPERATOR TRAINING
INTERIM CUT POINTS

Upon successful completion of qualifying tests 710 and 714, the following training cut points are proposed:

Type of Training	Week	Rate Per Hour	Maximum Brrors
computer Based	1	400 Images	3.0%
On-the- Job	4	4730 Key Strokes	5.5%
On-the-Job	8	5775 Key Strokes	5.0%
On-the-Job	12	7150 Key Stroke	2.0%

- At the 4 and 8 week cut points, the parties (APWU and USPS) agree that the goal is an 80% pass rate, that does not include voluntary quits. If the pass rate drops below 80% both parties agree to meet and discuss the training cut points.

Anthony J. Vegliante

Date 5/3/94

Moe Biller

Date 5/4/94

INTERIM WORK BREAK CYCLE

USPS REC Sites

4 & 8 Hour Tours

Hour 1 & 5	Key 55 minutes Break 5 minutes
Hour 2 & 6	**Key 55** minutes Break 5 minutes
Hour 3 & 7	Break 5 minutes *Key* **55** minutes
Hour 4 & 8	Break 5 minutes **Key 55** minutes

Home or Lunch Break

6 Hour Tours

Hour 1	Key **55** minutes Break **5** minutes
Hour 2	Key **55** minutes Break **5** minutes
Hour **3**	Break 5 minutes **Key 55** *minutes*
Hour 4	Break S minutes **Key 55** minutes
Rour **5**	*Break 10* minutes **Key SO** minutes
Hour 6	Key 5 minutes Break **5** minutes **Key 50** minutes

Home

Anthony J. Vagliante

Date 5/3/94

Moe Biller

Date 5/4/94

COMPUTER BASED INTERACTIVE TRAINING (CBIT)
REMOTE ENCODING CENTERS

This memorandum is a follow-up to the May 4, 1994 joint letter entitled "Data Operator Training- Interim Cut Points." The parties agree that the following changes will apply to the Computer Based Interactive Training (CBIT) portion of the training program for Data Conversion Operators (DCOs).

The current allowable time limit of 42 hours for the CBIT training will be revised in accordance with the following schedule:

Keyboard and N & A Coding Training •	Up to 44 Hours
C & E Coding Training	6 Hours, Plus Any Remaining Time From Keyboard and N & A Coding Training •
Training Time	50 Hours

• As an example, if a prospective DCO keyer successfully passed the Keyboard and N & A Coding Training in 35 hours, then he/she would be allowed to use the remaining 9 hours (44 hrs. allowed - minus 35 hrs. actually used), in addition to the 6 hours allowed (for a total of 15 hrs.), to pass the C & E Coding Training. If a prospective DCO keyer successfully passed the Keyboard and N &A Coding training in 44 hours, there would not be any remaining Keyboard and N 8 A Coding training time available, and he/she would only be allowed 6 hours to pass the C & E Coding training.

Moe Biller
President
American Postal Workers
Union, AFL-CIO
Date: 10/27/95

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU
Date: 10/27/95

MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: CAREER EMPLOYEES TRAINING - REMOTE ENCODING CENTERS

The parties agree that career employees being voluntarily reassigned to Remote Encoding Center (REC) sites in accordance with the National or District Solicitations, or bidding to a REC assignment when it is part of his/her installation, will be subject to the following criteria in determining when the employee can be released from his/her detail, or when the deferment period ends, with the result that the employee is permanently reassigned to the REC.

If the employee meets the requirements as stated below using the most recent best 5 out of 7 KPERs, the employee will be permanently assigned to the REC if on detail from another installation, will end the deferment period if in one, and will be converted from a PTF employee or a PTR employee to a full-time employee if in either status and conversion is appropriate.

A. All employees being voluntarily reassigned into the REC or bidding to a REC DCO position shall be required to successfully complete the Computer Based Interactive Training (CBIT) program as well as satisfactorily complete the Ergonomics Training.

B. After having satisfied those training programs, if a career employee is keying at the acceptable level of 7150 keystrokes per hour at 98% accuracy after a minimum of 240 console keying hours, he/she will be permanently reassigned to the REC.

C. The accuracy and speed levels will be determined by using an average of the most recent 7 Keyer Performance Evaluation Reviews (KPERs) conducted in accordance with the KPER procedures, disregarding the worst 2 results.

D. If a career employee does not meet the criteria stated above, he/she will still have up to a total of 440 hours to successfully complete the training and be assigned to the REC.

Moe Biller/
President
American Postal Workers
UnicAFL-CIO

Date: 2/14/96

Anthony J. Vegliante
Manager
Contract Administration
APWU/NPMHU

Date: 2/23/96

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